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PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

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House of Representatives

The House met at 3 p.m. and was called to order by the Speaker pro tempore (Mr. ROONEY of Florida).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
September 15, 2015.

I hereby appoint the Honorable THOMAS J. ROONEY to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Creator God, we give You thanks for giving us another day.

In this moment of prayer, please bless the Members of the people's House as they meet with their respective constituents. We acknowledge that many of our citizens observe a new year, a celebration of Your creation of man and woman.

May we all do our part in Your creation, preserving all You have given us for the benefit of all Your children, bringing into reality peace and justice, especially among those whose life experience is devoid of these things.

And as the Members return in the coming days, grant them a surfeit of wisdom, patience, and goodwill as they face the most pressing issues of these days. May their efforts issue forth in solutions benefiting all and neglecting none.

May all that is done be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. The Chair will lead the House in the Pledge of Allegiance.

The SPEAKER pro tempore led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ADJOURNMENT

The SPEAKER pro tempore. Without objection, the House stands adjourned until noon tomorrow for morning-hour debate.

There was no objection.

Thereupon (at 3 o'clock and 2 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, September 16, 2015, at noon for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

2722. A letter from the Acting Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting the Department's affirmation of interim rule as final rule — Gypsy Moth Generally Infested Areas; Additions in Minnesota, Virginia, West Virginia, and Wisconsin [Docket No.: APHIS-2014-0023] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Agriculture.

2723. A letter from the Chief Counsel, FEMA, Department of Homeland Security, transmitting the Department's final rule — Suspension of Community Eligibility [Docket ID: FEMA-2015-0001] [Internal Agency Docket No.: FEMA-8395] received September 2, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Financial Services.

2724. A letter from the Chief Counsel, FEMA, Department of Homeland Security, transmitting the Department's final rule — Suspension of Community Eligibility (Stafford County, NH, et al.) [Docket ID: FEMA-2015-0001] [Internal Agency Docket No.: FEMA-8397] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Financial Services.

2725. A letter from the Associate General Counsel for Legislation and Regulations, Office of General Counsel, Department of Housing and Urban Development, transmitting the Department's final rule — Federal Housing Administration (FHA): Standardizing Method of Payment for FHA Insurance Claims [Docket No.: FR-5805-F-02] (RIN: 2502-AJ26) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Financial Services.

2726. A letter from the General Counsel, Pension Benefit Guaranty Corporation, transmitting the Corporation's final rule — Benefits Payable in Terminated Single-Employer Plans; Interest Assumptions for Paying Benefits received September 2, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Education and the Workforce.

2727. A letter from the Deputy Director, ODRM, Department of Health and Human Services, transmitting the Department's final rule — National Institute on Minority Health and Health Disparities Research Endowments [Docket No.: NIH-2007-0931] (RIN: 0925-AA61) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2728. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; State of Utah; Motor Vehicle Inspection and Maintenance and Associated Revisions [EPA-R08-OAR-2014-0370; FRL-9930-71-Region 8] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

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2729. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Significant New Use Rule on Substituted Cyclosiloxane; Removal [EPA-HQ-OPPT-2015-0220; FRL-9932-56] (RIN: 2070-AB27) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2730. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Plan Approval; Wisconsin; Infrastructure SIP Requirements for the 2008 Ozone, 2010 NO2, and 2010 SO2 NAAQS [EPA-R05-OAR-2014-0704; FRL-9933-62-Region 5] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2731. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Air Plan Approval; Indiana; SO2 Revision for Walsh and Kelly [EPA-R05-OAR-2015-0380; FRL-9933-65-Region 5] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2732. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Tetraethylene Glycol; Exemption from the Requirement of a Tolerance [EPA-HQ-OPP-2015-0214; FRL-9933-35] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2733. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Cyprodinil; Pesticide Tolerances [EPA-HQ-OPP-2014-0506; FRL-9930-04] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2734. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Propylene glycol monomethyl ether; Exemption from the Requirement of a Tolerance [EPA-HQ-OPP-2015-0143; FRL-9932-06] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2735. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Oxathiapiprolin; Pesticide Tolerances [EPA-HQ-OPP-2014-0114; FRL-9931-18] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2736. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Approval and Promulgation of Implementation Plans; Arizona; Phased Discontinuation of Stage II Vapor Recovery Program [EPA-R09-OAR-2014-0256; FRL-9927-14-Region 9] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2737. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Georgia: Changes to Georgia Fuel Rule and Other Miscellaneous Rules [EPA-R04-OAR-2015-0161; FRL-9933-32-Region 4] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2738. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Revisions to the California State Implementation Plan, Feather River Air Quality Management District; Correction [EPA-R09-OAR-2015-0164; FRL-9933-50-Region 9] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2739. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Approval and Promulgation of State Implementation Plans; Alaska; Transportation Conformity State Implementation Plan [EPA-R10-OAR-2015-0447; FRL-9933-43-Region 10] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2740. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Texas; Attainment Demonstration for the Dallas/Fort Worth 1997 8-Hour Ozone Nonattainment Area; Determination of Attainment of the 1997 Ozone Standard [EPA-R06-OAR-2012-0098; FRL-9931-78-Region 6] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2741. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Approval and Promulgation of Implementation Plans; Texas; Infrastructure Requirements for the 1997 Ozone and the 1997 and 2006 PM2.5 NAAQS [EPA-R06-OAR-2013-0808; FRL-9932-50-Region 6] received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2742. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's Major final rule — Carbon Pollution Emission Guidelines for Existing Stationary Sources: Electric Utility Generating Units [EPA-HQ-OAR-2013-0602; FRL-9930-65-OAR] (RIN: 2060-AR33) received September 11, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2743. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — National Emission Standards for Hazardous Air Pollutants for the Portland Cement Manufacturing Industry and Standards of Performance for Portland Cement Plants; Correction [EPA-HQ-OAR-2011-0817; FRL-9933-76-OAR] (RIN: 2060-AQ93) received September 11, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2744. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; New Hampshire; Nonattainment New Source Review and Prevention of Significant Deterioration Program [EPA-R01-OAR-2014-0796; EPA-R01-OAR-2014-0862; A-1-FRL-9933-92-Region 1] received September 11, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2745. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Standards of Performance for Greenhouse Gas Emissions from New, Modified, and Reconstructed Stationary Sources: Electric Utility Generating Units [EPA-HQ-OAR-2013-0495; EPA-HQ-OAR-2013-0603; FRL-9930-66-OAR] (RIN: 2060-AQ91) received September 11, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Energy and Commerce.

2746. A letter from the Assistant Secretary for Legislation, Office of the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's report entitled ''United States Tobacco Product Exports That Do Not Conform to Tobacco Product Standards'', pursuant to Sec. 801(p)(1) of the Federal Food, Drug, and Cosmetic Act; to the Committee on Energy and Commerce.

2747. A letter from the Assistant Secretary for Legislation, Office of the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's report entitled ''Patient Navigator Outreach and Chronic Disease Prevention Program, Fiscal Years 2008-2012'', pursuant to Pub. L. 109-18, the Patient Navigator Outreach and Chronic Disease Prevention Act and amended by Pub. L. 111-148, the Affordable Care Act; to the Committee on Energy and Commerce.

2748. A letter from the Assistant Secretary for Legislation, Office of the Secretary, Department of Health and Human Services, transmitting the Department's report entitled ''Premarket Approval of Pediatric Uses of Devices — FY 2013'', pursuant to Sec. 302 of the Food and Drug Administration Amendments Act, and Sec. 515A(a)(3) of the Federal Food, Drug, and Cosmetic Act; to the Committee on Energy and Commerce.

2749. A letter from the Assistant Secretary of Commerce for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting the Department's final rule — Update to List of Countries Where Persons in the United States May Request Department of Defense Assistance in Obtaining Priority Delivery of Contracts [Docket No.: 150720623-5623-01] (RIN: 0694-AG68) received September 2, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Foreign Affairs.

2750. A letter from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting the Department's final rule — Addition of Certain Persons to the Entity List [Docket No.: 150604505-5505-01] (RIN: 0694-AG65) received September 4, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Foreign Affairs.

2751. A letter from the Assistant Secretary for Export Administration, Department of Commerce, transmitting the Department's final rule — Revisions to License Exception Availability for Consumer Communications Deceives and Licensing Policy for Civil Telecommunications-related Items Such as Infrastructure Regarding Sudan: Correction [Docket No.: 150720622-5622-01] (RIN: 0694-AG63) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Foreign Affairs.

2752. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to Venezuela that was declared in Executive Order 13692 of March 8, 2015, as required by Sec. 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and

Sec. 204(c) of the International Emergency Economic Powers Act, 50 U.S.C. 1703(c); to the Committee on Foreign Affairs.

2753. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to persons undermining democratic processes or institutions in Zimbabwe that was declared in Executive Order 13288 of March 6, 2003, as required by Sec. 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and Sec. 204(c) of the International Emergency Economic Powers Act, 50 U.S.C. 1703(c), and pursuant to Executive Order 13313 of July 31, 2003,; to the Committee on Foreign Affairs.

2754. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to Ukraine that was declared in Executive Order 13660 of March 6, 2014, as required by Sec. 401(c) of the National Emergencies Act, 50 U.S.C. 1641(c), and Sec. 204(c) of the International Emergency Economic Powers Act, 50 U.S.C. 1703(c); to the Committee on Foreign Affairs.

2755. A letter from the General Counsel, Federal Retirement Thrift Investment Board, transmitting the Board's final rule — Default Investment Fund received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Oversight and Government Reform.

2756. A letter from the General Counsel, Federal Retirement Thrift Investment Board, transmitting the Board's final rule — Criminal Restitution Orders received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Oversight and Government Reform.

2757. A letter from the Acting Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's summary presentation of final rules — Federal Acquisition Regulation; Federal Acquisition Circular 2005-84; Introduction [Docket No.: FAR 2015-0051, Sequence No.: 4] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Oversight and Government Reform.

2758. A letter from the Acting Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; EPEAT Items [FAC 2005-84; FAR Case 2013-016; Item I; Docket 2013-0016, Sequence 1] (RIN: 9000-AM71) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Oversight and Government Reform.

2759. A letter from the Acting Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's guide — Federal Acquisition Regulation; Federal Acquisition Circular 2005-84; Small Entity Compliance Guide [Docket No.: FAR 2015-0051, Sequence No.: 4] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Oversight and Government Reform.

2760. A letter from the Acting Senior Procurement Executive, Office of Acquisition Policy, General Services Administration, transmitting the Administration's final rule — Federal Acquisition Regulation; Technical Amendments [FAC 2005-84; Item II; Docket No.: 2015-0052; Sequence No.: 3] received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Oversight and Government Reform.

2761. A letter from the Secretary, Department of the Interior, transmitting the Department's draft and section-by-section analysis of a bill entitled, the ''National Park Service Centennial Act''; to the Committee on Natural Resources.

2762. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, Office of Sustainable Fisheries, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Coastal Migratory Pelagic Resources in the Gulf of Mexico and Atlantic Region; Framework Amendment [Docket No.: 140819687-5583-02] (RIN: 0648-BE40) received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Natural Resources.

2763. A letter from the Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Economic Exclusive Zone Off Alaska; Groundfish Fishery by Non-Rockfish Program Catcher Vessels Using Trawl Gear in the Western and Central Regulatory Area of the Gulf of Alaska [Docket No.: 140918791-4999-02] (RIN: 0648-XE099) received August 31, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Natural Resources.

2764. A letter from the Deputy Assistant Administrator for Operations, NOAA Fisheries Service, Office of Protected Resources, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Takes of Marine Mammals Incidental to Specified Activities; U.S. Navy Training and Testing Activities in the Mariana Islands Training and Testing Study Area [Docket No.: 140211133-5621-01] (RIN: 0648-BD69) received August 28, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Natural Resources.

2765. A letter from the Secretary, Judicial Conference of the United States, transmitting a Judicial Conference determination that former United States District Judge Mark E. Fuller (M.D. Ala.) has engaged in conduct for which consideration of impeachment may be warranted, pursuant to 28 U.S.C. 355(b)(1); to the Committee on the Judiciary.

2766. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone, James River; Newport News, VA [Docket No.: USCG-2015-0701] (RIN: 1625-AA00) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2767. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone, Indian River Bay; Millsboro, Delaware [Docket No.: USCG-2015-0563] (RIN: 1625-AA00) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2768. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zones; Marine Events held in the Sector Long Island Sound Captain of the Port Zone [Docket No.: USCG-2015-0646] (RIN: 1625-AA00) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2769. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Special Local Regulations; Marine Events held in the Sector Long Island Sound Captain of the Port Zone [Docket No.: USCG-2015-0705] (RIN: 1625-AA08) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2770. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone; Carly's Crossing; Outer Harbor, Gallagher Beach, Buffalo, NY [Docket No.: USCG-2015-0717] (RIN: 1625-AA00) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2771. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone; Whiskey Island Paddleboard Festival and Race; Lake Erie, Cleveland, OH [Docket No.: USCG-2015-0716) (RIN: 1625-AA00) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2772. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone, Swim Around Charleston; Charleston, SC [Docket No.: USCG-2015-0276] (RIN: 1625-AA00) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2773. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's final rule — Special Local Regulation; Suncoast Super Boat Grand Prix; Gulf of Mexico, Sarasota, FL [Docket No.: USCG-2015-0216] (RIN: 1625-AA08) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2774. A letter from the Attorney-Advisor, U.S. Coast Guard, Department of Homeland Security, transmitting the Department's temporary final rule — Safety Zone; TriMet Tilikum Crossing Bridge Fireworks Display, Willamette River, Portland, OR [Docket No.: USCG-2015-0510] (RIN: 1625-AA00) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2775. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; British Aerospace Regional Aircraft Airplanes [Docket No.: FAA-2015-2048; Directorate Identifier 2015-CE-015-AD; Amendment 39-18230; AD 2015-16-05] (RIN: 2120-AA64) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2776. A letter from the Management and Program Analyst, FAA, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; British Aerospace Regional Aircraft Airplanes [Docket No.: FAA-2015-1744; Directorate Identifier 2015-CE-016-AD; Amendment 39-18231; AD 2015-16-06] (RIN: 2120-AA64) received September 8, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Transportation and Infrastructure.

2777. A letter from the Assistant Administrator for Procurement, Office of Procurement, National Aeronautics and Space Administration, transmitting the Administration's interim rule — NASA Federal Acquisition Regulation Supplement: NASA Capitalization Threshold (NFS Case 2015-N004) (RIN: 2700-AE23) received September 2, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Science, Space, and Technology.

2778. A letter from the Chief Impact Analyst, Office of Regulation Policy, Office of the General Counsel (02REG), Department of Veterans Affairs, transmitting the Department's final rule — Animals on VA Property (RIN: 2900-AO39) received September 2, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Veterans' Affairs.

2779. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Application of the Cooperative and Small Employer Charity Pension Flexibility Act [Notice 2015-58] received September 1, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Ways and Means.

2780. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — Examination of returns and claims for refund, credit, or abatement; determination of tax liability (Rev. Proc. 2015-42) received September 1, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; to the Committee on Ways and Means.

2781. A letter from the Assistant Secretary for Legislation, Office of the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's Report to Congress on ''Small Rural Hospital Improvement Grant Program for Fiscal Year 2013'', pursuant to Sec. 1820(g)(3)(F)(ii)(I) of the Social Security Act; to the Committee on Ways and Means.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. FRANKS of Arizona (for himself, Mr. FINCHER, Mr. COLLINS of Georgia, Mr. NEUGEBAUER, Mr. HUIZENGA of Michigan, Mr. FARENTHOLD, Mr. GROTHMAN, Mrs. BLACKBURN, Mr. LOUDERMILK, Mr. SHIMKUS, Mr. ADERHOLT, Mr. HUDSON, Mr. PITTENGER, Mr. STEWART, Mr. GOSAR, Mr. SMITH of Texas, Mr. BRADY of Texas, Mr. WESTMORELAND, Mr. SESSIONS, Mr. SAM JOHNSON of Texas, Mr. CHABOT, Mr. KELLY of Mississippi, Mr. ROUZER, Mrs. WAGNER, Mr. CARTER of Georgia, Mr. MULLIN, Mr. BOUSTANY, Mr. ROE of Tennessee, Mr. CRAMER, Mr. SALMON, Mr. MOONEY of West Virginia, Mrs. LOVE, Mr. GIBBS, Mr. KING of Iowa, Mr. OLSON, Mr. CARTER of Texas, Mr. PITTS, Mr. MILLER of Florida, Mr. FLORES, Mr. MEADOWS, Mr. JOHNSON of Ohio, Mr. PEARCE, Mrs. BLACK, Mr. MURPHY of Pennsylvania, Mr. STUTZMAN, Mr. KELLY of Pennsylvania, Mr. FLEMING, Mr. ROTHFUS, Mr. JOYCE, Mr. HUELSKAMP, Mr. BABIN, Mr. DESANTIS, Mr. GUTHRIE, Mr. FORTENBERRY, Mr. SMITH of Nebraska, Mr. ROONEY of Florida, Mr. CONAWAY, Mrs. LUMMIS, Mr. GOWDY, Mr. YOHO, Mr. BILIRAKIS, Mr. LABRADOR, Mr. THOMPSON of Pennsylvania, Mrs. HARTZLER, Mr. SCALISE, Mr. POMPEO, Mr. KNIGHT, Mr. AUSTIN SCOTT of Georgia, Mr. YODER, Mr. NEWHOUSE, Mr. SMITH of New Jersey, Mr. CHAFFETZ, Mr. LAMBORN, Mr. LONG, Mr. ROKITA, Mr. JODY B. HICE of Georgia, Mr. BARLETTA, Mr. LIPINSKI, Mr. LUETKEMEYER, Mr. RATCLIFFE, Mr. MESSER, Mr. DUNCAN of Tennessee, and Mr. ABRAHAM):

H.R. 3504. A bill to amend title 18, United States Code, to prohibit a health care practitioner from failing to exercise the proper degree of care in the case of a child who survives an abortion or attempted abortion; to the Committee on the Judiciary.

By Mr. THOMPSON of Mississippi:

H.R. 3505. A bill to amend the Homeland Security Act of 2002 to improve the management and administration of the security clearance processes throughout the Department of Homeland Security, and for other purposes; to the Committee on Homeland Security.

By Mr. ENGEL:

H.R. 3506. A bill to enable State and local promotion of natural gas, flexible fuel, and high-efficiency motor vehicle fleets; to the Committee on Energy and Commerce.

By Mr. GROTHMAN:

H.R. 3507. A bill to designate the facility of the United States Postal Service located at 99 West 2nd Street in Fond du Lac, Wisconsin, as the ''Lieutenant Colonel James 'Maggie' Megellas Post Office''; to the Committee on Oversight and Government Reform.

By Mr. HARRIS (for himself, Mr. MOONEY of West Virginia, and Mr. BEYER):

H.R. 3508. A bill to amend the Internal Revenue Code of 1986 to allow an annual elective surcharge in lieu of estate tax, and for other purposes; to the Committee on Ways and Means.

By Ms. LOFGREN (for herself, Ms. ESHOO, Mr. MASSIE, and Mr. WOODALL):

H.R. 3509. A bill to authorize any office of the Federal Government which owns or operates a parking area for the use of its employees to install, construct, operate, and maintain a battery recharging station in the area, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. RICHMOND:

H.R. 3510. A bill to amend the Homeland Security Act of 2002 to require the Secretary of Homeland Security to develop a cybersecurity strategy for the Department of Homeland Security, and for other purposes; to the Committee on Homeland Security.

By Mrs. LOWEY (for herself and Mr. CRENSHAW):

H. Res. 419. A resolution recognizing the importance of frontline health workers toward accelerating progress on global health and saving the lives of women and children, and for other purposes; to the Committee on Foreign Affairs.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. FRANKS of Arizona:

H.R. 3504.

Congress has the power to enact this legislation pursuant to the following:

Congress has authority to extend protection to born-alive abortion survivors under the Supreme Court's Commerce Clause precedents and under the Constitution's grants of powers to Congress under the Equal Protection, Due Process, and Enforcement Clauses of the Fourteenth Amendment.

By Mr. THOMPSON of Mississippi:

H.R. 3505.

Congress has the power to enact this legislation pursuant to the following:

The U.S. Constitution including Article 1, Section 8.

By Mr. ENGEL:

H.R. 3506.

Congress has the power to enact this legislation pursuant to the following:

The bill is enacted pursuant to the power granted to Congress under the following provisions of the United States Constitution:

Article I, Section 1;

Article I, Section 8, Clause 1;

Article I, Section 8, Clause 3; and

Article I, Section 8, Clause 18.

By Mr. GROTHMAN:

H.R. 3507.

Congress has the power to enact this legislation pursuant to the following:

Aricle 1, Section 8, Clause 7.

By Mr. HARRIS:

H.R. 3508.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of Article 1 of the Constitution of the United States.

By Ms. LOFGREN:

H.R. 3509.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Consitution of the United States.

By Mr. RICHMOND:

H.R. 3510.

Congress has the power to enact this legislation pursuant to the following:

This bill is introduced pursuant to the powers granted to Congress under the General Welfare Clause (Art. 1 Sec. 8 Cl. 1), the Commerce Clause (Art. 1 Sec. 8 Cl. 3), and the Necessary and Proper Clause (Art. 1 Sec. 8 Cl. 18).

Further, this statement of constitutional authority is made for the sole purpose of compliance with clause 7 of Rule XII of the Rules of the House of Representatives and shall have no bearing on judicial review of the accompanying bill.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 25: Mr. EMMER of Minnesota.

H.R. 140: Mr. WESTMORELAND.

H.R. 265: Mr. VAN HOLLEN.

H.R. 307: Ms. NORTON.

H.R. 410: Mr. BEYER.

H.R. 470: Mr. GRAVES of Georgia.

H.R. 546: Mr. NEWHOUSE.

H.R. 664: Ms. BASS.

H.R. 692: Mr. BISHOP of Michigan and Mr. GOODLATTE.

H.R. 702: Mr. PERRY and Mrs. COMSTOCK.

H.R. 721: Ms. STEFANIK, Mr. COSTA, Mr. ZELDIN, and Mr. LAMBORN.

H.R. 816: Mr. SANFORD and Mr. ROONEY of Florida.

H.R. 820: Mr. PERLMUTTER, Mr. GIBSON, and Mr. VAN HOLLEN.

H.R. 918: Mr. LAMBORN.

H.R. 953: Mr. HECK of Nevada and Mr. STIVERS.

H.R. 973: Ms. ROYBAL-ALLARD, Ms. DELAURO, Mr. BUCSHON, and Mrs. TORRES.

H.R. 985: Mr. LAMBORN and Mr. TIPTON.

H.R. 1062: Mr. FORBES.
H.R. 1148: Mr. WILLIAMS.
H.R. 1188: Mr. LEVIN.
H.R. 1192: Mr. FORBES and Mr. TAKAI.
H.R. 1197: Mr. PRICE of North Carolina and Mr. MURPHY of Pennsylvania.
H.R. 1388: Mr. TROTT.
H.R. 1428: Mr. THOMPSON of Pennsylvania.
H.R. 1475: Mr. MCDERMOTT, Mr. TAKAI, Mr. LANGEVIN, and Mrs. WATSON COLEMAN.
H.R. 1523: Mr. ROTHFUS.
H.R. 1608: Mr. KINZINGER of Illinois.
H.R. 1611: Mrs. KIRKPATRICK.
H.R. 1644: Mr. FLEISCHMANN and Mr. KELLY of Pennsylvania.
H.R. 1786: Mr. VISCLOSKY, Ms. BROWNLEY of California, Mr. LOWENTHAL, Mr. AGUILAR, Mr. FARR, Mr. MOULTON, Ms. ADAMS, and Mr. BLUMENAUER.
H.R. 1834: Mr. NUGENT.
H.R. 1901: Mr. WEBER of Texas and Mr. ADERHOLT.
H.R. 2013: Mr. HIGGINS.
H.R. 2023: Mr. LOEBSACK and Mr. ASHFORD.
H.R. 2043: Mr. HUFFMAN and Ms. GRAHAM.
H.R. 2061: Mr. VARGAS, Mr. TAKAI, and Mr. CALVERT.
H.R. 2063: Mr. NADLER.
H.R. 2096: Mr. COFFMAN.
H.R. 2121: Mr. LARSON of Connecticut, Mr. HIMES, Mr. NEUGEBAUER, Mr. QUIGLEY, and Mr. FOSTER.
H.R. 2191: Mr. HUFFMAN.
H.R. 2205: Ms. JENKINS of Kansas.
H.R. 2315: Mr. HECK of Washington.
H.R. 2318: Mr. CLAY.
H.R. 2429: Ms. JUDY CHU of California .
H.R. 2494: Mr. PETERS and Mr. POCAN.
H.R. 2508: Mr. REED.
H.R. 2515: Mr. PAULSEN, Mr. ELLISON, Ms. LOFGREN, and Mr. PETERSON.
H.R. 2516: Mr. WELCH.
H.R. 2530: Ms. MICHELLE LUJAN GRISHAM of New Mexico.
H.R. 2646: Ms. LEE, Mrs. COMSTOCK, Mr. LONG, and Mr. DESAULNIER.
H.R. 2716: Mr. BISHOP of Michigan.
H.R. 2752: Mr. BLUMENAUER.
H.R. 2759: Ms. LOFGREN.
H.R. 2764: Mr. LOWENTHAL.
H.R. 2847: Mr. PAULSEN, Ms. LOFGREN, Ms. HERRERA BEUTLER, and Mr. HONDA.
H.R. 2940: Ms. LOFGREN.
H.R. 2973: Mr. KING of Iowa.
H.R. 2994: Mr. BEYER.
H.R. 3134: Mr. SCALISE, Mr. WILSON of South Carolina, Mr. BRADY of Texas, Mr. THOMPSON of Pennsylvania, Mr. LUETKEMEYER, and Mr. HUELSKAMP.
H.R. 3151: Mr. DUNCAN of Tennessee.
H.R. 3167: Mr. RIBBLE.
H.R. 3188: Mr. ZINKE.
H.R. 3241: Mr. TED LIEU of California.
H.R. 3296: Mr. GOSAR.
H.R. 3302: Mr. GOSAR.
H.R. 3310: Mr. MACARTHUR, Mr. PALAZZO, and Mr. COFFMAN.
H.R. 3314: Mr. WESTMORELAND, Mr. KING of Iowa, Mr. JONES, Mr. WEBER of Texas, Mr. ZINKE, Mr. SESSIONS, Mr. GOSAR, and Mr. JODY B. HICE of Georgia.
H.R. 3326: Ms. JUDY CHU of California.
H.R. 3327: Mr. REED.
H.R. 3406: Mrs. KIRKPATRICK.
H.R. 3407: Mr. KING of Iowa.
H.R. 3442: Mr. REICHERT and Mr. MCCAUL.
H.R. 3498: Mr. LIPINSKI.
H.J. Res. 47: Mr. TED LIEU of California.
H. Con. Res. 40: Ms. ESHOO.
H. Con. Res. 50: Mr. SEAN PATRICK MALONEY of New York.
H. Res. 12: Mr. VEASEY.
H. Res. 289: Mr. POCAN.
H. Res. 402: Mrs. LOWEY.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

OFFERED BY MR. UPTON

The provisions that warranted a referral to the Committee on Energy and Commerce in H.R. 3134 do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

PETITIONS, ETC.

Under clause 3 of rule XII,

25. The SPEAKER presented a petition of District 6 City Councilman Don Zimmerman, Austin, TX, relative to urging Congress to repeal 42 U.S.C. 418(f) which mandates participation of local government employees in Social Security; which was referred to the Committee on Ways and Means.

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PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, SEPTEMBER 15, 2015 *No. 132*

Senate

The Senate met at 1 p.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Gracious God, the center of our joy, we thank You for all the blessings we receive daily as gifts from You. Though we don't deserve them, Your mercies provide for all our needs.

Help our lawmakers this day to move from simply knowing about You into a vital relationship based on faith in the unfolding of Your loving providence. Inspire them to rely on Your love as they seek to live faithfully.

As You cleanse our hearts and keep us clean, birth within us all a burning desire to flee from all habitual and willful sin.

We pray in Your merciful Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. SASSE). The majority leader is recognized.

REMEMBERING STATE TROOPER JOSEPH PONDER

Mr. MCCONNELL. Mr. President, Joseph Ponder was proud to be a Kentucky State police trooper. ''He was eager and just absolutely loved his job,'' is how a State police spokesman described him.

Ponder tragically lost his life in the line of duty this week. We are thinking of that 31-year-old Rineyville native today in the Senate. We are praying for his family and for his friends.

I know his fellow officers in the law enforcement community feel the loss and so do Kentuckians whom he worked every day to protect. So I ask the entire Senate community to join me in honoring Trooper Ponder.

NUCLEAR AGREEMENT WITH IRAN

Mr. MCCONNELL. Mr. President, on a different matter, as the Senate continues debating President Obama's deal with Iran today, I think it is appropriate to consider a quote from the President himself. Here is what he said:

I believe Congress owes the American people a final up-or-down vote. We need courage. You know, in the end, this debate is about far more than politics.

When it comes to the Iran deal, you would have to say the President is right. After all, do Senators think it is right for the world's leading sponsor of terror to be able to maintain an American-recognized nuclear program? Do Senators think it is right that this deal would effectively subsidize Hezbollah, Hamas, and Bashar al-Assad by channeling literally billions of dollars to their benefactors in Tehran? Do Senators approve of a deal that would leave Iran with an enrichment capability just as the Iranian leadership is again calling for Israel's destruction and praying for ours as well? It is hard to see how Senators could agree with these things.

Many Democratic colleagues, including the top Democrats on the Foreign Affairs Committees in both Houses of Congress who are among the most familiar with the President's deal with Iran, have already come out in opposition. A strong bipartisan majority of the House of Representatives voted to reject the deal. A strong bipartisan majority of the Senate would vote to reject it as well, if only Democratic Senators would stop blocking the American people from even having a final vote on one of the most consequential foreign policy issues of our time.

Democratic Senators will have a chance to vote on behalf of their constituents later today. Perhaps they will consider the President's words I quoted earlier. It is from a 2010 speech about ObamaCare. If the President was so insistent on ''courage'' and a ''final up-or-down vote'' back then on ObamaCare, how can he justify blocking a vote now on an issue of such immense magnitude as the Iran deal? It is part of a larger retreat to campaigning instead of engaging on this important issue, ad hominem attacks instead of serious debate, campaign one-liners instead of intellectual arguments, and simply ignoring reality when it becomes inconvenient. That is why you see the President claiming ''strong support of lawmakers and citizens'' for his Iran deal.

Well, here is what the Washington Post's Fact Checker had to say about that:

Any way you slice it, it is difficult to support the claim that there is ''strong support'' for the Iran deal among lawmakers and citizens. This is clearly a case of winning ugly, in the face of minority support among lawmakers and increasing opposition among American citizens.

The White House certainly did better than many analysts expected, since enough Democrats supported the agreement to prevent a final Senate vote on the merits. And Obama avoided a veto fight. But that's different than having ''strong support'' for the deal.

That is the Washington Post Fact Checker.

So if Democrats share the President's determination to ''win ugly'' on this important issue, then they have sufficient numbers to do that, apparently, but I would remind my colleagues of something. This debate should not be about a President who will leave office in 16 months. It should be about where our country will be in 16 years.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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Consider this advice from an editorial that appeared in Bloomberg last month:

Tactics aside, it would be far better to win this fight fairly. The pact is not a treaty: A future President and Congress might overturn it, arguing that it was sealed without proper consideration. And history often looks with disgust at causes built on fear, especially if they go awry.

This is an important moment for the Democratic Party, but more importantly it is an important moment for our country. Let's stand up for the people we represent. Let's allow them to vote on what is one of the most consequential foreign policy issues of our age.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

NUCLEAR AGREEMENT WITH IRAN

Mr. REID. Mr. President, my friend the Republican leader, among other things, said he wanted an intellectual argument. The outline he just gave has nothing to do with intellectual credibility.

The agreement that was finalized last week dealt with one subject and one subject only: whether Iran should have a nuclear weapon, and that answer was resoundingly no. That is what it was all about. All the other rhetoric my Republican friend talked about is not in keeping with what the agreement is all about. He tried to make the agreement that was finalized into something it isn't. I would suggest in the future, realistically, the Republican leader should be factual on what the agreement is between Iran and China, Russia, Great Britain, Germany, France, and the United States because what he just outlined has nothing to do with what the actual facts are.

GOVERNMENT FUNDING

Mr. REID. Mr. President, it comes as no surprise to anyone watching the Senate that the Republican leader and I disagree on many things, but I was very glad to hear the Republican leader say last week that he believes any government funding bill must be clean and that using the appropriations process as a vehicle to attack women's health is, as he said, ''an exercise in futility.''

I am sure not everyone on his side of the aisle agrees with him, but there is no doubt it is the right thing to do. I agree that any budget deal must be clean; that is, no riders—nothing with Planned Parenthood, nothing with repealing what the Environmental Protection Agency has done, no repealing what the Dodd-Frank bill put into effect to stop us from having another Wall Street meltdown, no riders dealing with immigration—just a clean continuing resolution for a short period of time to allow us to do a more full and more complete deal in the very near future.

I agree any budget bill must be clean. I say that again. I am glad to see the Republican leader coming around to that. Democrats will not support a continuing resolution that has all these riders on it and especially a Planned Parenthood rider that was talked about so much in the House.

I read in the paper today that there are 32 Republicans in the House who have signed a letter to the Speaker saying they are not going to vote for anything unless it defunds Planned Parenthood. That is a nonstarter and the Republican leader rightly has acknowledged that. I am glad the Republican leader wants a clean continuing resolution instead of one that attacks women's health.

I am disappointed by his refusal at this stage to negotiate with the White House or any Democrats in the House or in the Senate dealing with the budget. We have a looming government shutdown. It is right before our eyes. The Republican leader has already wasted far too much time dithering and doing nothing on that. We know from experience 2 years ago that the Republicans actually did shut down the government for almost 3 weeks. For months, we have overheard them calling for bipartisan budget negotiations. We have 9 session days left before the government shuts down. Now is the time to sit down—Democrats, Republicans, getting the White House involved—and negotiate a bipartisan funding measure for the rest of the year, but by the look of this week's schedule, the Republican leader doesn't seem to be in any hurry to avoid a shutdown. That is truly unfortunate.

The Republican leader has not scheduled any budget votes today. Instead, the Senate will waste precious time on another failed vote. And then what comes next? What is the Republican leader's plan for the rest of the week? Political show votes on abortion that have nothing to do with keeping the Federal Government open. There is no reason why we can't pass a bipartisan funding measure as soon as possible—this week, even. But that depends on the Republican leader's willingness to sit down and negotiate, and sooner rather than later. Then, Congress can move on to our next budget priority: reversing sequestration and its harmful cuts.

HISPANIC HERITAGE MONTH

Mr. REID. Mr. President, today, September 15, marks the beginning of Hispanic Heritage Month, a celebration that dates back to 1968.

This month also includes the anniversary of independence for many Latin American countries. Hispanic Heritage Month is an opportunity for us as a nation to recognize, celebrate, and honor the history, culture, and contributions of America's Latino community.

We see those contributions in all facets of our society, from the battlefields to the boardrooms and from the classrooms to the halls of government. Every segment of American life has been enriched by Latinos and their proud culture. Without the contributions made by generations of Latinos, Nevada and the United States would not be what we are today.

In Nevada, Hispanic influence and history is everywhere. Consider the name of my State and the name of our most famous city. ''Nevada'' means snow covered. ''Las Vegas'' means the meadows. Las Vegas, one of the most famous cities in the world, has a Hispanic name. Today, more than one-quarter of Nevada's population is Hispanic.

Nationally, Latino Americans number nearly 60 million and are expected to make up to 60 percent of the population growth in coming decades. America's future depends on a strong and prosperous Hispanic population.

That is why Democrats have fought hard for policies to protect Hispanic families and strengthen Hispanic communities. We passed the Affordable Care Act, which allows millions of Latinos to have access to affordable health care. Because of the Affordable Care Act, 4.2 million previously uninsured Latinos now have health insurance. An estimated 8.8 million Latinos are newly covered for expanded preventive services, with no cost-sharing, including mammograms, colonoscopy screenings, and immunization vaccines under the Affordable Care Act.

Democrats also passed the bipartisan comprehensive immigration reform bill out of the Senate a couple years ago. That legislation, which House Republicans refused to consider, even though it would have passed overwhelmingly—all Democrats would have voted for it and enough Republicans would have voted for it to be an overwhelming victory—but it didn't happen. The Republicans refused to consider something that protected families, reduced the deficit, and strengthened our national security.

We also supported President Obama's Executive actions, which, as we speak, are protecting immigrant families from the threat of deportation and taking criminals off the streets. Meanwhile, Republicans are doing everything in their power to undermine Hispanic families. A person need only watch 5 minutes of a Republican Presidential debate to see how Republicans really feel about America's Latino communities. Republicans are clamoring to amend the Constitution to repeal birthright citizenship. Republicans want to roll back President Obama's Executive actions that are keeping families together and preventing DREAMers from being deported.

Republicans are constantly attacking the Affordable Care Act, which has covered 4.2 million previously uninsured Latinos with health insurance. Republicans refuse to boost the minimum

wage, blocking millions of Latino families from earning a livable wage.

These are the priorities of the Republican Party—a Republican Party that has abandoned Latino families. We as Democrats will do everything in our power to stop the Republican attack on these families. Democrats will continue to fight for Latino families to help them tackle the challenges they face every day.

Today, as we celebrate the first day of Hispanic Heritage Month, we honor the many incredible contributions Latino Americans make every day to our Nation. We also recommit ourselves to protecting Hispanic families and communities from the likes of Donald Trump and the Republican Party and treating them with dignity and respect because a prosperous America needs a strong and thriving Hispanic community.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

HIRE MORE HEROES ACT OF 2015

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of H.J. Res. 61, which the clerk will report.

The senior assistant legislative clerk read as follows:

A joint resolution (H.J. Res. 61) amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act.

Pending:

McConnell amendment No. 2640, of a perfecting nature.

McConnell amendment No. 2641 (to amendment No. 2640), to change the enactment date.

McConnell amendment No. 2642 (to amendment No. 2641), of a perfecting nature.

McConnell amendment No. 2643 (to the language proposed to be stricken by amendment No. 2640), to change the enactment date.

McConnell amendment No. 2644 (to amendment No. 2643), of a perfecting nature.

McConnell motion to commit the joint resolution to the Committee on Foreign Relations, with instructions, McConnell amendment No. 2645, to change the enactment date.

McConnell amendment No. 2646 (to (the instructions) amendment No. 2645), of a perfecting nature.

McConnell amendment No. 2647 (to amendment No. 2646), of a perfecting nature.

The PRESIDING OFFICER. Under the previous order, the time until 6 p.m. will be equally divided between the two leaders or their designees.

Mr. REID. Mr. President, I suggest the absence of a quorum and ask unanimous consent that the time be charged equally.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. CORKER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORKER. Mr. President, as you know, today we are going to have a number of speakers coming down to talk about the deal that has been negotiated between the P5+1 countries—China, Russia, Great Britain, Germany, France, and the United States—and Iran. What is before us today is something called a resolution of disapproval. I know the procedures we deal with sometimes here on the Senate floor can be very confusing to the public. We are going through a process where we are trying to seek cloture. Cloture is a vote where people decide whether they are going to end debate on a topic and move toward the final vote, to cast their vote on the substance of what is before us.

We had a similar type of vote before we left on Thursday. We had 58 Senators—a bipartisan majority—who wanted to move to a final vote. As a matter of fact, we had Senators from both sides of the aisle on the floor for some time debating the issue. It was one of the most sober, respectful debates we have had since I have been in the Senate. But a minority of the Senators voted not to end the debate. In other words, that is what the general public believes is a filibuster. And it kept us from being able to move to a final vote.

Because there has been some confusion, what I thought I would do is lay out what exactly is happening here and how we got to this process.

Under our form of government, when the President enters into an international agreement, he decides as to whether that is going to be a treaty, which, as we know, requires a two-thirds approval by the Senate, or whether it is something called a congressional-executive agreement, which is a little bit lower threshold, or whether it is just a pure executive agreement, in other words, the President himself has the ability, if he so decides, to enter into an executive agreement. One of the problems with an executive agreement is that it doesn't live beyond that President's term.

When you invoke an executive agreement, what you are really doing is bypassing the buy-in of Congress. As a matter of fact, last week on the floor, I thought Senator FLAKE made one of the most salient points that have been made; that is, since the President and his team decided to cut out Congress and to attempt to do an executive agreement, they made no attempt whatsoever to get the buy-in of Congress. That is why we have ended up in the situation we are in.

When I realized that the President, through this process, was going to enter into this agreement solely by himself—an executive agreement, which he has the ability to do—but that he was also going to use something called a national security waiver to do so—again, this gets a little complicated, and foreign policy can sometimes be complicated. Congress, on four different occasions, passed overwhelmingly in this body and overwhelmingly in the House of Representatives something that puts sanctions in place on Iran to try to bring them to the negotiating table. We did it four times.

I have to say that in almost every instance, the administration pushed back against us putting sanctions in place. They said, ''Oh, the other countries won't be with us, and this will create problems.'' What happened as a result of us saying ''No, we are going to sanction Iran; we are going to do what we can to bring them to the table to end their nuclear program'' was that the other countries fell in line. They put in place similar sanctions to the ones Congress put in place.

When we passed those four sets of sanctions, we gave the President something that is common, and that is called a national security waiver, where, if a crisis came up, he had the ability to waive those sanctions if he thought it was in our country's national interest.

So when he decided to enter into an executive agreement around these negotiations with Iran and bypass Congress, what he also decided he was going to do is to use his national security waiver to waive the sanctions Congress put in place.

Some of us on this side of the aisle realized that was very problematic, that because we brought Congress to the table and because we put the sanctions in place, we thought it was inappropriate for the President to use the national security waiver.

By the way, we realize now that he was going to put a national security waiver in place for 8½ years and come to Congress 8½ years down the road to waive those sanctions permanently. That would have been long after the essence of this deal was done and over.

So we were able to work with the other side of the aisle and pass a bill that has put us in the position we are in today, and that is allowing Congress to weigh in before those congressionally mandated sanctions are waived. Of course, if those sanctions are not waived, then, in essence, the Iranian deal cannot go forward under the terms that have been laid out.

A lot of people have said: Well, Congress gave away authority. They enabled the President to do this without entering into a treaty.

That is totally untrue. The President has the ability to decide to enter into an international arrangement through an executive arrangement, as he has done, if he so chooses. Now, again, the problem with that is, it doesn't stand the test of time because the next President can come in and alter that.

As a matter of fact, this is the first time I can remember that Congress has

taken back authority from the President because what we really did was said: Mr. President, no, you cannot go forward with this deal until we have all of the information, both classified and unclassified, and it is paused for 60 days while we go through this review process, which we know ends—it is debatable because we don't have all the materials, but they would say it ends this week.

So this process wouldn't even be occurring if Congress hadn't taken back the authority that we took back from the President, put this pause in place, and given ourselves the ability to either approve or disapprove—disapprove in this case because many people believe the President squandered this opportunity. Here we had brought this rogue nation to the table, had a boot on its neck, its economy was suffering, and here we have this rogue nation that somehow has ended up in a situation where the President and others have negotiated to allow them not to end their program, which is what was said in the beginning.

By the way, let me just say that had the President held to what he said on the front end, which was that we are going to end Iran's nuclear program, what we would be having today is almost unanimous support for this agreement. But instead they squandered that opportunity—squandered it—and instead have agreed to allow them to industrialize their program and a whole host of other things that had nothing to do with the nuclear file.

Let me go back to the process. The President decided he was going to go straight to the United Nations. Congress said: No, you are not going to do that. You are going to come to us, and we are going to decide whether we approve or disapprove.

So we have a lot of people out there. Some, I guess, just don't understand. Some, I think, do understand, but they are trying to somehow or another create this narrative that Congress is enabling the President. The fact is, we would have liked to have had more of a say in this. I would have liked for this to have been a treaty. But since the President determines whether these are treaties or executive agreements—and he decided in this case it was an executive agreement—again, what Congress has done is said no and taken back a degree of authority.

Unfortunately, what is happening is we have a minority of 42 Senators who have decided they are not going to allow an up-or-down vote. That is what has happened.

What was dismaying to me was that during August the minority leader decided he was going to filibuster. I have a lot of respect—I think people know we have worked closely together in trying to make the Senate work here. But I was very disappointed that somehow or another this was going to take on sort of a Tammy Wynette feel to it, if you will, that, you know, ''We are going to stand by our man. We are not going to cause him to have to veto a resolution of disapproval.'' Somehow or another, instead of this being the sober, serious debate we thought it was going to be where a majority of Senators were going to be able to express themselves, in order to protect the President from having to veto something that the majority of the Senate in a bipartisan way disapproves of, somehow or another, we have this process underway.

I do wish to say to the leader of the Senate that I appreciate very much the fact that up until this point, what he has agreed to do and has done is he has filled the tree—again, another term that I am sure sounds very unusual to people who are watching the Senate floor and don't understand the process. What he has done is he has said: No—up until this point anyway—we are not going to have a bunch of amendments that are tough for people to vote on; we are going to keep the debate to one topic, and that is the resolution of disapproval. That is what this is for.

So tonight, in a second effort, beginning at 6 o'clock this evening, we are going to have a vote. The vote is going to be about whether—I mean, this is what the essence of it is—it is about whether we should end the debate and move to final passage. I think plenty of people have had their say. Others are going to be coming to the floor today to talk about the merits of this deal and the demerits of this deal. But I would hope, again, that the minority, which seems intent on trying to keep the President from getting a resolution of disapproval, which the majority of people in this body believe should be the case—in order to keep him from having to veto the will of the Senate, a minority of people here are keeping that vote from taking place.

I close by thanking my friends on the other side of the aisle for two things. I actually want to thank everybody in this body. Since 2010, four times the Senate has weighed in to put crippling sanctions on Iran. Those sanctions brought them to the table. That was something which was done in spite of the fact that the administration was pushing back.

Secondly, this body, with a vote of 98 to 1, passed the Iranian review act—in short, now called Corker-Cardin. We passed that on a 98-to-1 basis knowing that the President was issuing a veto threat up to 1½ hours before the committee vote took place. When they realized they were going to be crushed—I hate to use that word—overwhelmed in that committee vote, they lifted their veto threat about 1½ hours before that took place.

But, again, on a 98-to-1 basis, this body said: No, we want to weigh in. We want to have the right to approve or disapprove. We want to pause. We want to see all of the documents.

By the way, we have had 12 hearings in the Foreign Relations Committee—12—and all kinds of other one-on-one briefings. So we have had plenty of time to look at this. As a matter of fact, the American people know more about this deal than they ever would have had that process not been put in place. Again, it was put in place because the President decided he wasn't going to cause this to be a treaty; he wasn't going to ask for us to weigh in; he wasn't going to ask us on behalf of the American people to approve it; he was going to do it himself and go directly to the U.N. Security Council. As a matter of fact, he has done that. As a matter of fact, they moved the implementation date back so we could have our chance of weighing in in this way. Certainly, we would love to have much greater power and authority over this.

So thank you to everyone here for putting the sanctions in place. Thank you for allowing us to weigh in.

Let me remind people that if the President had achieved the goals he set out to end Iran's nuclear program—in other cases, he said dismantle Iran's nuclear program—what would be happening on the floor today is there would be an overwhelming, I would say unanimous vote in support of what the President did. But what is happening is we have a bipartisan majority that opposes this. And even those people who have come out in support of this have done so tepidly. They have talked about all the problems in the agreement. As a matter of fact, now there is a huge push to try to come up with a Middle East policy because we know we have none to push back against what is in this agreement.

I am going to have more to say, but I realize my good friend Senator HOEVEN is here. I wish I had known 4 minutes ago he was here. I have gone 4 minutes into his time, and I yield the floor.

But I want to remind people in closing: Had the President done what he said the goal of the negotiation was—to end their program—we would have unanimous support. Instead, we have a bipartisan majority that opposes this bill, and we have a minority that has kept us, once, from being able to vote up or down. I hope with tonight's vote that will not be the case. I hope we will have the opportunity to send a resolution of disapproval to the President. I know he has said he would veto that, but I think it is important for us and the will of the body and the will of the country to be heard, and for it to reach the President's desk.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. HOEVEN. Mr. President, I rise to voice my opposition to the Iran nuclear agreement and my support for the resolution of disapproval.

Although there are many arguments related to President Obama's agreement with Iran, I would like to focus on the subject of sanctions. I think it is important to consider why we sanctioned Iran, what happens to our sanctions if the deal is implemented, and the prospects for snapping back sanctions in the future.

First, we imposed sanctions because we wanted to dismantle Iran's nuclear program. Again, I want to emphasize that. We imposed sanctions because we wanted to dismantle Iran's nuclear program. As Secretary Kerry said in December of 2013, we imposed sanctions ''because we knew that it would hopefully help Iran dismantle its nuclear program. That was the whole point of the [sanctions] regime.''

These were very serious and are very serious sanctions. According to the Treasury Department, sanctions reduced Iranian oil exports by 60 percent—by 60 percent—from 2.5 million barrels per day in 2012 to just over 1 million barrels per day in 2015. In 2014 alone, the Treasury Department believes Iran lost $40 billion in oil revenue. Sanctions also blocked Iran from accessing most of its billions in foreign currency reserves. In short, Iran's economy today is 15 to 20 percent smaller than it was projected to be back in 2012.

We know these sanctions were having the desired effect because Iran decided to negotiate. The mullahs in Iran would not have come to the bargaining table if they are not feeling the effect of our sanctions. The opportunity to dismantle Iran's nuclear program was in sight, but then we let Iran off the hook. We agreed to a negotiations process that gave Iran room to maneuver.

Instead of boxing them in with relentless economic pressure, we offered sanctions relief in return for mothballing Iran's nuclear infrastructure for a few years. The end result is that the deal undermines the whole point of the sanctions regime. We instituted sanctions to pressure Iran to dismantle its nuclear program, but this agreement provides sanctions relief and leaves the nuclear program intact.

The terms of the agreement will give Iran access to more than $100 billion located in frozen bank accounts. Some estimates put that figure even higher. The windfall Iran expects to receive from foreign investments will strengthen Iran's economy even further.

But let us focus on the initial more than $100 billion in sanctions relief, which is an enormous number. It is equivalent to 25 percent of Iran's annual gross domestic product. For perspective, one quarter of U.S. GDP would amount to more than $4 trillion. So you can see what a huge sum this is to Iran and how much it means to Iran and their economy and, ultimately, to their military. One analyst even pointed out that $100 billion for Iran in 2015 is roughly equivalent to the investment the United States made across Europe over the 4-year Marshall Plan to rehabilitate Europe after World War II. So you realize what a huge impact this will have, what a huge benefit it is for Iran, for its economy, and for its military.

In short, handing Iran $100 billion gives the mullahs incredible flexibility. It is hard to imagine that Iran won't divert billions of these funds to Hezbollah in Lebanon, along with a billion or two for Yemen, and another billion or two or more for operations in Iraq and Syria.

Remember, Iran is the No. 1 state sponsor of terror in the world today. This agreement will provide Iran with money to spend on its aggressive agenda across the Middle East. So one thing is clear—one thing is clear—the world's foremost state sponsor of terror and one of the worst violators of human rights on Earth will receive a huge windfall of cash.

It is also clear Iran's economy and its military would be strengthened. As I said previously, Iran's economy today is 20 percent smaller than it would have been without 4 years of sanctions. Four years from now, without sanctions, Iran's economy will be larger and the regime will have not only more financial strength but also more flexibility to carry out its agenda.

That flexibility will come at a very opportune time for them. Five years into this agreement, the conventional arms embargo will end, per the agreement, and it should be clear to all of us that Iran will then have the money, the resources to buy arms at that point. Three years later, or a total of 8 years after the agreement is implemented, the ballistic missile embargo will be lifted. So in 5 years they can buy conventional weapons and within 8 years they can buy advanced missile technology. And restrictions on Iran's nuclear program will begin to disappear a few years later.

Iran's leaders are probably very pleased with that timing. First, they get sanctions relief, allowing them to grow their economy. That growth will create the investment capital for conventional arms purchases, which the deal permits in 5 years. By then they will be ready to acquire advanced ballistic missile technology—ballistic missiles the agreement allows Iran to purchase in 8 years.

In fact, because their nuclear program will remain intact, at that point Iran could opt out of the deal, finish developing a nuclear weapon, and mount it on a ballistic missile. In short, the President's Iran agreement actually allows Iran a path to finance and develop an advanced nuclear weapon.

Further, the agreement is not only bad on its merits, it is a strategic mistake. It hurts our long-standing Middle East alliances and positions Iran to be the dominant power in the Middle East. We know what Iran will do from a position of strength. It destabilizes Yemen, Syria, and Iraq, foments terrorism against Israel, and opens the door for countries such as Russia and China to meddle in regional politics. Even if Iran never developed a nuclear weapon, the agreement will position Iran to further undermine regional security for years to come. Leaving its nuclear infrastructure in place only makes things worse.

What if Iran violates the agreement? It is interesting to note that many supporters of the deal have argued we must approve the agreement because our allies are already lifting their sanctions and that our sanctions will not be successful on their own. Yet these same supporters of the agreement believe sanctions could somehow be reimposed if Iran cheats on the deal.

Unfortunately, the procedures in the agreement make snapping back sanctions very difficult. Under the terms of the deal, it would take months to establish Iranian violations of the agreement and put new sanctions back in place. Suppose Iran begins to cheat on the deal in a year or two. Under the terms of the agreement, it would take months to establish that Iran had violated the agreement and approve those new sanctions. That is hardly enough of a threat to keep Iran from cheating, but more importantly, the deal permits Iran to withdraw from the agreement if sanctions are reimposed. So snapping back sanctions would effectively kill the deal. Remember, they could kill the deal after they have already gotten more than $100 billion.

The agreement makes it in Iran's interest to cheat on the deal knowing sanctions either won't be imposed or will allow them to pocket the $100 billion in sanctions relief, jump-starting their nuclear program, before any kind of sanctions are reimposed. For this reason, I believe if the agreement goes into effect, it will very likely die slowly from a thousand Iranian cuts, leaving behind a richer and nuclear-powered Iran.

Voting to support the deal essentially means putting faith in Iran. It means believing that Iran will allow the inspections to occur. It means believing that Iran does not have any nuclear facilities that we are unaware of. It means believing that Iran will keep its nuclear infrastructure without attempting to build a nuclear weapon.

I don't believe any of these things. Why? Because over the last 15 years Iran has blocked inspections, revealed the existence of secret nuclear sites only when forced to, and pushed for a nuclear weapon even when claiming they only wanted a peaceful program.

But it doesn't have to be this way. We could seek a stronger agreement. We could make it clear that Iran does not have the right to nuclear weapons and cannot be allowed to obtain them. We could return to our original goal, which was the dismantlement of Iran's nuclear program, instead of negotiating away the leverage that sanctions created.

For these reasons, I cannot support the President's agreement with Iran. Instead, I favor immediate additional sanctions to pressure Iran to dismantle its nuclear program, which was the objective when the negotiations began.

We should not let Iran off the hook. We should not throw away the leverage we developed in recent years through

these sanctions. It takes time for sanctions to work, but the relief is immediate when sanctions are lifted. We need to keep our sanctions, keep the pressure on, and get a deal that actually dismantles Iran's nuclear program.

Mr. President, I yield the floor.

Mr. President, I suggest the absence of a quorum but also request that the time be equally divided.

I yield to the Senator.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. CORKER. It is my understanding that we are equally dividing the time.

The PRESIDING OFFICER. The time is equally divided, but quorum calls are not equally divided unless requested.

Mr. HOEVEN. I ask unanimous consent that the time during the quorum call be equally divided.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HOEVEN. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. CORKER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORKER. Mr. President, I have an inquiry relative to the remaining time.

I am not understanding what the quorum call time is doing relative to the splitting of time.

The PRESIDING OFFICER. By precedent, quorum calls are charged to the side that requests the quorum call, unless there is a request that the quorum call be equally divided between the two sides.

Mr. CORKER. And my understanding was that request was made and granted; is that correct?

The PRESIDING OFFICER. Yes, that request was made and granted in this particular request, but it only applies to the particular request unless it is made on the next quorum call request or unless the unanimous consent would apply to all quorum calls.

Mr. CORKER. Mr. President, I know the public is greatly confused by cloture motions, and I will say, even as the person in charge of the bill, I am confused also, but I will let that stand, and I thank the Chair.

I know the next speaker we are hoping to hear from will be Senator CORNYN at 2 p.m., Senator SCOTT at 2:20, Senator BLUNT at 2:30, and then Senator HELLER at 3 o'clock. I hope they will be down soon, and I will let the time be accruing against both sides by suggesting the absence of a quorum.

I ask unanimous consent that during the period of time there is a quorum call, it be charged equally to both sides.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORKER. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CORNYN. Mr. President, last week we experienced what I would think was a dark day in the history of the United States Senate where, on one of the most important national security issues that has confronted the country in the last 25 years—and perhaps longer—our friends across the aisle, led by the minority leader, decided to filibuster the resolution of disapproval on the President's nuclear deal with Iran.

So everybody understands what that means. Rather than cast a vote either in favor or against the resolution of disapproval, Democrats banded together and decided not to have a vote. Presumably they did that for two reasons: One is they didn't want the personal accountability associated with having to cast a vote for or against disapproval because they know at some point Iran is going to continue its pattern of misbehavior and people might come back and say: Why did you vote for this deal when in fact all the evidence pointed toward how bad a deal it was?

The second reason I believe our Democratic friends decided to filibuster the vote on the resolution of disapproval is they simply wanted to protect the President because they knew that had the resolution of disapproval passed, the President had threatened to veto the legislation. Having done so under that circumstance, the President would in fact own this bad deal.

As I said, it is a sad day when a political party decides to put partisan concerns ahead of the national security interests of the United States. This is especially true in light of the fact that we voted just a short time earlier to provide a mechanism for there to be that up-or-down vote following debate and review. It also had the effect of freezing the President's ability to lift sanctions on Iran during that timeframe.

This legislation, negotiated by the chairman and ranking member of the Foreign Relations Committee, was called the Iran Nuclear Agreement Review Act. This was not a partisan product, nor should any of this debate be a partisan activity. It didn't sneak through the Chamber in the dark of night. It wasn't the product of closed-door negotiations by one political party against another. Rather, it was a product of bipartisan concern over the President's deal with Iran and was specifically designed to make sure Congress had possession of all the relevant documents that laid out this agreement between the President and the Iranian regime. It would ensure a process by which the American people could be informed—and the Senate itself debate—through their elected representatives, whether this deal was a good deal or a bad deal in terms of the national security interests of the American people.

Most significantly, that legislation which sets up that process passed overwhelmingly—as a matter of fact, I think it was nearly unanimously—with not one Democrat in the Chamber voting against that legislation.

So having voted for legislation to create a process by which there would be transparency and accountability, and rather than partisanship the national security interests of the country would be elevated, our Democratic friends, listening to the White House, including the President of the United States, decided to block that very vote they had earlier agreed to have.

Ironically, the same day the minority leader and his colleagues blocked the up-or-down vote on the resolution, he lambasted Republicans on this side of the aisle for ''slowing down the legislation,'' and suggested we ought to move on to other matters. We could be well on our way to finishing this resolution and moving on to other pieces of legislation that we need to consider if in fact our Democratic friends would, consistent with their earlier vote, just allow us to have an up-or-down vote on the resolution of disapproval, but I think what our Democratic friends began to realize is this is an enormously unpopular agreement between the President and the Ayatollah in Tehran. As a matter of fact, only 21 percent of the American people have said they want to see this deal be turned into a reality. Many of them are concerned, as am I, that rather than a traditional treaty process that requires two-thirds vote of the United States Senate, this has somehow become more of a political document rather than a legal document, binding only this President and the Iranian regime, under some circumstances, during the remainder of the 16 months or so of President Obama's Presidency.

Almost 80 percent of the country has said they are not sold on the deal. Their voices deserve to be heard, and Members of Congress and the Senate should be on record whether they are listening to the American people or whether they are listening to the siren song of the White House and a President who is focused on his legacy, to the detriment of the national security of the United States.

Even supporters of this deal were some of its biggest critics. Yet these are some of the same people who voted to filibuster an up-or-down vote on this resolution of disapproval. Many of them made the case as well as or better than I could; that an agreement made with a theocratic regime that continues to call the United States the

Great Satan and threatens the very existence of our friend and ally in the region, Israel—there should be real reason for pause and certainly debate and an up-or-down vote.

Here is just one example. The junior Senator from New Jersey, as a prelude to his announcement that he would vote against the resolution of disapproval, said:

With this deal, we are legitimizing a vast and expanding nuclear program in Iran. We are in effect rewarding years of deception, deceit, and wanton disregard for international law. . . .

That is the junior Senator from New Jersey on September 3, 2015. Does that sound like somebody who is for this deal or against this deal? Well, miraculously, this is from a Senator who voted not just for the deal but voted to even prohibit us from having an up-or-down vote in the Senate. I couldn't agree with these comments more. Our colleague clearly understands the nature of the regime and the pattern of troubling behavior characterized by outright deception. Last week, although headlines emphasized the support of several of our Democratic colleagues for the President's deal, it was clear that many of them harbored deep reservations—and those reservations are entirely justified.

Here is a comment of the senior Senator from Oregon, who said:

This agreement with the duplicitous and untrustworthy Iranian regime falls short of what I had envisioned. . . .

This statement was made on September 8, 2015, by somebody who said they were going to vote against the resolution of disapproval but in fact filibustered our ability to have an up-or-down vote on the resolution itself, and I couldn't agree with the statement quoted from the senior Senator from Oregon any more. This is not exactly a resounding endorsement.

Then there is the senior Senator from Connecticut, who said, on September 8, before he announced his agreement with the President's nuclear deal:

This is not the agreement I would have accepted at the negotiating table. . . .

I presume by saying that, that means he would have rejected it. But yet, again, deferring to the President and deferring to the leadership of the Democratic leader in the Senate, not only did the Senator who made that statement indicate his approval of the deal, this Senator voted to block an up-or-down vote on the deal in the Senate—in other words, participated in the filibuster of this vote.

(Mr. SCOTT assumed the Chair.)

This debate is one the American people deserve to hear. I know the press, as they typically do, likes to keep score and move on to other things, but this is one the American people deserve to hear, and it is one they have demanded—and, frankly, from what they know so far, they don't like this deal. Twenty-one percent have said they approve of it.

Rather than listen to their constituents, our friends across the aisle have decided to essentially block a vote that prevents the kind of accountability our constituents deserve and move on to other issues. But with the future security of our country hanging in the balance, we can't just move on, and we can't disregard the will of our own constituents or what common sense or our own investigation and inquiry tell us; that this deal is an unenforceable deal. It ignores the fact that Iran remains the primary state sponsor of international terrorism. It releases about $100 billion of money that is going to help finance that proxy war against the United States and our allies that has been going on since 1979, when the Iranian regime came into power.

Then there is the bogus verification process. First of all, under the agreement, 24 days' notice along with various—the appeals process, which is a process that only Rube Goldberg would have been able to devise. And then there is the self-monitoring process. It is sort of like a selfie stick that the Iranian regime is going to carry around, where they conduct their own test on their military sites, and then they turn that over to the IAEA—the International Atomic Energy Agency—at the front gate because the so-called independent monitoring agency will not even have access to the military sites where breakouts in violation of this agreement are most likely. It is hardly one that gives you confidence that is going to be conducted with any sort of integrity. Then there is the dramatic change in U.S. policy.

When Prime Minister Netanyahu spoke to a joint session of Congress a couple of months ago, he said it used to be U.S. policy to deny Iran a nuclear weapon, but this agreement, as he correctly points out, paves the way to a nuclear weapon. Again, this is not a rational actor on the international stage. This is an extremist regime—a theocratic regime—driven by a desire to wipe Israel off the map and to conduct this proxy war against the United States and our allies as the primary sponsor of international terrorism. But then there is the final insult to injury. Just as our Democratic colleagues filibustered the opportunity to have any real accountability with an up-or-down vote in the Senate, we learned that the Supreme Leader in Iran has insisted that the Iranian Parliament have the final vote and say-so on the deal in Iran.

Try to fix that picture in your mind. The Iranian regime—the main, principal state sponsor of international terrorism, a theocratic regime determined to wipe Israel off the map and conduct war against what they call the Great Satan, the United States—will have a chance for an up-or-down vote, but our Democratic colleagues have blocked an up-or-down vote in the U.S. Senate. That ought to be deeply troubling to anyone who cares about the Senate and any sort of sense of democratic accountability.

It is beyond irresponsible for our Democratic colleagues to again deny the Senate the very same thing the Ayatollah has said the Iranian Parliament will have a chance to do—especially when they all supported this process by which an up-or-down vote would be facilitated.

Later today my colleagues and I will have another opportunity to move this bill closer to an up-or-down vote on the merits of the President's agreement with Iran. I hope the same senders who clearly supported a thorough review of this deal will join me in moving this bill forward so the American people can get the sort of debate they deserve about the No. 1 national security threat affecting this generation of Americans, and the American people can get the kind of accountability they deserve when it comes from their elected officials casting a vote on their behalf on such an important agreement.

I yield the floor.

The PRESIDING OFFICER (Mr. PORTMAN). The Senator from South Carolina.

Mr. SCOTT. Mr. President, I watched in absolute amazement as the Obama administration attempted to justify what is clearly a misguided gamble and a bad deal with Iran. We saw the signs of how bad this deal was almost immediately, as during the same speech in which he announced the deal, the President threatened to veto any legislation that opposed it. I have been a business owner. When you lead with threats, you typically are covering for a very bad deal, because when you are building support for your product—in this case the Iran deal—you don't tell the folks you are talking to who disagree with you that they are crazy. That is simply something you don't do when you have confidence in the deal.

If you are leading with threats, you are showing your hand. The President is trying to bluff by holding a 2, a 5, an 8, and a 10, and we didn't even bring a fifth card to the table. I use a poker reference because that is exactly what the President of the United States is doing—gambling with our security, gambling with Israel's security, and, frankly, gambling with the future of the Middle East. He was also gambling that his National Security Advisor, Susan Rice, would not admit that the Iranian Government would use resources from lifting the sanctions to fund terrorists, but as we saw on CNN with Wolf Blitzer, she did. He was gambling that his own Press Secretary would not tell us that we should trust the Iranian Government because they would use ''common sense'' and use sanctions relief to help their economy and to help the Iranian people, but he did—even though we have seen no signs whatsoever previously that the Iranian Government cares about actually helping the Iranian people, and their horrific record on human rights has only worsened in recent years.

The President is gambling that he could use international pressure to

convince people he was on the right side of the issue, along with Russia and China, and by bringing the deal to the United Nations before the U.S. Congress, that would somehow show Congress the deal was acceptable—another bad gamble, but it didn't work. The longer we have to study the deal, the worse the deal gets. The longer the American people have to learn about the deal, the stronger their opposition becomes to the deal.

There is not much good news as we look at this deal, as we look at the polling information 2 to 1 in opposition to the deal, the American people. Yet the President refers to those on the opposite side of the deal as crazies—referring to the American people, the vast majority of those folks around our country, so many of us, almost unanimously on the Republican side and even some good friends on the left.

As I said earlier, the President gambles with our security, and we have seen how bad his hand truly is. As I suggested, he has a 2, a 5, an 8, and a 10—a 2 because Iran will be able to double their oil exports and therefore double their oil revenues, increasing by more than 1 million barrels a day—in other words, $15 to $20 billion of additional revenue to fund nefarious behavior in the Middle East. That is more terrorism in the Middle East; a 5 because, without any question, in year 5 of the deal they gain access to more weapons as the weapons embargo is lifted; an 8 because in year 8 of the deal Iran will be able to purchase ballistic missiles; and a 10—yes, a 10—because in year 10 Iran can begin installing advanced centrifuges for enriching uranium. Simply put, this deal legitimizes Iran's nuclear program and guarantees a timeline for Iran to secure the bomb.

If Congress signs off on this deal, we can all take a big red pen and mark on our calendars almost the exact day that Iran will have a nuclear weapon. This isn't a Republican or Democratic issue. Just listen to some of the quotes from my friends on the other side of the aisle: ''The JCPOA, or Joint Comprehensive Plan of Action, legitimizes Iran's nuclear program.''

Another quote: ''Whether or not the supporters of the agreement admit it, this deal is based on 'hope'—hope is a part of human nature, but unfortunately it is not a national security strategy.''

And, finally, ''To me, the very real risk that Iran will not moderate and will, instead, use the agreement to pursue its nefarious goal is too great.''

In what the administration would call an exchange for this, we see the economic sanctions will be lifted, arms embargoes will be lifted, and Iran will have more money and more dangerous weapons to route to groups like Hezbollah and insurgents in Iraq—both groups responsible for the deaths of many American soldiers. That is not a gamble; that is the wrong direction at the wrong time, the wrong deal, and absolutely, positively, unequivocally not in the best interests of this country.

The PRESIDING OFFICER. The Senator from Missouri.

Mr. BLUNT. Mr. President, I am glad to be here and hear the comments from my friend from South Carolina, Senator SCOTT. It made me glad that I get to sit by him on the Senate floor and hear the reasons—and they are good and they have been repeated many times—about why this is not a way forward for the United States. It is not a way forward for the Middle East. In fact, Senator SCOTT did a great job talking about what was in the deal, but what wasn't in the deal was what the President said would be there when the negotiations started.

When the negotiations started, the administration said Iran would never be allowed to have nuclear weapons, that we would find out everything Iran had ever done to try to develop nuclear weapons, that we would have anywhere, anytime inspections, and the sanctions would only be lifted when real progress was made in those first three areas. That was the framework. That was what we were negotiating for. None of those things happened. None of those things are in this agreement.

I think the question that you, I, and others in the Senate are hearing from people, when we are home and when we are talking to people about this agreement is, Is the Congress giving away its power? How is it possible that something like this could happen and the majority of the Congress couldn't do anything to stop it? Of course, the other question is, Is the President giving away the power of the United States of America to lead?

I think it is as clear from this agreement as it is so many other things that leading from behind doesn't work. A view that the United States of America is just any other country in the world is not a view that leads to a peaceful, more stable world. In fact, our friends don't trust us and our enemies aren't afraid of us in a world where there is vast agreement there are more potential bad things that could happen from more potential places than any time ever before. That is not just Republicans; that is the Chairman of the Joint Chiefs of Staff, that is the Director of National Intelligence, and that is the head of the CIA. They all come up with that same conclusion.

We look at the President's foreign policy, that this is just one symptom of—remember the redline in Syria that if the Syrians do this, we are going to do that? The Syrians did what we said we wouldn't allow them to do. Basically, we didn't do much of anything. In fact, what happens is that when the United States of America takes that kind of position and does not move forward, Assad is emboldened. I think the latest number of Syrians who have been killed by Assad is now around 250,000 people, from chemical weapons to barrel bombs, to every way they can think of to massacre their own population—a population that has been displaced in the millions, both inside and now outside the country—so an emboldened Assad. Putin looked at this. Before you know it, Putin took control of Crimea, and Putin has Russian troops in Ukraine. And this week Putin put Russian troops and tanks in Syria.

Every American President since President Truman—I am standing at one of the desks President Truman used as a Senator on the floor, and it has his name carved in it. In 1946 President Truman did whatever was necessary to force the Soviets out of Iran. Every other President until now has done whatever was necessary to keep the Russian influence in the Middle East to a minimum. The Russians are building a base and unloading equipment right now. Why are things happening now? Because they think they can get away with it. That is the Russian reset. The Chinese—the Asian pivot—are building an island on an atoll in the South China Sea that is within striking range of the Philippines. Why? Because they think they can get away with it.

The more we look at the consequences of the agreement, the more we wonder about it. Why aren't we able to stop it? No future administration is bound by it. For weeks now on this floor and around the country, people have talked about the destabilizing impact this agreement will have on the Middle East and the world, and the only administration that is bound by it is this one. It is not a treaty. If it were a treaty, as it should be, we would be voting in the Senate on a treaty and two-thirds of the Senators would have to approve the treaty and the next administration would be bound by it as well.

When Presidential candidates say ''I will reverse this the first day,'' they absolutely can reverse it the first day. What kind of policy is that to put in place, a policy that has this kind of destabilizing effect without even a sense that the United States for the long term is committed to it?

I am sure the President believes that by the time he leaves, every other President would surely want to keep this agreement. But I don't know how one could listen to this debate and think that. It does dramatically change the Middle East. Neighboring countries don't trust Iran, and they will want to have whatever weapons Iran has.

Senator SCOTT just made the point—and made it well—that you can circle the date on the calendar of when Iran is likely to have a nuclear weapon if this agreement goes forward, and more importantly, the hope that maybe the government would change—it might, but that won't keep the neighbors from deciding they have to defend themselves.

As if the 1994 agreement with North Korea wasn't bad enough—they had a missile announcement today, I believe,

and said they have a better delivery system for the weapon they were never going to have—we have truly let the nuclear genie out of the bottle here. Their neighbors will believe they will have to have a weapon when Iran has one, and they also all believe Iran will cheat.

Even though Iran is theoretically on a 12-month clock, it might not be 12 months from the day they say: We are now going into full weapons mode and 12 months from now we will have one. So even if Iran were to change its mind, we will have three or four countries in a very short period of time, in my view, that will have nuclear weapons and nuclear weapons capability that don't have it right now.

We met with Secretary of State John Kerry at the Munich Security Conference in 2014—a conference a handful of Senators normally go to, and I went to that conference that year. John Kerry said: We will be able to know everything the Iranians are doing. We will be able to monitor this with such detail that there is no way they will be able to do anything we don't know about.

At the time, I said to Secretary Kerry: Even if that is true—and I said I don't believe that will be true—you won't be able to contain enrichment. Once you let Iran do this, other countries that are perfectly happy with where they are right now will feel as if they have to do the same thing. There are well over one dozen countries that have nuclear power that don't do what we are about to allow Iran to do. We have been able to control this because the world has understood that it needed to be controlled, but we are now at the beginning of letting this get out of control.

What is the vote all about? It is not a treaty. Why are we voting at all if it doesn't bind the next administration? Why are we having a debate if the administration would like to have the Congress involved in about 2023? That was another great comment that was often made before the law was passed to allow us to do what we are doing today. They said: Well, Congress will eventually have to be involved because eventually they will decide whether to extend the sanctions regime.

By the way, the one that went into effect in 2013 is on the books until 2023. So the ideal day for the Congress to be involved was about 7 years after the administration left office. That would have been the involvement we would have had if Congress had not stepped up and said: We are going to insist that we get involved.

In 2006 Congress took back some of the authority—this is not the first Congress to lose authority to the President—the President had, and we put into law the sanctions that had been imposed by the President at that time. We made them not just President Bush's idea but a law. I was there when that was negotiated, and one of the things we did when we negotiated that was to insist that that be codified and become the pattern—and it did—for all the sanctions to follow.

But the pattern that Congress followed was also a pattern that had been followed since World War II, which is, here is what we are going to do and here is what we believe the President and the country should do, but we are going to give the President national security waiver authority. That is the authority the President has decided to use without congressional approval, without changing the law. He has decided he is going to waive these sanctions and the Congress could weigh in again in about 2023—if the President had totally had his way.

What are we doing here? The President of the United States is about to prop up the No. 1 state sponsor of terrorism in the world. That is an inarguable point. Nobody argues that Iran is not the No. 1 state sponsor of terrorism in the world. They clearly look stronger at the end of this deal than they did at the beginning because they are stronger.

The President of the United States is about to release billions of dollars that the No. 1 state sponsor of terrorism in the world can use for terrorist causes, with the support of a minority of the Congress—not only a minority of the Congress, but that minority happens to all be on one side. There is nothing like this in the post-war history of the country where the country stepped forward in this way on this big of an issue. Not only is a majority against it, but a bipartisan majority is opposed to it. A partisan minority is blocking the Congress from even having a vote while a bipartisan majority wants to vote, and they want to vote to disapprove this deal. Even then the President could still veto the disapproval, but the President doesn't want to do that. The President doesn't want this on his desk.

I think I read the stories the other day when we for the first time couldn't get the 60 Senators necessary to have the vote. The White House announcement was something like this: The congressional vote today ensured that the President's Iranian deal would go forward. The whole time, my concern about this process is that by not stopping it, somehow it would look as if the Congress was for it. We may not be able to stop it, but I can guarantee that Congress is not for it, and anybody who has been paying attention knows that.

A question I think we can ask ourselves: Would Congress and the country be better off without this poor substitute for overseeing a meaningful foreign policy? This is clearly not producing the kind of result a democracy should produce in foreign policy. I think one could argue that it is a weak response. But why did it have to happen?

I cosponsored the initial bill that required Congress to approve the deal, but, of course, a piece of legislation has to be signed by the President. Senator CORKER and Senator CARDIN finally came up with a piece of legislation that the President would sign, but it was almost always guaranteed to ensure that the debate would go forward. So would we have been better off without it? I have had people ask me: What are you guys doing? Why can't you get the foreign policy of the country under some control?

I have wondered several times whether we would have been better off going forward without it. As I have thought about that, it does seem to me that the Corker-Cardin bill has produced a number of things, and one of those is that we have 60 days of debate that we wouldn't have had otherwise. When would the Congress have gotten to weigh in? Eight years from now. We would have had the debate 8 years from now. We have had 60 days of debate. Well over 50 percent of the people in the country are opposed to going forward with this deal. Only about 21 percent are for going forward.

This process has produced bipartisan opposition to a bad deal. Senator CARDIN, a top Democrat on the Foreign Affairs Committee, and Senator MENENDEZ, the other most knowledgeable Democrat on foreign affairs, Senator SCHUMER, and Senator MANCHIN voted with the 54 Republicans. So 58 Senators don't want this to happen, and 60 percent of the House of Representatives are opposing this agreement. The White House would have liked to have Congress have a say almost a decade from now.

We have had our say, and we should have our vote. We should be allowed to put this bill on the President's desk, and if he wants to veto it and defend that veto, that is how this process should work.

I hope there is still a chance that two more of our colleagues will step forward and say: While I am going to be on the other side of the final vote, I think the Congress should vote. We had 98 Members vote for this bill that said Congress should vote to either approve or disapprove this agreement. Let's have that vote, and let's have that vote today.

I yield the floor.

The PRESIDING OFFICER. The Senator from Mississippi.

Mr. WICKER. Mr. President, I agree with the distinguished Senator from Missouri in every respect, and I hope we get our wish to have that meaningful vote later on today.

I thought I would take a few moments to explore a history lesson. Edmond Burke once famously said: ''Those who don't know history are destined to repeat it.'' I think most people agree with that statement, which is why we find so many variations of that quote. One of my favorite variations is by Mark Twain: ''History doesn't always repeat itself, but it does rhyme.''

I think the history of events leading up to World War II is an appropriate

period for examination during today's Iran debate, and I believe it is important to explore the question of whether the disastrous history of the Munich Agreement can be instructive to Americans and even to our allies during the current debate. Munich has been cited numerous times in opinion pieces about the Iran agreement, and it has been mentioned on both sides of the debate in this Chamber. Furthermore, we have been cautioned, even scolded by various opinion-makers around the country that we dare not make comparisons between Munich and the current situation. In this view, even uttering the words ''Neville Chamberlain'' or ''Munich'' brings to mind such painful memories from the dark past that we simply should not go there. I do not agree. If history does rhyme, perhaps it is helpful to examine history and look for parallels today.

For those who may not have recently studied the years leading up to World War II, let's review the Munich Agreement. In September of 1938, Hitler's aggression was fully underway. In his sights at the moment was Czechoslovakia. Leaders met in Munich, Germany, in an ostensible effort to avoid war. Those leaders were Adolf Hitler himself, French Prime Minister Edouard Daladier, Italian dictator Benito Mussolini, and Britain's Prime Minister Neville Chamberlain. The agreement they announced with much fanfare at the end of September 1938 was that Nazi Germany would be given control of the German-speaking portion of Czechoslovakia, known by some as the Sudetenland. In return, Hitler agreed to stop his advance and to not make war. Against the backdrop of all of Germany's aggression to date, of its violations of the Versailles treaty, the Fuhrer gave his solemn assurance in writing that there would be no more expansionist activity.

We all know that upon his return to London, Chamberlain announced triumphantly that there would be ''peace for our time.'' The bold headline across the top of the Daily Express displayed the word ''peace'' with an exclamation point.

Of course, a number of wise people immediately saw the false dream for what it was. Soon after, Winston Churchill rose in passionate opposition on the floor of Commons. He first made it clear that he held the opponents of the agreement in high personal regard, as many of my colleagues have also done already during this debate. Then he launched into a scathing denunciation of the bad deal, characterizing it as a total and unmitigated defeat for Britain and France, not to mention a betrayal of defenseless Czechoslovakia. He went on to predict correctly that rather than preventing war, the Munich accord would assure war.

Sadly, for millions and millions around the globe, Winston Churchill was correct and Neville Chamberlain was tragically mistaken. Within months, Hitler was at it again, annexing the rest of Czechoslovakia and setting his sights on Poland and beyond.

I think it is appropriate to ask ourselves: What would Churchill have said about today's debate? And what would Chamberlain be saying if he could speak to us today?

Let's look at the parallels. At Munich, Britain and France abandoned a steadfast ally. Similarly, today's agreement has been reached over the strenuous objections of Israel, our most reliable partner in the Middle East. I must emphasize that this opposition comes not only from the current Prime Minister and his Likud governing majority, but also from his opponents in previous elections—from virtually every point on Israel's political spectrum, from labor and from center-left voices. Here is the near unanimous outcry from our Israeli friends: Iran poses an existential threat to Israel, and this bad deal makes matters worse. It makes us less safe. It makes our friends, our neighbors less safe.

As the whole world watched, the Munich agreement sent a chilling message to the rest of Europe and to the rest of the world about what could now be expected from France and England. Today, our Sunni Arab friends in the Middle East are mystified and dismayed by this Iran deal. Understandably, their public reaction has been guarded and even muted. Most are hedging their bets, but make no mistake, this is not the strong anti-proliferation nuclear agreement they had hoped for.

This current deal and the Munich deal are also similar when we consider the history and behavior of the parties to the agreements. Like Hitler, the current Iranian regime has repeatedly demonstrated that they have evil motivations and that they cannot be trusted. Consider the most recent activities and pronouncements of the Iranian Supreme Leader and his team.

This deal has been made with a regime that still leads cheers saying ''Death to America'' and believes in the destruction of the Jewish State. The mullahs, the ayatollahs, and the people in charge of Iran have shown no indication that they are trustworthy. Ayatollah Khamenei last month published a new book that once again makes it explicit that it is Iran's foreign policy to obliterate the State of Israel. Just last week, he called America the Great Satan and said Israel would not exist in 25 years. Israel would not exist in 25 years, according to the other party to this agreement.

Under this agreement, embargoes on arms and ballistic missiles will be lifted in 5 and 8 years respectively, allowing the biggest exporter of terrorism to build up conventional weapons. And have we forgotten the fact that Iran has been cooperating with North Korea on ballistic missiles for years?

Of course, the scene in 1938 is not entirely similar with that of today, as has been pointed out. Seventy-seven years ago, Nazi Germany at least gave lip service to leaving the rest of the world alone. Wise people knew this to be a lie, but at least the Nazi dictator signed such a promise. Today, the Iranian dictatorship makes no pretense of abandoning its goal: the complete elimination of Israel from the map. And this bad deal gives them the wherewithal to do just that: a $100-billion stimulus. The lifting of sanctions, which the United States and our eager European allies have agreed to, will expand Iran's gross domestic product by roughly one-fifth, not to mention relief from sanctions on deadly conventional weapons and ballistic missiles.

In 1938, Chamberlain said, ''Peace for our time.'' We may wish he had been correct, but such an outcome was so unlikely, the deal so risky and ill-advised, that it was merely a wish, albeit a dangerous and deadly wish.

In 2015, Secretary John Kerry has called the current deal ''a plan to ensure that Iran does not ever possess or acquire a nuclear weapon.'' Did my colleagues hear that: Not just for our time or for a decade, but never, according to the distinguished Secretary of State.

President Obama says this agreement marks ''one more chapter in this pursuit of a safer, more helpful, and more hopeful world.'' Such statements have a familiar and troubling ring. Such words could have been uttered in 1938. And I wonder if Mr. Chamberlain's followers ever said, in defense of the Prime Minister's action: This isn't a very good deal, but what other agreement is out there? What other choice do we have? I am willing to bet some people actually said that. The other choice might have been to stand up against a murderous bully, to stand by a friend.

This resolution of disapproval is not just an opportunity to sound off. It has not been about sending a message. This procedure was designed, as the distinguished Senator from Missouri said before me, as the only way to prevent a bad Iran deal from actually going into effect. We always realized it would take a bipartisan majority to succeed. There are currently 58 Democrats and Republicans who are willing to say officially to the President: Start over and get our Nation a better deal. We, frankly, need nine more courageous Senators to step forward and say no to this deal. We are told the die is now cast, that the votes simply are not there. But I will say to my colleagues today, there is still time to do better for the American people. The doubts have repeatedly been expressed by Senators who have said they will nevertheless vote with the President.

Senator BOOKER, in announcing that he will support the President, said: We are legitimizing Iran's nuclear program and rewarding years of bad behavior. Yet, he will vote to support the President.

Senator COONS: I am troubled and deeply concerned.

Senator BENNET: None of us knows . . . and I have deep concerns.

Senator WYDEN: It is a big problem, having to deal with Iranian leadership that wants a nuclear enrichment program.

Senator PETERS: Enrichment of uranium is a stark departure from America's nonproliferation policies. Indeed it is. Senator PETERS goes on to say: The agreement could set a dangerous precedent.

We need these Senators to change their vote and to vote for the resolution of disapproval.

Senator BLUMENTHAL said: Not the agreement I have sought.

Senator MERKLEY said: Significant shortcomings.

According to Senator GILLIBRAND: Legitimate and serious concerns are there.

Senator FRANKEN acknowledges it isn't a perfect agreement.

Alan Dershowitz, a Harvard law professor emeritus and expert on the Middle East—and hardly a neo-con—summed up the President's deal with Iran in his book, ''The Case Against the Iran Deal.'' He said this:

> Hope is different from 'faith,' though neither is an appropriate basis on which to 'roll the dice' on a nuclear deal that might well threaten the security of the world.

''That may well threaten the security of the world,'' according to Professor Dershowitz.

He goes on to say:

> The deal as currently written will not prevent Iran from obtaining nuclear weapons. In all probability, it will merely postpone the catastrophe for about a decade, while legitimizing its occurrence. This is not an outcome we can live with.

I appreciate people such as Alan Dershowitz having the courage to write a book and explain chapter and verse, page by page, the legitimate reasons why this threatens the security of the world and why America should not be willing to live with this deal.

I say we should heed the warnings of people such as Alan Dershowitz. We should heed the warnings of history. There is still time to reject this ill-advised agreement. There is still time to get a better result for our people, to get a better result for our future.

Thank you, Mr. President.

Seeing no other speakers, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. LANKFORD. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. LANKFORD. Mr. President, I do have concerns as well. Typically we reward people for a change of behavior; that is good behavior, going from bad to good—not static, old, bad behavior. The concern I have is with Iran. We have seen no change in behavior. The same battles are happening in Yemen as they are leading a coup. The same issues are happening in Syria where Russia and Iran are working together to prop up Bashar al-Assad. They are causing trouble in Bahrain. There is the same behavior in Lebanon with Hezbollah. There has been no change in behavior. Yet, the administration is determined to make an aggressive nuclear deal to change the status quo on our sanctions on Iran based on the hope of some future new good behavior when we have seen no present change in the behavior of Iran.

This doesn't line up with some of the statements from our own administration. For instance, in November of 2013, Secretary Kerry said that ''there is no inherent right to enrich. . . . We do not recognize a right to enrich.''

In December 2013, President Obama said, ''we know [fully that] they don't need to have an underground, fortified facility like Fordow in order to have a peaceful nuclear program.''

At the same time, in December of 2013, President Obama said, ''They don't need some of the advanced centrifuges that they currently possess in order to have a limited, peaceful nuclear program.''

But under this deal, not only are we giving them the right to enrich, not only are we allowing them to have fortified underground bunkers, we are also allowing them to have advanced centrifuges that the President has stated there is actually no reason for them to have, unless they are not using them for peaceful purposes.

I have heard over and over again for the last several days in this Chamber the conversation: If someone has a better deal, you should propose it, but this is the best deal that has been proposed.

Well, let me just throw a few ideas out there as a better deal for a proposal.

First, why don't we do this as a proposal: Why don't we actually have the opportunity to read the agreement? We would like to be able to see it. No one in this Chamber has seen all aspects of this agreement. No one in the House has seen all aspects of the agreement. It is not that we will not read it, we can't read it, because even the administration has said they have not read the entire agreement.

Now, I will state that we don't allow secret side deals between a bank and a car dealer when one is buying a used car. We certainly don't allow secret side deals that no one can see between the U.N. and Iran. I am astounded that this body is OK with signing off on an agreement that absolutely no one has read in its entirety. In fact, the administration has said they haven't even seen it.

The White House wants to have it both ways. They don't want to turn over the documents which the statute requires, but they also want to keep the part of the law that says Congress has only 60 days to review it. They want to say that by the end of this week it is done—but, no, we are not ever going to turn the documents over that the statute requires.

How about this for a different idea of what we can do for an agreement: They don't keep the advanced centrifuges. Since even the President has said there is no peaceful purpose for those centrifuges, if we are going to have a good, solid agreement, they do not keep the advanced centrifuges. Not only do they keep them, they keep them in cascade, they keep them running, they keep them spinning. There is no change in behavior on those centrifuges other than the promise that they won't put uranium in them.

How about this for an idea for a better agreement: We have onsite inspections that would actually allow Americans on the inspection team.

How about this for a better agreement: We don't lift the ban on missile testing and research on Iran which allows Iran to start missile testing and R&D again on ballistic missiles. We don't lift the ban on conventional weapons sales to Iran, which will allow Iran to start buying large supplies of conventional weapons and surface-to-air defense systems.

How about this change for a better agreement: Iran turns over their previous military dimensions of their nuclear program. They stated over and over again they don't have a nuclear weapons program or ambitions. What would be the problem, then, in inspecting their research facilities and their technology if nothing existed?

How about this for a better agreement: We don't agree to defend Iran in case in some future time they are attacked in their nuclear facilities by Israel. I think that is absolutely absurd to have in this agreement.

How about this: We at least allow Iran the opportunity to publicly acknowledge that Israel has the right to exist—and they currently don't acknowledge that Israel even has the right to exist—or we get our American hostages back, since we are lifting the sanctions on the individuals who personally killed hundreds of American soldiers. Those sanctions are lifted. Why can't we have our American hostages back?

Here is one simple idea: Why don't we have the same nuclear agreement with Iran that we had with Libya? When we negotiated the agreement with Libya years ago, their program actually ended. They actually turned their centrifuges over. They turned their nuclear material over. They allowed anytime inspections. While this administration continues to say over and over again that what we are asking for is not possible, it was actually done by the last administration in Libya.

This is not asking for something new or radical or different. This is asking for something enforceable and clear. Why can't we have the same nuclear agreement with Iran that we made with Libya and actually stop Iran from advancing toward a nuclear weapon?

I am convinced we can do better—we must, for the security of the Nation as a whole.

With that, I yield back.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCAIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. LANKFORD). Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, I ask unanimous consent to address the Senate as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCAIN. Mr. President, a few hours from now the Senate will vote again on the Iranian deal. I think it is pretty well known that no votes will change. It is very unfortunate that that is the case. But it will give our colleagues, hopefully—they may have contemplated how bad a deal this is and possibly change, but obviously we know the likelihood of that is unlikely.

The virtues of this legislation have been emphasized by my friends on the other side of the aisle. Those of us who have grave and serious concerns have also been articulated. But I think it is well to point out that this will be the first major agreement or treaty in history that is voted on on strict party lines. Not one single Senator on this side of the aisle will be voting in favor—not one—a degree of partisanship concerning an issue of the greatest importance, in my view, of any treaty or agreement since that agreement Neville Chamberlain made with Adolph Hitler in Munich in 1938. So that part of it, in my view, is a failure on the part of the President of the United States.

I know many of us, including myself, were willing to listen and consider any agreement that was verifiable and enforceable that would have prevented the Iranians from acquiring nuclear weapons. In fact, it was stated by the Secretary of State that the object of this agreement was that Iran would never have nuclear capability. Now we all know it is a matter of time. Whether it is 1 month or 10 years or 15 years, whatever, we don't know. They notoriously cheat. That is one thing we do know. So the fact is that we went from preventing Iran from having a nuclear capability—and they came to the table not because of renewed zeal for that but because their economy was so badly hurt because of the sanctions which had been imposed on them and which after this deal can never be reimposed. Let's be frank and candid with our colleagues and with the American people.

So here we are faced with an agreement that should have been a treaty. I know of no observers of the Constitution, both known as liberal interpreters and conservatives, who interpret the Constitution who agree that this is anything but a treaty of transcendent importance, and we, of course, are treating it as an ''agreement.'' Well, the bad news, I say to my colleagues on the other side of the aisle who will be voting for this, is the next President of the United States can repeal this, can negate it. That would not have been the case if it was a treaty because then it would have been ratified by the Constitution and the Congress, specifically the Senate.

So, in the short term, apparently the President and his minions have succeeded. In the long term, this will cause a grave threat to the security of the United States of America.

I say to my colleagues, you know, this is an agreement that we are discussing, and I will talk about the failings of it as I see them, but far more importantly, the President of the United States and the Secretary of State treat this as if it were in a vacuum. It is not in a vacuum. You cannot consider this agreement unless you look at what is happening in the entire world today.

REFUGEE CRISIS AND AMERICAN LEADERSHIP

Mr. President, according to anyone who is an expert on national security, including people such as Henry Kissinger, Madeleine Albright, Brent Scowcroft, and the list goes on and on, the world has never been in more turmoil than it is today. That does not take a great deal of intelligence or study; all you have to do is watch television or read a newspaper. The United Nations head of refugees has said: There have never been more refugees in the world since World War II than there are today. You can't turn on the television without seeing the terrible plight of these refugees who have had to flee their country because of the brutality and genocide committed by Bashar Assad. You can't do that without seeing it.

Some in the media and some of my friends on the liberal side treat this as if it were a hurricane, an earthquake, a natural disaster that just sort of happened. It did not just happen, and it did not have to happen. What has happened with these refugees is a direct result of the failed, feckless policies of this administration in general and this President in particular.

This is the President of the United States who overruled his national security team when they said that we should arm and equip and train the Free Syrian Army to go in there and fight against Bashar Assad. This is the same President who said: It is not a matter of when, it is a matter of whether Bashar Assad leaves office. This is the same President of the United States who announced to the world that Bashar Assad had crossed the redline and we were going to retaliate—only, of course, to hear that the President decided not to.

I tell my colleagues, you cannot overstate the impact the President's decision had after he warned Bashar Assad, after he said that if they crossed the redline we would act and we did not. I am not sure many Americans are aware that the Saudis had aircraft on the runways ready to join in those attacks and they found out on CNN. Is it an accident that we have seen the Saudis visiting Moscow? Is it an accident that for the first time in its history we see the Saudis buying Russian equipment? Is it astonishing to our colleagues and friends that the Saudis have taken it upon themselves, along with UAE and other Gulf States, to intervene in Yemen against the Houthis, who are Iranian-backed, Iranian-trained, Iranian-equipped? No, it is not an accident. None of these things have happened by accident.

Now we see a nation called Syria with over 230,000 killed and millions in refugee status. The surrounding countries, particularly the small ones, particularly Jordan and Lebanon, are literally overwhelmed with refugees. Today, I tell my colleagues, there are more Syrian children in school in Lebanon than there are Lebanese children in Lebanon. When you look at the size of the influx of the refugees into those two countries, some wonder in some ways how they have maintained their stability.

All of it did not have to happen. It did not have to happen.

The President of the United States decided to withdraw every single one of our combat troops in Iraq, saying at the time: We are leaving a prosperous, free, democratic Iraq. Does anybody believe that? Of course, so many of us argued: Please, leave a sustaining force behind—which they could have. Anyone who says we couldn't have is lying. I don't use that word casually because LINDSEY GRAHAM and JOHN MCCAIN were in Baghdad when Maliki said: OK. He said: OK. I will keep troops. I will keep American troops. How many? How many and what mission?

That answer never came from this administration until the Chairman of the Joint Chiefs of Staff testified before the Senate Armed Services Committee that it was down to 3,500—in his words, it cascaded down to 3,500.

So now here we are with the greatest humanitarian crisis, again, since World War II, 70 years ago. Here we are with this situation, and Americans' hearts are going out to these people. Can any of us who saw the picture of the drowned little baby on the beach ever forget that? It did not have to happen. It was because this President and this administration and its minions refused to exercise American leadership when we refused to arm and equip and train the Free Syrian Army, overruling his then-Secretary of Defense, Panetta; overruling his then-Secretary of State, Clinton; overruling his Director of the Central Intelligence Agency, GEN David Petraeus. It is well known that they all recommended arming the Free Syrian Army. At that time, Bashar Assad was in serious jeopardy. So what happened? The Iranians—the same Iranians we are concluding this deal with—called in 5,000 Hezbollah, had Soleimani in charge of the Iranian

Revolutionary Guard while tens of thousands have been slaughtered—well, 230,000 is one estimate—with barrel bombing.

Do you know what barrel bombing is? It is a huge cylinder. It is filled with explosives and shrapnel. They drop it. It explodes, and it spreads shrapnel everywhere. It is a terrible weapon. It is a terrible weapon. Bashar Assad has been using it continuously. Who is giving him that stuff to use? The Iranians. The Iranians are the ones who are doing it.

It is the Iranians who are supporting the Shiite militias in Baghdad. It is the Iranians who are supporting the Houthis, who have taken over a great part of Yemen and would have taken over all of it if it had been up to us as we sat by and watched. The Saudis and UAE have decided to go in because they could not afford to have—look at where Yemen is on the map—they could not afford to have Yemen under the control of the Iranians.

So here we are. So here we are. Now the news of the last few days is—guess what. The Russians are now building bases—a serious military buildup in Syria. Why? Because they have to prop up Bashar al-Assad. This misguided, delusional administration thinks that only they can attack ISIS and not attack Bashar al-Assad and his killing machine.

My friends, in the name of human decency, in the name of the tradition of the United States of America helping those who are being slaughtered, we should tell Bashar al-Assad: You cannot fly those helicopters and those planes anymore and drop these terrible weapons. We are going to shoot you down if you do it. We are going to establish a free—safe zone on the Turkish border. We are going to have the refugees go there, and we are going to feed them, we are going to clothe them, and we are going to take care of them. And don't you fly an airplane over here or we are going to shoot it down.

That is the message we should have to Bashar al-Assad. And now, what is happening now? The Russians have decided they are going to intervene militarily on the side of Bashar al-Assad.

Now, my friends, it has been Vladimir Putin's practice and ambition to expand the ''near abroad.'' That means moving into Ukraine, taking Crimea in violation of the Budapest agreement, it means putting huge pressure on the Baltics, and it means propaganda campaigns and other pressures that are even on countries such as Sweden and Norway in the Arctic. All these things Vladimir Putin is doing is sort of an expanding influence from Russia.

Now, my dear friends, you see him leapfrogging over to Syria to maintain his base on the Mediterranean and that is a somewhat radical departure. But not to worry, my friends, the Secretary of State called the Foreign Minister, Lavrov—the old Stalinite apparatchik that he is—and expressed his concern. So the American Government expressed their concern. Well, that ought to pretty well take care of it.

Meanwhile, what about China? In the last day or two, there was a meeting, and a Chinese admiral, sitting between an American admiral and another admiral, stated: ''The South China Sea belongs to China.''

A few days ago, the President of the United States went to Alaska to rename a mountain. I guess that is a reason for a trip. I will leave that to others to judge. So he goes to Alaska and guess what happened. By coincidence—by sheer coincidence—for the first time in history, five Chinese warships showed up off the coast of Alaska, penetrating the 12-mile zone—the first time in history. Now, I am sure that was just a coincidence that the President of the United States happened to be in Alaska at the time that these Chinese ships showed up off the coast of Alaska. Every time we turn around, we are seeing nations react to a lack of American leadership.

And so we are going to, of course, now vote—not to approve this agreement, because if it was a straight up-or-down vote, it would be a disapproval. It would be a significant disapproval, as a matter of fact—just not 60. I believe it is 57 or 58 Senators who will vote that they do not want to have the sanctions relieved that have been imposed by the Congress.

It is a sad day. It is a sad day. Just as briefly as possible—because we have been over all of these before—there is no doubt there are almost no enforcement and verification procedures. In fact, again, this is for the first time I think that the Senate of the United States is being asked to approve of an arms control agreement—which is basically what this is when you get right down to it—without knowing the verification procedures. It is a deal between the IAEA and Iran. I still don't get it how anybody can support an agreement that we don't know the most vital elements of. That is still beyond me.

Obviously, in the place where we found most of—some of their real secret activity buried in a mountain, that inspection will be conducted by the Iranians themselves. Remarkable.

Of course, the past nuclear activities, so-called PMD, one of the requirements—one of the interesting aspects of this is to see what was said at the time in the beginning and what actually happened, such as the Secretary of State saying: We must know what their previous military activities were. We must know that because otherwise we cannot—guess what. We are not going to know that. Particularly, though, the aspect of verification bothers me about as much as anything else.

So now we have the Iranian Revolutionary Guard sustaining the Shia militias in Iraq. We have the Iranians funding Hezbollah, which is now the major problem for the Bashar al-Assad regime. We now have the Iranians supporting the Houthis, who, as I mentioned, are trained and equipped by the Iranians in an attempt to take over Yemen. The Iranians are now providing weapons to the Taliban in Afghanistan.

If they are doing all those things, and they are not changing their behavior, what in the world do you think they are going to do with $100 billion? Spend it on growing poppy, maybe building a YMCA? Of course not. They are going to continue their activities of supporting terrorist organizations throughout the Middle East with another $100 billion. This is what troubles me more than anything else. Has anyone in this body seen any indication of a change in Iranian behavior? If so, I would be more than eager to grasp that straw because everything I have seen—and the statements in just as short a time as 2 or 3 days ago—the grand Ayatollah says in 25 years Israel will no longer exist.

Is that the background, is that the atmosphere of some kind of agreement of this nature, where they are going to get $100 billion? It is confounding, and it can only be explained by this incredible delusion on the part of the President and the Secretary of State—whom he has had for the last 6½ years—that if we somehow get an agreement with the Iranians, there will be an arrangement in the Middle East, and Iran and the United States will be partners against radical Islam—yada, yada, yada. That is impossible in light of Iranians' stated ambitions, and of course the Israelis—of course the Israelis are deeply disturbed.

All I can say is this is not a good day. This is not a good day. This is a day when votes are taken—again, for the second time—on one of the most impactful situations in the history of this country post-World War II; that is, that this agreement will allow the Iranians, to a degree of latitude and a degree of capability, to spread their terror and their acts of terror throughout the Middle East in a far more effective fashion.

Yes, we are war weary. Yes, Americans don't want to be involved. Yes, we know all of those things, even though it is 1 percent of the American population who actually serves in the military, but the fact is that sooner or later, as a result of this, the United States of America, unfortunately, will have to be engaged militarily.

I hate to make that prediction, but I have been a student of what is going on in the Middle East for a long period of time. I have seen Iranian behavior, and I have watched what they have done—not just the rhetoric but their behavior. They are propping up a guy who has killed 230,000 of his country's men and women and driven millions into exile. Now we are feeling the effects of it in Europe and soon in the United States of America.

It is shameful—it is shameful—that we allowed this guy to slaughter so many hundreds of thousands of people. And who supported them, who backed them, and who bailed them out when

the President of the United States said: Oh, it is not a matter of whether Bashar al-Assad leaves, it is a matter of when. The President of the United States said: It is time for Bashar al-Assad to leave. Bashar al-Assad will be in office after this President of the United States. So it is not a good day.

There have been other times in our country—there was a good book that was written about America before World War II called ''While America Slept.'' There was another great book by a professor at Texas A&M about how unready we were prior to the Korean conflict. We thought we were never going to be in another war, and we were totally unprepared when North Korea attacked South Korea.

Now here we are—with blame on both sides of the aisle—continuing to cut our military, continuing to reduce our capabilities, and continuing to reach a point where the retiring Chief of Staff of the U.S. Army says we can no longer adequately defend the Nation against some of its threats, and, to cap it off, we are now going to see an agreement which will unleash the furies of Hell.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Illinois.

TRIBUTE TO DENA MORRIS

Mr. DURBIN. Mr. President, I wish to take a moment to thank an important member of our staff. Her name is Dena Morris, and she is with me on the floor today. Dena has worked for me for 12 years. The last 8 years she served as my legislative director, and she is going to be leaving soon for a new professional opportunity.

When she first told me the news, my first reaction was: ''Say it ain't so,'' but Dena had an offer she could not refuse. Next week, Dena Morris will join the U.S. Centers for Disease Control and Prevention as the Agency's Washington Director. Her new position, I have to admit, is a perfect fit. It will allow her to combine her exceptional management skills, her deep understanding of public policy, and her strong commitment to public service in ways that will benefit America's families and businesses.

I already know Dena is going to do well because she has done so much for me, for the people of Illinois, and for our Nation.

There is one thing that really tells you a lot about Dena's commitment to public service and the public good. Dena Morris came to me 12 years ago. She left a K Street law firm and came to the Senate to work as a staffer. She took a substantial pay cut to do it. She started in my office as a legislative assistant handling education issues. Her portfolio quickly expanded to include public health and then all of the health care issues. By 2007, it was clear to me she was the right person to direct all the legislative activity in my office. Even with all the promotions and the new titles, Dena still earns less today than what she earned at that law firm she left 12 years ago.

So when I hear my fellow Senators come to the floor and talk down our staffs and talk about denying them basic things such as health care coverage, I think about Dena and the hundreds just like her who make the Senate work. They do it not for the money, not for the benefits but because they want to leave a mark. Dena has done that. You see, instead of making mountains of money, Dena chose to help and to help the Senate make history. For that I am ever grateful.

It will take too long to recite all the things she has worked on, but I can list a few: the American Recovery and Reinvestment Act—it was the economic stimulus that was initiated by the Obama administration to bring America out of the great recession after the 2008 economic crisis—her work on the Affordable Care Act, which has brought affordable, reliable health care to 16 million Americans, including 800,000 people in my State of Illinois, and reduces the national deficit. Dena was my legislative director when Congress passed the first Wall Street reform act in 7 years. She helped steer legislation to cut the cost of student loans, to help save the American automobile industry, and to give the FDA, at long last, the authority to regulate tobacco.

Her contributions extend beyond the historic laws that she has helped to pass. Probably her greatest contribution, from a very selfish point of view, is that Dena Morris assembled my team. She took the time to bring together an extraordinary group of bright, committed public servants, just like herself, who reflected my values, her values, and her work ethic.

Lots of people think about Sunday morning as a time to kick back and relax. My staff, and Dena knows this personally, lives in fear of Sunday morning because that is when I have the time to leisurely go through the newspapers, to watch television, and to get on my cell phone and e-mail my staff about all the new ideas I have for the coming week. It is a drill Dena knows well and which she handles with skill and does so effectively. I think it is her daily yoga practice that helps her maintain her even keel.

I want to thank her husband Peter Rogoff, who has joined us. He is a former longtime Hill staffer, and I want to give special thanks to their kids, Niles, now in high school, and Lulu.

It was about a year after Dena joined my staff that she brought Niles and Lulu to the office for a take-your-children-to-work day. They were about 6 and 4 years old at the time. So I met with all these kids from my staff members, and I said: Do you have any questions? Niles raised his hand, and he looked at me and he said: How come my mom has to work so late?

It was a funny moment, an embarrassing moment in a way, but I think Niles and Lulu know now what the answer is. It is because their mom cares so much about what she does and cares so much about the people she can help.

That is a bit of a story of Dena Morris' career. When she worked for that K Street law firm, she specialized in advancing legal and civil rights for people with disabilities and their families. She started that work just 3 years after the Americans with Disabilities Act became law. She was on the leading edge of one of America's great civil rights struggles.

Two other things worth mentioning: Dena's first job in Washington, before the law firm, was working as an intern for her home State Senator, Dick Lugar of Indiana. It was an unpaid internship, as most of them are. So to pay the rent Dena had to work five nights a week on Capitol Hill at another unique Washington institution—the Hawk and Dove—which happens to be a local popular Capitol Hill watering hole.

Finally, Dena is one of six children. Her dad is a Baptist minister. In her whole family of origin—parents and siblings—Dena Morris is the only Democrat. She is a brave woman, and she tells me they do not really talk a lot about politics at family gatherings. Her parents may not share her politics, but I know they share our pride in the work she has done for America.

I have no doubt she will continue to use her talent and her energies to move our Nation forward.

Dena, thank you for your service.

SYRIAN HUMANITARIAN CRISIS

Mr. President, I listened to my friend, the Senator from Arizona, Senator MCCAIN, and this is the second time I have heard him on the floor talking about the tragedy, the humanitarian crisis associated with Syria. I couldn't agree more.

I also take note of that heartbreaking photograph of that 3-year-old boy who drowned as his family tried to escape Syria, ultimately bound for Canada. In the crossing of a body of water, their boat capsized, and the mother and two children were lost, and the lifeless body of that infant washed up on the shore.

When I think back, and people ask, what do you remember about the Vietnam War, I remember a lot of things, but the image I remember is a photograph of a little girl stripped naked, burned with napalm, running down the road screaming. I can't get that out of my mind. Vietnam—I think of that photo.

When I think of Syria, and what is going on with this humanitarian crisis, I think of the photo of that little boy. It is heartbreaking. I get emotional thinking about little kids who I love in my family facing that kind of tragedy.

There are two things I would like to say. I think it is fundamentally unfair to blame the Syrian crisis on this President. This is a crisis which reflects the Arab Spring, it reflects changes in the Middle East that have been going on for 30 years plus, and no country has really come up with a good solution to stop the bloodshed and killing in Syria.

I am sorry my colleague from Arizona is not here, but I would acknowledge and remind him there was a time when the President came to us and said: I want to do something. President Obama said: I want to do something about chemical weapons in Syria. The Senator from Arizona—and I might add the Senator from South Carolina—joined us in the Foreign Relations Committee in moving this issue forward to give the President the authority to do something to stop the use of chemical weapons in Syria, and it died before it came to the floor because there was no support—no support on the floor from the Republican majority in the House or the Senate.

So to say this President has not taken action, he has. And you cannot overlook the fact the United States of America, through the generosity of its taxpayers and the leadership of this President, leads the world in humanitarian relief in Syria. We believe we have invested almost $4 billion—more than any other nation on Earth—for these poor people who are suffering there.

Can we do more? Should we have done more? Of course, in hindsight, things look so much clearer. I pushed for—and this administration is working on something the Senator from Arizona has also endorsed—a humanitarian safe zone. There ought to be a piece of Syria where people can go for medical care and know they are not going to be killed by these barrel bombs and attacks. I know the administration is working on that with Turkey. It has gone very slowly. I wish the pace would pick up.

A friend of mine, Dr. Sahloul in Chicago, a Syrian American, has made a dozen trips to Syria, to Lebanon, to Jordan giving free medical treatment to the Syrian refugees, and he tells the story in graphic terms—and many times brings back heartbreaking photographs—of what these barrel bombs are doing. I hope we can find some diplomatic or military solution in Syria.

In the meantime, here is the question we must ask ourselves: What will we do about these millions of refugees? We will give money, of course, to our allies that are creating camps for them. I visited one of those camps in Turkey, and I have to say I was really a great admirer of the leadership of that country in accepting at this one camp 10,000 people—one camp. And there are many more, hundreds of thousands all over the Middle East, fleeing out of that region. So now what will we do about the refugees?

The Senator from Arizona reminded us last week these are refugees, not migrants. They are the people who are victims of war who are fleeing with their families.

On Friday I was in Chicago and met with four of these Syrian families who are now refugees in the United States. They told heartbreaking stories of losing members of their families and fleeing from one city to another in Syria without any success, then finally leaving, going to refugee camps and trying to come to the United States. Even after they applied for refugee status, it took this one family over 14 months to make it here to this country.

We have a rich history in the United States of being there for refugees. We can point with some pride to the fact that when Cuba was going through its upheaval back in the 1950s and 1960s we accepted Cuban refugees who have become a major part of America today. In fact, the three Hispanic Members of the United States Senate are all Cuban Americans. At least two of them were the product of that exodus—the product of a refugee status that brought their families to the United States. They are making great contributions for the States they represent.

We did the same thing in the Soviet Union. When the Jewish population there was facing persecution, we stood up and said: We will accept them as refugees. Thousands and thousands of Soviet Jews came to the United States and have become an important part of America today.

The list goes on: Somalians, Bosnians, the Hmong population out of Vietnam. So we have a rich history of responding to these humanitarian crises. We need to do it again. What the administration has proposed is modest—10,000—too modest, as far as I am concerned. I believe we should be prepared to accept 100,000—100,000 Syrian refugees.

Yes, each and every one of them needs to be carefully checked and vetted so we know we are not inviting someone in who is a danger to the United States. The people I have met in Chicago—the refugees there—are just desperate people trying to find a roof over their head, trying to find some little work to do to keep what remains of their family together. Each and every one of them said something interesting. All four of them said they couldn't believe how welcoming America was, how friendly people in America were to the refugees and their families. Mr. President, that is who we are. That is what America is about. We shouldn't be afraid when people who are desperate for some refuge find our shores and ask: May we come and join you?

I have already had friends in Illinois calling my wife and asking: What can we do? Can we adopt a Syrian family of refugees to help them get started in the United States? I think that story can be replicated over and over again, thousands and thousands of times.

So I would say to my friend from Arizona, yes, it is outrageous, the death, the violence, the circumstances in Syria which has forced so many millions of people to move and many of them to lose their lives in the process. And it is heartbreaking to read the stories as they desperately try to find some safe place to live with their families and are rejected by countries, some in Europe, that want no part of them. I want America to do its part so that when the future generations look back and ask our generation: What did you do when you faced the greatest humanitarian crisis of your time at this moment in history, I want them to be able to point with pride to the fact that we carried on the great American tradition of opening up this country to refugees who are looking for a safe place to live with their families.

Mr. President, we are in the midst of debating again—again—the Iran agreement, an agreement that was brokered by the President with five other nations—an agreement to accomplish two things: The agreement was to stop Iran from developing a nuclear weapon and, secondly, it was to create a safe enough environment that the United States does not have to commit military forces or go to war again in the Middle East.

I voted for it, and 41 other Democrats joined me. We had this vote last week. It was historic and widely reported. At the end of the vote, Senator MCCONNELL, the Republican leader, stood up and said: We are going to do it again. We are going to do it again next week—today—Tuesday night.

I don't know why we are going through a replay of this. There is a suggestion he may do another vote in another few days. Members of the Senate have stood up to a person and announced where they stand on this issue. Nobody is trying to run away from this issue. It is a challenging issue and a historic vote, and we are all on the record. We are there.

I don't know why we have these repeat roll calls. I don't know why we are going through this again, but that is Senator MCCONNELL's choice. One would think he might want to spend some time on the floor of the Senate dealing with some other issues, but he sticks with this one.

What happened over in the House of Representatives is hard to describe. We came together because of a statute passed by the House and the Senate calling for a vote of disapproval of the Iran treaty. Now, it has been rejected—that vote of disapproval—here in the Senate. The House never took it up. The House, instead, had three separate votes, never going to the issue of disapproval. They had three separate votes on separate issues. The one they passed that might be sent our way is hard to believe.

You see, what the House of Representatives said is that we will not lift any sanctions on Iran until we have a new President in January 2017. Think about that for a second. Here is what we know. We know that Iran has fissile material capable of building ten nuclear weapons. We know that. We also know that Iran has the capacity within 2 or 3 months—2 or 3 months—to create this nuclear weapon. We know that from our intelligence, and we know it from the pronouncements of Prime Minister Netanyahu of Israel.

With the knowledge of that capability in Iran—to build a nuclear weapon, which would be a disaster in the Middle East—the House Republicans have said they want to put off any effort to stop the Iranians until we have a new President 17 months from now, which is more than enough time, I might add, for the Iranians, should they choose, to build a nuclear weapon. How does that make Israel any safer? How does that make the world any safer?

Here is what we know. With this Iran agreement, within weeks the Iranians will start dismantling their centrifuges. They will start the process guaranteed by this treaty that will result in closing down a nuclear reactor that produces plutonium which can be used for weapons. They will start inviting inspectors into their country.

There has been a lot said by the Senator from Arizona and others about the track record of Iran. I agree with many things he said. They are not to be trusted. That is why verification is part of this agreement. If there were no inspectors, it would be a foolish venture, but with these inspectors, we are on the ground inspecting Iran on a daily basis, through the IAEA, international inspectors sponsored by the United Nations. Are these inspectors good? I can say that many years ago when we voted on the invasion of Iraq, when the Bush-Cheney administration told us there were weapons of mass destruction, these inspectors told us there were none—after we had invaded, after the war had started. It turns out the inspectors were right and the Bush-Cheney administration was wrong. They have a good track record, and I am glad they are going to be on the scene to verify this agreement.

But the question now is, How many more times will Senator MCCONNELL want us to vote on this same issue? As leader, he can decide to do it over and over. Is this part of a debate prep for some of the Republican Senators running for President? They come to the floor and make their speeches or hear speeches and get to cast a vote before the CNN debate this week? I hope that is not it. We have made ourselves clear where we stand on this issue, each and every one of us. We cast our votes. We will do it again today. Now it is time for the Senate to move on.

Looming just ahead of us in a matter of days is the potential of another government shutdown. The same tea party Republicans who shut down this government 2 years ago have vowed to do it again over a different issue. Somehow they believe that come October 1, if we start shutting down the agencies of our Federal Government, they will have made a political point. They are right. They will make a point that the majority in the House and the Senate—the Republican majority—cannot govern, cannot manage the budget of the United States to keep our government agencies open. I think they make that point 2 years ago; I don't know why they want to remind the American people of it again.

So instead of voting repeatedly on the same measure, on the Iran agreement—where we already have a record vote—I would commend to the Republican leader: Take up the issues of the day. Some are compelling. There is cyber security for the safety of the United States. There is a transportation bill in the House of Representatives. We passed it, and it is time for the House to do the same. Let's fund our government. Let's not face a government shutdown.

I yield the floor.

Mr. SASSE. Mr. President, as many of my colleagues, on both sides of the aisle, have noted, today's vote on the President's deal with Iran is one of significant consequence. The American people deserve an up-or-down vote on the deal itself.

I spent the day sitting on the floor of the Senate, listening to my colleagues debate the technicalities of the President's Iranian nuclear deal. This has been a lawyerly dispute, with arguments all over the map. I, like the vast majority of the American people, believe that this is a terrible deal.

It has blown up the sanctions regime that brought Iran to the table. It floods Tehran's coffers with more than $100 billion that will almost certainly finance the killing of innocents around the world. The verification efforts place all of the burden on the United States and our allies, leaving Iran free to delay, disrupt, and deny inspections. The deal even allows Iran to advance its ballistic missile programs and to stockpile uranium. It is simply a bad deal and the American people know it.

I went to Embassy Row and stood before the old Iranian Embassy to the United States, a building which was abandoned on April 7, 1980. And what the American people understand—and what Washington, DC, does not seem to understand—is that the technicalities of this deal, though important, are not the central question.

The central question is this: Why was that embassy abandoned April 7, 1980?

It is because in 1979 there was an Islamic revolution in Tehran, and the mullahs that came to power are theocratic hardliners that believe they have a divine mandate. Their divine mandate is to export Islamic law and tyranny across the Middle East, across North Africa, and beyond. The tyrants who rule Iran today believe they have a divine mandate to annihilate Israel.

For 36 years we have had a bipartisan consensus in our country that the world's largest state sponsor of terror should never be allowed to become a nuclear-threshold state.

Sadly, the administration has abandoned that bipartisan consensus in the fanciful, imaginary dream that they are going to transform Iran's theocratic hardliners into moderates that will no longer oppress religious minorities, women, homosexuals, and others within their country. The administration believes that the Iranian regime will no longer try to spread destabilization and fund terrorism across their region and across the globe. And this presents dire, but foreseeable consequences.

The administration's deal with Iran will set off a nuclear arms race in the Middle East—one of the world's most volatile regions. Billions of dollars in sanctions relief will be available to the Iranian Revolutionary Guard and its terrorist proxies to spill innocent blood and destabilize Afghanistan, Iraq, Syria, Yemen and elsewhere. Either of these developments is serious enough on its own. Taken together, we have an unacceptably high probability for regional conflicts that could quickly spiral into nuclear events. We have to take this seriously; but, as the outcome of this vote is likely to demonstrate, we are not.

The American people are more serious than Washington DC. The American people aspire to a day when that old and crumbling embassy is reopened, but not by the ruling theocratic mullahs. Instead, we can only accept a nation that believes in human flourishing and in the dignity of their own people, a government that repudiates the goal of annihilating Israel and the spreading their Islamic revolution across the Middle East.

I am grateful that the American people are more serious than Washington DC, but, it is not too late. I urge you to vote against the President's deal with Iran.

It is not in our national security interest, and it is surely not in the interest of our friends in that most dangerous region on the face of the earth.

The PRESIDING OFFICER. The Senator from Indiana.

Mr. COATS. Mr. President, I came to the floor having spoken at great length last week outlining why I thought this agreement was something that ought to be fully debated and fully understood not only by Members of the Senate but by the American people. We had that debate. We were promised from the very beginning and it was enacted into law that Congress would be provided with all materials talked about and agreed upon before we had a vote to determine whether we would support approval or disapproval of this. We had a vote Thursday, which was procedural, to give us the opportunity to register our yes and no, our yea and nay. The American people deserve to know on the record where we stand on this. There have been arguments made on both sides of this issue.

Personally, I think a close examination of this raises serious questions—so serious that it is not something someone can come to the floor and simply say: Well, that is over, that is done, and let's move on. There are more important things ahead. It is hard for me to understand what is more important than getting this right.

I think the issues I laid out last week on Thursday before the vote are issues

that still need consideration. But the real reason we are back here—thank you, Senator MCCONNELL, for giving us another opportunity—is because we fell two votes short of the opportunity to even take a vote. We took a vote on a procedural measure—a measure which, as we all know, you can go home and hide behind. I don't understand why my 42 Democratic colleagues were afraid to put their names on a yes-or-no vote proposition so that everyone knows exactly where we stand and nobody can go home and make an excuse as to why they are for or why they are against it. It goes all the way back to the Scriptures: Let your yea be yea and your nay be nay. That has always been what I have believed to be the right way here in the United States Senate as well as the United States Congress so that when we go home, the people we represent know exactly where we stand.

I think what we are witnessing today in terms of the debates that will be taking place tomorrow in terms of the Presidential nomination process is the public partly frustrated—frustrated in many ways, but I think part is the fact that there is a lot of procedural gobbledygook out there that elected Members can hide behind and not have a direct clarification of exactly where they stand on any particular issue.

The purpose for delay was to hopefully give our Members the opportunity to go home and listen to their constituents about how they feel about this, and perhaps we could have had two of the minority group who voted to block us from going forward—we won the majority vote 58 to 42 on a bipartisan basis, including four Democrats, all of whom have significant foreign policy experience, some having more than the rest of us. So it was a bipartisan effort to move to this process, and we came up two short. We were hoping that over the weekend—I was assuming that many of my colleagues were receiving the same kinds of calls and input from their constituents as I was. Mine was running 10 to 1 against this agreement. The more we disclosed from this agreement, the more the American people learned about this agreement, the more concerned they were, and hopefully they expressed those concerns to their Senators who went home over the weekend having blocked us from this vote.

At the very least, we are pleading that we could have a vote so that our yes is yes and our no is no, so that we reach the threshold by which we will buy a little bit of time to hopefully expose more of this very flawed and I think fatally flawed agreement, more time for the American people to express their wishes.

We are not talking about a normal process of moving legislation through the Senate; we are talking about a process, a negotiation that will have enormous consequences for the future, enormous impact on the national safety of this country, enormous impact on the world in terms of a rogue nation now having the pathway to development of a nuclear weapons capability and weapons, unimpeded after this period of time expires.

The very first thing people ought to understand is that coming down to the floor—or listening to the President of the United States say that this prevents Iran from having nuclear weapons or nuclear weapons capability is false. It is absolutely wrong. This provides a pathway for them to get it. It just defers, but it legitimizes their becoming a nuclear-armed nation. This rogue nation, which is seething terrorism throughout the Middle East and cries ''Death to America'' and extinction to Israel, will have the wealth because of the release of well over $100 billion, will have the capabilities because even under this agreement their nuclear processing research and development goes forward—with our assistance. It is in the agreement, with our assistance.

So this is not something we can simply say: Oh well, we had the vote, you guys came up short, and we will cease all debate because it is over. It was over for the President of the United States when he declared it an agreement, not a treaty. If ever something as consequential as this should fall under being a treaty and not an agreement, it is this agreement. Yet it was declared an executive agreement. The President obviously knew what he was doing because he has had a lot of practice basically saying: I can bypass the Congress, I can bypass the Constitution by simply declaring it an executive agreement, an executive order, whatever.

In declaring this, it put us in a terrible position. Thankfully, we were able to secure and vote into law, on a vote of 98 to 1, signed by the President of the United States, an agreement that would allow us to play a role in this and to look at the agreement and anything connected with this agreement before we made a decision and the opportunity to vote on approval or disapproval.

Well, all that has been denied, and the President now only says it is over. The minority leader on Thursday said: It is over. Get over it. We are moving on. Other things need to be done. We just heard that again from one of my colleagues here, the second in command on the Democrat's side. Let's move forward. Moving forward is a violation of the law. That will be tested in courts. But it is very hard to understand how the administration and the 42 who voted for this could ignore the very language they voted for, the very language they agreed on, the very language that allowed us to go forward and understanding what this agreement says.

Let me quote from the law which was signed by the President of the United States, in nearly unanimous agreement by the U.S. Congress:

TRANSMISSION TO CONGRESS OF NUCLEAR AGREEMENTS WITH IRAN AND VERIFICATION ASSESSMENT WITH RESPECT TO SUCH AGREEMENTS

The President shall—

Not the President might, not the President could if he wants to or not if he doesn't want to—

transmit to the appropriate congressional committees and leadership . . . the agreement, as defined. . . . including all related materials and annexes . . . and any additional materials related thereto.

Including all related materials and annexes—including appendices, including codicils, including side agreements.

We have been told—we have learned that there are two secret agreements that have been made between Iran and the inspection agency. We have not been allowed to see those agreements despite our pleas. We have been told by Secretary of State: They don't matter. Don't worry about it. It doesn't directly affect you.

Who possibly could enter into any contractual agreement, any binding agreement with the adversary and not require access to the side agreements? Who would lease a car, who would buy a house, who would enter into any contractual arrangement with someone who said: Oh, by the way, there is some secret stuff here, but I can't let you see what it is. But don't worry—it really won't affect this.

I can't conceive of anybody.

This doesn't take an Ivy League law school graduate or someone serving in the Congress who looks through this legislation and helps write this legislation to have people understand that this alone ought to be reason not to vote for this agreement until they have access to that material—as required by the law they voted on.

So how can a Member come down to this floor and simply say: I know everything about this agreement, I like what it does, and I am voting for it. That is their privilege. That is their right. If they want to go home and explain that to their people, that is their right to do so. But how can they go home and explain to the people: I voted for something without knowing exactly everything that is in it. And by the way, yeah, I voted for the opportunity to know that, it is in the law, but the President said, ''Well, I am going to ignore that.''

We have heard that from this President too many times, over and over and over: I am going to bypass Congress. I am going to game this thing so it goes my way and not your way. No input whatsoever.

Here we stand. Why again? Because some of us—many of us—58 of us don't want to simply throw up our hands and say: OK, you have got us. Let's move on. What is next? Big deal. Not a lot of consequence here, but we will worry about that later.

We are simply saying that we don't think it is over. The actions by the majority leader here have given us an opportunity to take another shot at this.

Yogi Berra said, ''It ain't over till it's over.'' And I think John Belushi in ''Animal House'' said: It's over? No, it ain't over. It's not over.

So it is not over. We have a vote coming up this evening. This vote this evening will give the American people the opportunity to understand that this motion to this agreement is going to be killed through a procedural motion without those who oppose it—even though they are in a minority but having the procedural right to do so under the Senate rules by leaving us two votes short of getting to that particular point.

What are they afraid of? You come down here and you tell people: This is a good agreement, but I don't want to put my name on it. This is a good agreement, but we can't keep talking about it. This is a good agreement, trust me, but, yeah, the side agreements—it is too bad we had to do that, but, you know, I guess we are not going to have access to that.

I was surprised by what the previous speaker, the Senator from Illinois, said about the inspection agreement. Who could possibly agree to an agreement—concede to an agreement that, yes, we will have inspections, but you get to exclude the facility that did all of the nuclear research over the last decade. We are exempted—we need an exemption from that. And we gave it to them. Also, by the way, we are not going to let you look at any of our military facilities to see whether we have had any militarization of this process. Oh, by the way, if under the agreement you think we are cheating at some other facilities around or places where you want to have some inspections, we will think about that. If we disagree, we will go through a Byzantine process to get to the point where the clock starts running, and then we have 24 days to try to figure all of this out. And some will say this goes on much longer.

Having said everything I have said, having done everything I possibly can do, I am here to ask my colleagues—those who think this is a good deal—I am here basically just asking one thing even though I have major reservations. I am not even asking them to change their vote. I am asking them to give us the opportunity to have a vote. Give us an opportunity so that we can hold our heads high and go home and say: This is exactly how I came down on this, and here is my yes or here is my no.

Isn't that what the American people sent us here to do? We wonder why they are skeptical, why 70 percent of the people think they can't trust Congress on probably the most consequential, historic vote any of us in this body will have in our lifetime, with untold consequences—which I am going to be talking about sometime later this week—for the future of the world, let alone for the future of America. How can we hide behind a procedural motion so that we don't have a full declaration of where the majority of this body and where the outstanding majority of the American people stand on this agreement?

I am pleading to my colleagues, have the courage to stand up for what you believe in and give us a vote. Don't hide behind a procedural motion. Any one of us has the capability of going home and confusing the heck out of our constituents by saying: Oh, well, there were problems with the agreement, and I think we can probably fix it, but this wasn't the right time to do it, and we needed to move forward. By the way, the end of the fiscal year is coming up, and we have other important business to do. Or, it is irresponsible for Senator MCCONNELL to require another vote or more debate on this.

They want to run from this debate as fast as they can because the American public—I can only speak for my own constituents, but I see the polls also. There is heavy opposition to this—10 to 1 in my State, at least what has been sent to me through all the means of receiving messages from people these days.

I am going to end here. I see Senator CORKER on the floor, who is totally responsible for this language, which was illegally violated. It uses the word ''shall'' and it includes the words ''side agreements'' and anything related to this. We owe it to the American people to understand every possible consequence of this agreement and then make our decision, which will go down in history. However Members vote, they will carry that. We will see what this rogue Iran regime will do with it.

All I know is they are cheering in the streets of Tehran. They are declaring this a victory that did not cross any one of their objections and crossed every one of our redlines.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. CORKER. Mr. President, I want to thank the Senator from Indiana, who served as Ambassador to Germany, who has been so diligent in the pursuit of truth and knowledge relative to this agreement and obviously is very concerned about its implications. He has been a stalwart. He is leaving the Senate at the end of this congressional term. We all are indebted to him for his tremendous concerns for our Nation's national security and the efforts of diplomacy to try to resolve the problems we have.

I know we have another speaker coming to floor in just one moment, but really because of what the Senator just said, I want to reiterate one more time as to why we are where we are.

Four times since 2010, the Senate overwhelmingly, working with the House, put in place sanctions on Iran—four times. That was met with tremendous pushback from the administration, which did not want to see those sanctions put in place by Congress. But those sets of sanctions are the very things that brought Iran to the table. The administration, along with Russia, China, Great Britain, France, and Germany, began negotiations with Iran because of the sanctions we overwhelmingly put in place in this body. Once they were about to reach a conclusion, the administration decided that instead of giving this to us in the form of a treaty—which is their choice. It is their choice under our form of government. I know we have a lot of people in our country who are very upset about this, but, in fact, it is their choice. They could have presented it as a congressional-executive agreement, which does live beyond that, but they decided instead that they were going to do it as an executive agreement and totally bypass Congress. That was their purpose. As a matter of fact, I wrote a letter to the President, and they responded very quickly: Yes, our plan is to bypass Congress and go directly to the U.N. Security Council. We are going to do this as an executive agreement. That obviously met with a lot of resistance here, but it is their choice. But the problem with that, of course, is that it only lasts while they are in office, and then the next Executive can change.

Because all of us had brought Iran to the table and because the administration had planned to use a national security waiver to waive our sanctions—the ones that brought them to the table—we resisted. We began on our side of the aisle, saying: No, we want a voice in this. We brought them to the table. This is the biggest foreign policy issue that is going to occur while we are here, in all likelihood.

We began pushing on this side of the aisle, and eventually we were able to get some support on this side of the aisle. Eventually we passed 98 to 1 a bill called the Iran Nuclear Agreement Review Act, which, by the way, took back power from the President, basically saying: You cannot implement this for a 60-day period after it ends. You have to give us the materials. We have to be able to go through all the materials. Of course, we haven't gotten all of the materials. Then we have the right to disapprove or approve. But there is going to be a pause on behalf of the American people, we are going to go through this in detail, and then we are going to vote.

That was actually a taking back of power from the administration which kept them from immediately being able to implement. We are in that period of time now. The administration has said the clock ends on Thursday. We are having this vote, but everybody has said in this body that this is a vote of conscience. Everybody has said that.

By the way, I would add that overwhelming support for sanctions, overwhelming support for review—there would be an overwhelming vote of approval had the administration done what they said they were going to do when they began these negotiations, which was to end Iran's nuclear program. Had they done that, we would be seeing a totally different outcome here. There would be 100 people here voting in support of an agreement. But

what they did was they squandered that opportunity—squandered it. Instead, with U.S. approval, Iran will be industrializing its nuclear program. Research and development will take place. All Iran has to do is adhere to the agreement, and it will be an advanced nuclear country.

Again, if they had just done what they said, we would be supporting them. So now here we are. The American people have difficulty. We are in a process right now. In the Senate, we have something called cloture. When both sides of the aisle feel as though the debate has ended, we invoke cloture and then we move to the final vote. We have had plenty of debate.

By the way, in the Foreign Relations Committee, we have had 12 hearings, not to count the informal meetings that have taken place. Every Senator in this body probably knows more about this nuclear deal than any international arrangement that has been agreed to in recent times. I mean, people have gone through it tooth and comb. So what is happening now is that we have a bipartisan majority that opposes this deal. What has happened—it is unfortunate, but Senator REID—I don't know whether he saw this as a contest between himself and the majority. I don't know what happened. But in August, he decided he wanted to mount a filibuster. It is our understanding that the administration supported that filibuster. They wanted the Senate to block us from being able to vote our conscience.

This next vote is not a vote of conscience. It is not. It is a demonstration of 42 Senators—at least that is what happened last time—42 Senators—a minority—refusing to let the majority, a bipartisan majority—the 2 most knowledgeable Democrats on foreign policy issues oppose this agreement. What they are doing is blocking us from having that vote of conscience. It has taken on a little bit of a Tammy Wynette kind of tone to me. It appears to me that this is about standing by their man. It is not about allowing us to vote our conscience.

So, yes, people are upset. Almost unanimous support for sanctions to bring them to the table. Only one Senator disagreeing with our ability to weigh in. Now we are at a point where it is time to weigh in, and the minority leader, my friend from Nevada, has organized, with the administration's support, a filibuster, which is, by the way, put in place to make sure there is enough debate. We know there has been enough debate. But instead of allowing debate to end, tonight it appears. I hope there are some consciences in this body that say: Wait a minute, this is wrong.

By the way, I know people say: Well, this is just the way the Senate operates. I will tell you this: I have voted for enough things I disagree strongly with to make the Senate work to be able to make this appeal to my friends. Look, 98 of us voted to allow us to vote up or down on whether we agree with the substance of this deal. It is totally inappropriate, from my perspective, that a minority of Senators, all on one side of the aisle—definitely a partisan act, a very partisan act—appear intended to keep the President from getting a message of disapproval from the Senate. It appears to me that what they are going to do is do it again.

I want to say to my friends on the other side of the aisle that our leader here has honored the request of the body—at least up until now. He has honored the request to be about a resolution of approval or disapproval. In this case, since a majority disapprove, it is a resolution of disapproval, but what we have seen him do is fill the tree. A lot of people don't know what that means, so I will explain. We could have had a lot of amendments—and up until this point we haven't had these amendments—that would have been pretty tough votes to make that are related to this arrangement, but not about the disapproval itself.

What our leader has done—in order to keep the debate civil, sober, and focused on what we are here at hand about—he has actually filled the tree and kept those amendments from coming in place.

We will have another vote at 6 p.m. We will keep it open for a couple of hours because it is a Jewish holiday, and we want to make sure that all of our colleagues can get back here and have the opportunity to register their vote.

I ask my friends on the other side of the aisle: Is this really in keeping with the spirit of what we have done?

I have had friends say: Well, we have known all along that it would take 60 votes. It doesn't take but a week here to understand that a cloture vote has to be overcome, and in the Senate that takes 60 votes. My friend from Virginia keeps saying: Well, we all know it takes 60 votes. Look, I understand. The American people understand that it takes 60 votes to move beyond cloture to get to a final vote, which, by the way, is an up-or-down vote at 51.

So the American people understand what is happening: 42 Senators on the other side of the aisle, my friends, after voting 98 to 1 that we could weigh in, have decided that what they are going to do is keep us from being able to vote the majority, up or down, because they know if we do, a bipartisan majority—the two most knowledgeable Democrats on foreign policy disapprove it, making it 58 votes—would be able to send to the President the feelings of this body, and that is the majority believes that this deal should be disapproved and that the administration has squandered the opportunity that we helped create because they did not end the nuclear program. Instead what they have done with this deal was to basically legitimize it.

As the Presiding Officer mentioned the other day, we are going to be helping them with technology. They will continue with research and development. We have lifted the ballistic-missile ban, the conventional ban, and we are going to agree to let them begin testing missiles immediately.

As our Presiding Officer mentioned the other day: What do they need ICBMs for? Think about it. What do they need them for?

I know it is time for Senator MORAN to speak on the floor, so I will close with this: The American people know they have no practical need for this program—none. They have one nuclear plant. They could buy and enrich uranium much cheaper. We know this is about one thing, and that is them being a nuclear state, and, in essence, we are agreeing to the industrialization of their program.

With that, I yield the floor to Senator MORAN.

The PRESIDING OFFICER (Ms. AYOTTE). The Senator from Kansas.

Mr. MORAN. Madam President, I appreciate the remarks of my esteemed colleague of Tennessee, the chairman of the Foreign Relations Committee. He has the knowledge and relationships in the Senate to make the case he just made.

I wish to just briefly address what I see as terrible flaws in this agreement which was negotiated by the Obama administration with other countries and with Iran.

I have previously outlined my objections on the Senate floor. I will restate that I strongly oppose the agreement and would hope that the Senate, on behalf of the American people, our national security, and peace around the globe, would make the same decision that I have made, which is that this agreement results in less stability, a greater likelihood of war, and a nuclear Iran—a country that is capable of delivering nuclear devices across its border, shouts ''Death to America.'' We are acquiescing by the action the Senate has taken to date that this agreement will take effect.

I can't imagine a more significant vote that Members of the Senate will take than this one, certainly in the arena of national security, national defense, and international relations. This agreement concedes too much and secures too little.

I serve on the banking committee. This is the committee that, because of our oversight over the Treasury Department, is responsible for legislation dealing with sanctions. I have participated in the debate in the committee and on the Senate floor about the sanctions that Congress has put in place against Iran. In my view, my colleagues and I—and I can certainly speak for myself—did not vote to put sanctions in place for the purposes of causing Iran to negotiate a path to nuclear capabilities. I voted for sanctions time and time again. I voted to increase them, encouraged by my letters and comments on the Senate floor, in my conversations with administration officials, and with my colleagues in the

Senate that we tighten the sanctions. I didn't ask that the sanctions be tightened. I didn't encourage the administration to be more forceful in their enforcement for purposes of creating a setting in which Iran could negotiate a way out of the sanctions for the purpose of developing nuclear capabilities. Those sanctions were put in place for the purpose of keeping Iran from becoming a nuclear power. Instead those sanctions have been the excuse by which this administration has negotiated a deal that is bad for the United States, bad for our European and worldwide allies, and particularly bad for our allies in the Middle East.

One would think that any agreement that was negotiated would dismantle Iran's nuclear capabilities. This agreement does not do that. One would assume that any agreement negotiated would prohibit the dollars from flowing—particularly billions of dollars to Iran—until they had complied with the terms of the agreement. But, no, this agreement allows the dollars to flow nearly from the beginning.

Iran will become a legitimized and enriched nuclear power, and they will become a wealthier, nuclear-capable country that supports terrorism in the Middle East and around the globe. As they have clearly stated, they will continue their effort to terrorize the world and end our way of life in the West as we know it with their continual chants of ''Death to America.''

As perhaps an issue that ought to be raised, one would think the administration would negotiate the release of Americans held captive in Iran as part of this agreement, but, no, they said that was extraneous. Yet, they negotiated issues related not only to nuclear capability but other weapons allowing Iran to increase its weaponization outside the nuclear arena.

I wish to now talk about the process. I came to the Senate following an election in 2010, and the frustration I immediately experienced was that this place was doing next to nothing. For most of my life, I have been encouraged when Congress wasn't at work because I thought my constituents were safer in the absence of congressional activity, but I came to the Senate with the intention of having a Senate that would work for the purpose of undoing many of the things that have happened over a long period of time that, in my view, are damaging to our freedoms and liberties and damaging to our ability to live the American dream.

I learned in a matter of a few weeks of my arrival in the Senate, and after taking the oath of office, that in this place the plan was to do nothing. We have seen that time and time again. My reaction to that was: I want to go out and see if we can get a Republican majority in which we have different leadership of the Senate, in which the goal is to have a Senate that functions, and the opportunity is for every Senator, Republican and Democrat, to present their ideas on behalf of their constituents and make the case to the rest of us that those ideas are worthy of our support.

The goal, in part, for a change in the majority of the Senate was to have a functioning Senate in which every Senator, Republican or Democrat, had the chance to present their ideas. I thought, as a result of a change in the majority, that when we all, Republicans and Democrats, had the opportunity to present those ideas on behalf of our constituents, we would see a change in the attitude and approach of the way the Senate operates.

For much of my early life, what I discovered about America's Congress—about the Senate and the House—was that there were Senators who didn't care who the President was or what party the President belonged to. There were Republican Senators who would disagree with a Republican President and Democratic Senators who would disagree with a Democratic President. Somehow over time, the political nature of our country has changed, and it seems to me we put the party of our President above the well-being of our Nation. That is dangerous.

I oppose this agreement not because it was negotiated by a Democratic President. I oppose this agreement because it is wrong, and it is bad for America. I thought the Senate—once the opportunities for all of us to present our ideas was available—would once again see the days in which it was not about party affiliation, but about the idea of presenting the best course and direction our country should go. Unfortunately, it seems to me, that the Iran agreement is the poster child for a Senate that is once again bogged down in support of a President on an agreement that is unworthy of that support.

Our country desperately needs men and women who serve in public office whose decisions are made not because they are pressured by a President, not because their President shares their party and political affiliation. Decisions need to be made here that benefit Americans today but, more importantly, Americans in the future. What seems to me to be missing in my efforts to change the nature of the Senate is that we are still mired in the circumstance in which—in the absence of 60 votes—the Senate's will on behalf of the American people cannot be expressed.

The point I guess I failed to understand is when new leadership came into play that was open and receptive to Democratic and Republican Senators presenting their thoughts, amendments being offered, bills being considered, most of my Democrat colleagues would find that appealing because we all came here to do something we believe in, not to play a political game. Unfortunately, that does not seem, to me, to be the case today.

This is the opportunity for us to change course and return the Senate to the day in which it was deliberative and in which Senators spoke on behalf of the well-being of the country as compared to the well-being of a President. It is very discouraging to me. We worked hard to make certain that the Senate became a place different than it was, and unfortunately we see in this circumstance it doesn't appear to be much different than it was a year ago.

I have been a supporter of the rules that allow for a filibuster, that require 60 votes for the Senate to advance an issue. I always thought that protected the minority—people who have different points of view, people who come to Washington, DC, and may not be in the majority and may feel as if they would be run over in the absence of their ability to protect their constituents, their ideas, and 60 votes was designed to protect the minority viewpoints in this country.

This becomes the moment, in my view, in which we can look at what has transpired on the debate on Iran and reach the conclusion that the 60-vote rule is damaging to the future of our country because it is damaging to the ability of the Senate to work the will of the American people and to make decisions that advance a cause different from one's political party and political philosophy.

In my view, the time has come for us to consider this issue of how the filibuster works. It is because this issue is so important and the outcome of this debate so valuable to the future of our country and the security of the world that in this case, we need to move forward with a majority vote to allow this agreement to be rejected.

This agreement is not worthy of the protection it is being given by a minority of Senators. It is supported—the rejection of this treaty—this agreement; it should be a treaty—the rejection of this agreement is opposed by a majority of Republican and Democratic Senators. Yet we will never have the opportunity—unless a couple of our colleagues decide to do what is right this evening—for the American people to see where we stand on this issue.

These are serious times. Nothing is easy in the world. It is always difficult to know what the right answers are, but the path the Senate is on today and the path the Senate took last Thursday is a terrible mistake for the future of our country and the security of our citizens. I urge the Senate to allow consideration of this agreement, and I urge the Senate to reject this agreement for the good of America.

I yield the floor to the Senator from South Dakota.

The PRESIDING OFFICER. The Senator from South Dakota.

Mr. ROUNDS. Madam President, I echo the feelings of my friend and colleague from the State of Kansas. He speaks with emotion and he speaks with a heartfelt sense of concern that many of us have with regard to this proposed agreement by the President.

I rise to speak about the Joint Comprehensive Plan of Action, or the

JCPOA, between the United States, Great Britain, France, China, Russia, Germany, and the Islamic Republic of Iran. Much has been said about the agreement over the past weeks and months. My colleagues have addressed a great number of concerns and deficiencies about the deal and many outside experts have testified before multiple committees of Congress explaining their views as well.

In addressing these concerns, I wish to ask just a few simple questions: Do we believe that with this agreement the United States and our allies are safer today than we were 1 year ago and will we be safer when the nuclear limitations expire in 10 years? The answers to these questions are very important. They will dictate what we decide in one of the most important votes we will cast in the 114th Congress.

After closely examining the agreement, the following can be concluded: Upon verification by the IAEA—the International Atomic Energy Agency—of Iranian compliance, supposedly within a few months if Iran is in compliance, they will, after payment of their obligations, receive around $56 billion that were frozen in overseas accounts. Further revenue will be generated because the European Union has agreed to lift its ban on the import of Iranian oil, thereby providing Iran with billions more in revenue with which to repair its oilfields and begin to repair its battered economy.

According to the Wall Street Journal, Iran's Deputy Petroleum Minister recently stated that his country's oil exports would reach 2.3 million barrels a day, compared with around 1.2 million barrels per day today. Iran would also gain access to 50 million barrels of oil which have been held offshore, and economists estimate that Iran's economy will grow up to 9 percent in the year after the implementation of the agreement.

This verification that we talk about by the IAEA will be accomplished through protocols that Members of the Senate have not seen in writing and that the administration has not—nor will they—agreed to provide to us. This is in direct contravention to the Iran review act, which the President signed into law, agreeing to provide all documents and side agreements and, according to reports, will unbelievably allow the Iranians to provide their own inspections of their military work on nuclear sites to the IAEA.

A robust inspection of a regime requires an anytime, anywhere inspection policy. Unfortunately, under the idea of managed access, as found in this agreement, if the IAEA requests access to an undeclared location, under this agreement Iran can delay access to the facility for 2 weeks or longer with the outlined multistep process for undeclared locations.

U.S. sanctions against foreign firms for dealing with Iran in the oil and financial sectors, which have been the most effective sanctions enacted against Iran, will be suspended upon implementation of this agreement. Sanctions prohibiting U.S. firms from conducting business with Iran will remain in place, but with a large carveout for non-U.S. entities that are owned or controlled by U.S. companies. Some sanctions will also be lifted against Iran's Revolutionary Guard, the entity that actually runs the military aspects of Iran's nuclear program. Furthermore, the agreement requires the United States to make certain that U.S. State and local governments comply with sanctions relief contravening their own sanctions placed on Iran.

Now, this proposal, the JCPOA, also commits the P5+1—that working group of countries—to work to strengthen Iran's ability to protect against and respond to nuclear security threats, including sabotage, which we can presume would mean from even our allies who feel deeply threatened by this agreement which transforms Iran—a terrorist State—into a breakout nuclear power and still a terrorist State.

In year 5 of the agreement, Iran will be removed from the United Nations arms embargo. Yet as the Chairman of the Joint Chiefs of Staff, GEN Martin Dempsey, told the Senate Armed Services Committee in August: ''Under no circumstances should we relieve pressure on Iran relative to ballistic missile capabilities and arms trafficking.''

In year 8 of the agreement, Iran will be removed from the United Nations ballistic missile embargo.

Now, in July of this year, Secretary of Defense Ashton Carter confirmed to me in a hearing that under this deal, he could not rule out Iran acquiring, within 10 years, an intercontinental ballistic missile that could hit the United States. This means Iran would have the capability of producing a nuclear weapon that could reach U.S. soil in a decade.

These comments come after Gen. Paul Selva, now the Vice Chairman of the Joint Chiefs of Staff, told me during a separate hearing that Iran remains the leading State sponsor of terrorism, and resources gained in sanctions relief under the nuclear deal could be used by Iran to continue sponsoring terrorism.

Under the agreement, the United States agreed to allow the nuclear-related equipment to remain in Iran under lock and key, and Iran will be allowed to continue researching IR–4, IR–5, IR–6, and IR–8 centrifuges. Iran will also be allowed to begin testing IR–6 and IR–8 centrifuges in cascades of 30 at year 8 of the agreement. After 8 years, many of the research-and-development restrictions are removed and Iran will begin to manufacture advanced centrifuges. All R&D restrictions end at 10 years.

Finally, after 10 years, Iran will be free of the restrictions on enrichment and could become a nuclear threshold State—legally, under international law—only postponing the inevitable nuclearization of Iran.

So with these facts established, I am left with what appears to me to be the undeniable answers to my questions: The United States and our Middle Eastern allies are absolutely not safer today than we were 1 year ago, and we will all be left unquestionably less safe when this agreement ends in 10 years. I, therefore, oppose this deal. It is an agreement that will reward a violent terrorist regime. Instead of stopping the Iranians from ever obtaining a nuclear weapon, it merely delays it. This deal is shortsighted and dangerous for our security.

Just a few days ago I was talking with my 8-year-old grandson. He asked me what I was working on in the Senate. I told him about the President's proposed deal with Iran. I told him what we were giving them. I told him about the money, the lifting of the sanctions, the access to weapons and, soon, the ability to make a very bad bomb. After all of this, he looked at me and he simply asked: ''What do we get out of it?'' If this third grader can see how bad this deal is, so should we.

In conclusion, I urge my fellow Senators to vote not only to allow us to debate this issue but to vote in opposition to the President's deal with Iran. It is truly wrong for the United States and for the world. If my grandson understood that we truly are getting a bad deal—one that we should reject—most certainly we should understand as well.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. CORKER. Madam President, I am moved by the comments of my friend. He told me the story regarding the discussion with his 8-year-old grandson.

I wish to reiterate that had the President and those he designated to negotiate done what they said they were going to do—and that was to end Iran's nuclear program, something we all celebrated—and if the good Senator could say to his grandson that is what we got out of the deal, what we would have here today is unanimous support of approval.

This body was so involved in bringing Iran to the table. It is unbelievable the way—in these days and times, since 2010, four times the Senate has voted almost unanimously to put sanctions in place to bring Iran to the table. It is also hard to believe the administration took the one issue that has caused us to almost have unanimity which, let's face it, is rare in these times—the one issue where we have had almost unanimity is to bring it to the table by passing sanctions and then give us a right to weigh in. They were trying to go around Congress by going directly to the U.N. Security Council. But what they did on an issue that the American people are solidly behind—and that is Iran not having nuclear weapons—what they did was squander—squander—the one opportunity for this body to act in unison; that is, to approve what they have done.

As the Senator just mentioned, what they have agreed to—what the partisan minority Senators on the other side of the aisle will not even allow us to vote on—vote our disapproval where a bipartisan majority disapproves—what they have agreed to, literally, is, with U.S. approval, Iran can industrialize their nuclear program, can develop long-range missiles, can be involved in research and development, which makes the IR–1 centrifuges, where all the focus has been, look like antiques compared to what they are going to be—what they are developing right now, and we are allowing them to do that. Again, this is in a country that has no need for a nuclear program—none.

I mean, there is no practical need for the pain they have put their citizens through for the past several years under these crushing sanctions that brought them to the table that we put in place—no reason for that. They want to be a threshold nuclear country, and our government—our officials—has agreed to that. They have agreed to that at a time when we have no Middle East policy—none. We are watching on television refugees from countries that are the result of the fact that we have no Middle East policy. In that vacuum, this Nation—this administration, without this being disapproved and sent back—this Nation is going to agree to the industrialization of the No. 1 state sponsor of terror, which is propping up the regime that is causing all of these refugees to be flooding into Europe and other places.

With that, I see Senator CASSIDY of Louisiana who has been such a stalwart on national security issues, and I will yield the floor.

The PRESIDING OFFICER. The Senator from Louisiana.

Mr. CASSIDY. I thank the chairman of the committee.

Madam President, the challenge in speaking after so many others have on this agreement is that almost every angle has been addressed. But the advantage is that I have been able to learn what others have to say and perhaps introduce new ideas.

I am actually struck that Democrats and Republicans agree. We all agree that the Iranian agreement is flawed, that it does not achieve the objectives originally defined by President Obama, and everyone is worried that the Iranians will use a portion of the $50 to $100 billion they receive as a result of this agreement to advance the cause of terrorism.

What we do not agree on is whether or not the administration could have and can get a better deal. Ironically, Republicans have more faith in the President than the President's fellow Democrats do. Republicans think that if Barack Obama and John Kerry called them back up—showed leadership among our allies—that we can do better and Democrats think not. I continue to have more faith in the President and Secretary Kerry than my Democratic colleagues because typically the stronger party in a negotiation gets the better deal. It seems as if the United States and our allies were the stronger parties.

Iran's economy is in terrible shape. The regime's survival is threatened by dissatisfaction with 25 years of a corrupt bureaucratic autocracy, with economic mismanagement. Iran needs to get $130 per barrel of oil to meet the government's obligations, and oil is far below that. Iran's trading partners are limited, and aside from this, the Iranian people want freedom. There is discontent with the regime.

But far from the stronger party prevailing, this agreement concedes on the very goals that it sought to achieve. We pursued this agreement with the intention of ridding Iran of its nuclear program. Instead we have agreed to lift sanctions that have crippled Iran's economy and give immediate access to $60 billion, essentially bailing out a struggling regime. It is fair to ask: In return for what?

According to the President and my colleagues who support this deal, we get the opportunity not to go to war, and all Iran had to do was simply agree to continue developing and running their nuclear program in a peaceful manner. But to quote Leon Wieseltier, a Senior Fellow at the Brookings Institute:

> This agreement was designed to prevent Iran from acquiring nuclear weapons. If it does not prevent Iran from acquiring nuclear weapons—and it seems uncontroversial to suggest that it does not guarantee such an outcome—then it does not solve the problem that it was designed to solve. And if it does not solve the problem that it was designed to solve, then it is itself not an alternative, is it? The status is still quo.

How can it be the claim that this Iranian agreement protects the American people from the dangers of war when we are also told that the United States must provide more military support to our allies in the region because of this deal increasing the likelihood of war?

Secretary Kerry acknowledged in a September 2 letter that, indeed, war is more likely: ''Iran's continued support for terrorist and proxy groups throughout the region, its propping up of the Assad regime in Syria, its efforts to undermine the stability of its regional neighbors, and the threat it poses to Israel'' are real concerns. He goes on to say, ''We have no illusion that this behavior will change following the implementation of the JCPOA.''

Why are we willingly, I ask, legitimizing a nuclear program of a country that we feel this way about or, worse yet, why are we willingly agreeing to lift sanctions, which gives Iran billions of dollars and an improved economy and therefore the extra resources with which they can buy and distribute conventional weapons, which Iran can now buy legally? Regarding the purpose of the conventional weapons, in the final hours of negotiations, the lifting of the embargo against the sale of conventional weapons and missiles was added to this deal. In just 5 years we lift the embargo against conventional weapons, and in 8 years we lift the embargo against ballistic missiles. Secretary Kerry has declared that this provision is a win. The terrible thing about this deal is that it is full of wins such as this. Iran's interest is advanced, and the rest of the world is less safe.

This does not add up. We have the administration claiming that the regime is weak underneath our sanctions—and for that reason Rouhani was able to persuade Khamenei to come to the table for negotiations—yet stating that Iran's opposition to lifting the arms embargo was too strong to resist. The country cannot be too strong and too weak at the same time.

Furthermore, knowing that the Iranians have cheated on numerous previous nuclear agreements, why don't we have a stronger mechanism with which to punish them should they cheat? All this deal puts in place is the snapback. The hope is that reimposing sanctions on Iran will once more cripple their economy. The same sanctions that have been implemented over many years are expected to somehow immediately return to full strength. What is to say that countries such as Russia or China, which were initially reluctant to impose the sanctions on Iran, would agree to snap back should Iran cheat? Especially considering how much stronger Iran will be once their economy is given the chance to rebound, it seems more likely that these countries believe the economic advantages of lifting sanctions on Iran far outweigh the implications of a nuclear Iran.

It has been stated one way or another by others, but I will discuss something that has not been discussed in relation to the Iranian agreement but which I am surprised is not of greater concern to Democrats. In its environmental impact statement issued in February 2014, the State Department estimated that the Keystone XL Pipeline, which would ultimately carry 830,000 barrels of oil daily, could increase emissions of heat-trapping greenhouse gases by 1.3 to 27.4 million metric tons annually. Based on these calculations, President Obama has denied Americans a chance to expand our energy independence and to in turn create 40,000 direct jobs and many more indirect. If this deal goes through—the Iranian deal—the Iranian oil minister stated that Iran could send 500,000 barrels of oil per day to the market immediately upon easing the sanctions and up to 1 million barrels of oil per day within 6 months. According to an estimate by a DC think tank, if Iran increases their oil production by this much, it will release 156 million more metric tons of carbon dioxide per day. Wait a second. If we build the Keystone XL Pipeline, we may have 1.3 million metric tons. We can't do that because of greenhouse gases. But the Iranian agreement, which the President said has to occur, will increase greenhouse gas emissions by as much as 156 million metric tons—over 100 times more.

If climate change is the greatest threat to the United States, even greater than a nuclear Iran, it seems as though the President has said he is willing to accept that danger in order to give the Iranians this deal.

Well, I return to where I started. I ask my Democratic Senate colleagues not to have such low expectations of the President and to demand a better deal for the American people. I stand by the assertion that the alternative to this bad deal is not war, but a better deal.

I am confident that our Nation can stand from a position of power and negotiate the deal we set out to achieve.

Thank you, Madam President.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. RISCH. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. RISCH. Madam President, I am here to make a few remarks about the proposed agreement between the United States—our participation in the agreement with the Government of Iran. I am going to speak briefly because we have been through this. I just want to underscore a few points that are very important to me as to why I am going to be voting the way I am voting.

I think, first of all, one of the things you always want to do when you are entering into an agreement is weigh whom it is you are making an agreement with. I always told clients when I was practicing law that more important than the words on the paper were the people whose signatures appeared at the bottom. I think, in this particular instance, we could not have a worse situation than what we have.

The Iranians have shown us what they are made of for decades. We all know what they are made of. This is not going to be a good time as we go forward. Generally, when people make an agreement, and people make agreements every day, they agree on an objective and then both cooperate as they move forward toward that objective. That is not going to happen here. We have seen before the Iranians operate under similar circumstances. They cheat, to begin with, on a regular basis. But just as importantly, they will stiff-arm, they will drag their feet, they will misinterpret, they will challenge, they will do everything possible to avoid meeting the objective of the agreement.

How did all of this start? You remember when this whole thing started, everyone was cheering about what a wonderful thing this is, and we are going to go forward with this, but we do not trust them, and no agreement is better than a bad agreement. Well, what has happened since then? There is not anybody saying this is a good agreement. This is a bad agreement. So why did we not stick with the proposition that no agreement was better than a bad agreement? Now the mantra that people are talking about is, well, it is not perfect.

I would urge that with what we are dealing, the people we are dealing with, and because of the consequences for America, for the world, for the Middle East, it needs to be perfect, and it is nowhere near perfect. I want to underscore a couple things in that regard.

The other thing we started out with was that the President promised us that we are going to have inspections anytime, anyplace. Nothing could be further from the truth now that this agreement has been put on the table. This is not an anytime, anyplace agreement. Indeed, the procedures—if you wade through the difficult and complex procedures for how you get to an inspection when there is suspicion or even when there is not suspicion, if you are just doing it to check, it is going to be very difficult to do that. In addition to that, there are places in Iran that are off limits. No American will ever set foot in there. No IAEA inspector will ever set foot in there.

So why anyone would make this kind of agreement is beyond me. I am talking about Parchin. Parchin is a place where they have done the kind of work in the past that we want to stop. Indeed, by getting in there, by going through it, by inspecting it and doing an analysis, we would be able to tell what they did so we could expect what they would do in the future—and they will. In addition to that, the most likely place in Iran for bad things to happen is at Parchin. No one can get in Parchin. Why would the Iranians insist on a provision in this agreement that no one can get into Parchin? There is only one reason: They intend to cheat and they intend to do it at Parchin. They have gotten away with a lot of things at Parchin in the past, so they want to protect it.

All of these things argue for no agreement being better than a bad agreement, which this is.

Let me talk about a couple of the things. There has been a lot of time spent on them, but this situation regarding the money is just—I don't understand how people can talk about signing on to this agreement, when you are talking about what is going to happen with the money that is going to be freed up for Iran. There is $150 billion that is going to be freed up. Now, you will get people who say: Well, it is not that much because they owe this. It is dedicated here, what have you. So let's just take the 50 billion that everybody believes—I think they say 54 billion, but let's take $50 billion—$50 billion. In Iran this is not small change. Here in the United States, obviously, it would be a much smaller amount. But the statistics, when you compare what $50 billion means to the regime in Iran, it is very substantial.

What does Iran do with its money when it gets money? Since the sanctions have been on, their economy has been ratcheting down and down. Life has become much more difficult there from an economic standpoint. The government has very little money to operate. But every country has national priorities. Every single country on the face of this Earth has national priorities. The only way can you judge it is how they have spent their money in the past. During this period of time, while they were in very difficult financial straits, they had the ability to fund and to finance the worst enemies America has, the worst enemies the world has—terrorists. They have funded Hamas, they have funded the Houthi rebels, they have funded Hezbollah, and others. Every problem we have in the world with terrorism has Iran's fingerprints on it.

They have been able to fund that even when they were in difficult financial straits. What do you think is going to happen when they get this windfall of $50 billion? Those organizations are going to become flush with cash. They are going to be able do things they have not been able to do in the past. If you go to the hospitals here in America where our veterans are lying with missing limbs—arms and legs—almost all of them, almost all of them were caused by a device that Iran either made or financed. That is where this money is going to go. How can you go to bed at night saying, well, yes, I agreed to this because it is going to be a wonderful thing for the world, when you have actually put money in the hands of these terrorists who are going to hurt America's best who go out into the field? It boggles my mind. When you are sitting at the negotiating table, why did someone not say: Hey, if we catch any of this money going to terrorists, all bets are off, and we are going to pull back everything.

It is not just the $50 billion. More important than that is Iran will now have a continuous cashflow because they are going to be able to sell their oil, and they are going to be able to generate substantial amounts of money. So it is not just the $50 billion. This money thing is a real problem. It absolutely boggles my mind that—I don't know how anybody who supports this is going to look these Americans in the eye who are hurt by these devices that are made and that are financed by Iran. It is going to go on. It is going to continue. This money is going to be used for that. That alone, to me, is sufficient reason not to vote for this. It should be sent back, saying: Look, we need a specific agreement that this money is going to be used for domestic purposes for you to help the people of Iran—the people who want to do good things—and not sent off to foreign terrorists who are going to use that money to kill Americans and to kill other people.

I wish to talk for a second about the secret agreements that are incorporated into this. Who—who—would sign a contract or an agreement where

you incorporated two agreements made by two third parties, you don't know what is in them—you will never know what is in them unless things go south and go south badly—but you will have agreed to that. Whatever happens as a result of these secret agreements—whatever happens as a result of these secret agreements—we are going to have to abide by it because we will have entered into this.

Nobody enters into a contract to buy a bicycle where they have secret agreements. You wouldn't buy a consumer product for your home if at the bottom line it said: By the way, there are two agreements between so and so and so and so. Neither of them is a part of this, but by buying this and signing this contract, you are agreeing to whatever is in there.

I don't understand that. No American has seen it. We get fairly good information in the Intelligence Committee, and we have had closed hearings on this. We have dragged in everybody. The closest I have come to is Wendy Sherman. She was the No. 2 negotiator behind John Kerry. John Kerry has not seen these agreements—and everybody tells you what is in these agreements.

I cross-examined them:

How do you know what is in these agreements?

Well, that is what we were told.

Well, how do you know it if you haven't seen it?

Well, the Iranians tell us what is in there, and the IAEA tells us what is in there. So we are willing to accept that.

But no American has seen it. Wendy Sherman admitted she was in a room with a number of people when the agreements were there, and they were being waved around, but she did not read those agreements. She cannot tell us what is in those agreements. She tried to tell us what is in those agreements. Others tried to tell us what is in those agreements, but nobody knows because they will not let us see what is in those agreements.

Why is that? Do you think there are things in those agreements that show this is a good deal?

They are hiding stuff. There are bad things in there for America. Yet people are willing to sign on to this and to endorse, to adopt, and to ratify two secret agreements that no American has ever seen or can vouch for what is in those two secret agreements.

One of the things that is included in there that they have admitted is how Parchin gets inspected or, rather, isn't inspected. If they are willing to admit that in those secret agreements there is a provision that says Parchin will never be inspected, can you imagine what the rest of the matters are that are in those agreements? It is outrageous for someone to adopt, on behalf of the American people, provisions that they don't know what they are.

Let me just say that I come back to where I started; that is, we need to have a full appreciation of whom we are dealing with. While this is going on, while the Senate is debating this, and while the American Congress is debating this, the leaders of Iran proudly stand, beat their chests, and say: We promise you that Israel will not exist in 25 years.

I don't believe much of what they say, but what I do believe is, because of the way they have acted, because of their history, that they will do everything they possibly can to make that promise come true.

This is whom we are dealing with. They are going to try to eliminate our closest ally in the world over the next 25 years. This is whom we are dealing with. And we are willing to get in bed with these people and throw Israel under the bus? It is fantastic. It just does not make sense, but that is whom we are dealing with. They are promising, while all this is going on, that they will see that Israel does not exist in 25 years.

Well, it has been all over the media that the people who were supporting this are looking for a legacy. I promise you that the people who support this are going to get a legacy, but it is not going to be the legacy they want. When this thing goes south, the media and every American is going to be looking for the people who did this, who supported it, and who ratified it through this Congress.

I yield the floor.

The PRESIDING OFFICER (Mr. GARDNER). The Senator from Connecticut.

Mr. MURPHY. Mr. President, I am back to the floor a second time to speak very briefly in favor of the nuclear agreement with Iran. I don't clearly understand why we are here again.

When I was sworn into the House, I remember that one of the things people told me was a phrase that said that politics stops at the water's edge. The idea was we reserve our deep political, partisan disagreements for domestic issues, and we don't hesitate to disagree—often vociferously—with each other on issues of national security that regard our relations with other countries, but we do that based on policy grounds. We don't do that in order to try to score political advantage with one another, because when you are playing pure politics with international relations, you are really playing with the security of this country.

There is absolutely no reason to have this vote today other than a desire on behalf of the majority party in the Senate to try to gain some perceived political advantage over the minority party or over the President.

We know exactly what is going to happen. There aren't the votes for this resolution of disapproval to proceed past the Senate. There weren't the votes last week. There will not be the votes this week. We know this agreement is going to go into effect and we, frankly, have a lot of work to do. We have a lot of work to do to keep the government open and operating. We have a lot of work to do to implement this agreement. I will mention in a few moments that we have a lot more work to do in the Middle East to try to secure those who are running from terror and violence.

This is a waste of our time tonight. This is just about politics. This is just about trying to gain political advantage over an issue that is fundamental to the security of this country and to our allies.

I continue to support this agreement for a very simple reason. I just think it is the best way, taking a look at the options in front of us, to stop Iran from getting a nuclear weapon. I know there are others who are hopeful—by the moderates achieving a victory within Iran's political power structure—that there will be a willingness to try to come to the table and figure out some other very meddlesome issues in the region, but that is not why I support this.

I support this because I believe we have negotiated an agreement that is going to make it much less likely for Iran to get a nuclear weapon than if we were to reject the agreement. We are dramatically reducing the number of centrifuges; the quality of the enriched material will be greatly reduced from 20 percent down to 3 percent; we essentially eliminate their stockpiles, reducing their stockpile materials by about 97 percent; we get intrusive, unprecedented inspections on the entirety of the supply chain, so if they try to cheat—and they may try to cheat—we will have a much better chance of catching it with inspectors on the ground than if we rejected this agreement and had no inspectors on the ground.

Then, importantly—and I think especially for many of my more hawkish Republican friends—we preserve the military option and make it much more effective and credible under this agreement. It is much more effective because we are going to have eyes on the program and on the supply chain so that if we did catch Iran cheating with those inspections, we would have more information than we would if we didn't have any inspectors on the ground. It is more credible because we will do it in the context of an international agreement, meaning that if we do have to strike militarily, we will have our partners, our international partners, by our side—which we frankly would not have if they all asked us to sign this agreement to try to put us on a diplomatic path to divorce Iran from a nuclear weapon—we alone refused and then asked them for help in a military endeavor, they wouldn't go with us and, thus, we would be on our own. We have just the last 10 years to see what unilateral, U.S. military action in the Middle East looks like. We are better off when we have partners.

But this has always been a choice between one set of consequences flowing from the adoption of the agreement versus a set of consequences flowing

from the rejection of the agreement. I have heard very little realistic talk from the opponents of this deal about what their conception of a realistic alternative would be because most serious foreign policy thinkers are of one mind when it comes to what will happen if Congress were to reject this deal—and we are not going to. We knew that last week.

But what we know is that Iran's nuclear program would start back up. I don't think they would rush to a bomb—very few people do—but they would start their nuclear program back up, have more centrifuges spinning, and more stockpiled material piling up.

The inspectors would get kicked out. I don't think there is any way they would allow for inspectors to remain in the country if it wasn't in the context of a deal. The sanctions would probably fray at first because the Russians and Chinese would not walk away, but they would—over time—fall apart. The military option, as I mentioned, would get harder because we wouldn't have as much knowledge of their program, and we would have to go it alone with Israel, potentially, but probably not with our international partners who would feel badly burned by this rejection.

Finally, U.S. credibility as an honest, diplomatic, negotiating partner would be greatly damaged if—with the unanimous support of the Security Council, the unanimous support of the P5+1—the Senate and Congress decided to walk away from this deal.

This idea that there is a magical, better deal on the table is just fiction, plain and simple. There is no way to go back to the negotiating table if Congress were to reject this deal. The Iranians will not come back to the negotiating table. Our P5+1 partners have told us to our face that they will not come back to the table. So you are left, at that point, with an isolated Iran with a nuclear program restarting, with sanctions fraying, and with U.S. credibility damaged. I have no idea how that makes this country or that makes our allies in the Middle East any safer.

I have listened to all of the arguments against it, and I listened to Senator RISCH—who is a good friend—just make his secret agreement argument again. But it is amazing to me, having had so much attention over this AP article a few weeks ago on this supposed secret agreement between the IAEA and Iran, that there has been not even a whisper from opponents about the article this week correcting the AP story talking about how, in fact, the IAEA—according to this report—is going to have direct access to Parchin and is going to be able to take samples under the agreement they have with Iran.

There is a lot of talk about the first article, but the second article that corrects the record, nary a whisper from folks who oppose this deal. The reality is that this secret agreement you talk about, this agreement between the IAEA and Iran as to how they inspect Iran's nuclear program is nothing new because the IAEA has this with every single country they inspect. It is the foundation of the IAEA's inspection regime, the idea that they could only have credibility—they can only have credibility if they don't disclose the secrets of the countries that participate in the program. The IAEA could not function if it weren't for these agreements.

Now, we all sat in a room and were briefed on this agreement, so there is not a single Senator who cannot say they don't know what is in this agreement. There is not a single Senator who could say the AP story was correct. There is not a single Senator, if they were sitting in those briefings, who can say they were surprised by what we heard this week. The argument, especially after reporting that we have seen this week, just doesn't wash any longer.

But as I said at the outset, the imperative to move beyond this argument is not just because we shouldn't be playing politics with an issue of this import but also because we have to come together on other issues that are vital to the stability of the region.

SYRIAN REFUGEE CRISIS

Mr. President, I just came back from a Syrian refugee camp with Senator PETERS: 80,000 people living in this camp with 250 of them getting on a bus every day and going back to Syria. Why? Because they have been sitting in this camp in abysmal, unconscionable conditions, for 2 years, 3 years, 4 years, and they have no hope, no hope of ever getting out. So they are going back to Syria. They are taking their kids and almost accepting the potential for death because the conditions in these camps gets worse and worse and their hope just atrophies away. Those who aren't just going back to live in Syria, as we know, are pouring into Europe by the tens of thousands.

When we were in the region, our partners in the Middle East told us two things. Our Arab partners in the Middle East said: Get this agreement done. It is vital to the security of the region. To a person, every single individual we met with in Qatar, in UAE, in Iraq, and Jordan said: Get this deal done.

Second, they said: Step up to the plate and do more when it comes to solving this humanitarian disaster. Take refugees—like we are—in Jordan, Iraq, and Turkey. Make sure that the World Food Programme doesn't run out of money, as it is about to. Think about that, 1 million refugees in Jordan are about to lose their food benefits because the United States and some of our partners refuse to put up money to continue to operate the program. And guess what. When they do not get funding from the World Food Programme, they go to see who else is offering them sustenance, and often it is the extremist groups we are trying to fight. When you stop funding the World Food Programme, you push thousands of individuals into the very arms of the groups we are attempting to take out, degrade, and destroy in the region. It is unconscionable that we are not feeding people in the Middle East who have fled violence, but it is terrible national security strategy to push them into the arms of the extremists.

What we should be debating today is an emergency appropriations bill to allow for refugees to come to this country, as has been in the best traditions of America, and to fund humanitarian assistance so that people don't starve and die or get pushed back into Syria to be killed by Assad and others. But instead we are having another vote—another vote—on the Iran nuclear agreement when we know the outcome is predestined.

We have some really important stuff to talk about here, and we need to move on from this debate so we can start to build on the credibility we have already grown by virtue of negotiating this agreement in the region.

Mr. DURBIN. Will the Senator yield for a question?

Mr. MURPHY. I would be happy to yield.

Mr. DURBIN. I would like to ask the Senator from Connecticut a question through the Chair.

First, let me thank the Senator for raising this issue. I have said—and I think my colleague may share the feeling—that this may be the greatest humanitarian crisis of our time, and other generations will ask us: What did you do in the midst of the Syrian humanitarian crisis?

I met with four Syrian families in Chicago who are now refugees. They made it, and they have these horrible stories of what they went through. But when we look back at the past and what we have done in America for Cuban refugees, and I believe at least one of our colleagues here was a Cuban refugee—his family was when they came to this country; refugees from the Soviet Union, Jewish people suffering from persecution and wanting to escape; refugees from Somalia; the Hmong people from Vietnam; and Bosnians who made it to the United States, it seems to me that in the sweep of modern history—since World War II, I would add quickly—that we have really established ourselves as caring for refugees, not only feeding them but accepting them, after careful vetting, in the United States.

So I ask the Senator from Connecticut, when we hear what is happening in Europe, is he struck by the fact there are some countries opening their arms in extraordinary ways and others, sadly, going in the opposite direction with these refugees? I am sure the Senator has been struck by that as well.

Mr. MURPHY. I say to Senator DURBIN, I come from Connecticut, one of the Thirteen Original Colonies. We are proud of our role as part of the foundation, the fabric of America, and our

State's motto is ''He who transplants sustains.'' This Nation's existence is predicated on people coming here fleeing persecution, sometimes violence, and finding a home. It represents the best of America's traditions. Some 190,000 Vietnamese came here, and 180,000 from the Balkan countries came here just a decade ago.

The Senator is right—this isn't easy because we have to go through a substantial vetting process to make sure we are not bringing anyone here who even sniffs of potential violence or connection to terrorist groups. I was sitting in those Syrian refugee camps 2 weeks ago, and I was looking at 8-year-old kids digging ditches through the sand so the feces running out of their house has a place to go. Those little kids aren't terrorists.

We can figure this out. We are going to need some additional resources to do it. I thank the Senator for taking such a lead in the caucus, and I am hopeful we will be able to move on to that debate in the Foreign Relations Committee and in the Appropriations Committee after today.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. CORKER. Mr. President, I notice a discussion taking place. I wish to speak for approximately 10 minutes prior to the vote, assuming that is acceptable to the minority.

Mr. DURBIN. I would advise the Senator from Tennessee that all time remaining is on our side of the aisle, but I would yield half of it—5 of the next 10 minutes—to him.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. CORKER. I thank the Senator very much. I will be very brief. I made these points earlier today, but I would just like to remind people as to why we are having this vote this evening.

Almost unanimously, on four different occasions since 2010, Congress passed sanctions. Both sides of the aisle strongly supported sanctions being imposed upon Iran to bring them to the negotiating table. That was something which was very strongly bipartisan.

When it came time to bring them to the table and begin negotiations, the President declared the goal was to end their nuclear program, and they began negotiations. And by the way, we celebrated that goal. I think there would be unanimous support for the agreement had that goal been achieved. But the President then declared that instead of bringing this as a treaty, which typically would be the case for an international agreement, or bringing it as a congressional-executive agreement, he was going to call this an executive agreement so that only he would be involved in it.

That being known to this body, again in a very strong, bipartisan way—98 to 1—we voted for the first time since I have been here to take power away from the President and to keep him from invoking the national security waivers he had with the sanctions and to say: No, we want 60 days to go through this deal and we want the right to approve or disapprove and to vote our conscience.

Let me say one more time that had the President achieved his goal, we would have unanimous support here supporting the deal itself. We would all be supportive of ending their program. But the administration squandered that opportunity and instead has agreed to the industrialization of their program, their development of intercontinental ballistic missiles, their development of even faster centrifuges to ensure they are a nuclear threshold state.

What the public may not understand is taking place here now—we have had a debate. We had 12 hearings in the Foreign Relations Committee. We have had all kinds of Senators debating. As a matter of fact, Senators know more about the Iran deal than probably any international agreement in modern history. It has been studied and debated.

So the minority, 42 Senators—I might say a partisan minority because they are all Democrats—a bipartisan 58 Senators—the 2 Senators who know more about foreign policy issues than any other Senators on the Democratic side oppose this deal. And now, in keeping with the Iran review act, the majority, a bipartisan majority, is wishing to have the opportunity to vote on the substance of the deal.

What is happening is my friend the minority leader, who is here, began saying in August that he wanted to filibuster this, and my understanding is the administration has supported that. So what we have now is a partisan minority of people who are keeping the spirit of the Iran review act from coming into play by blocking our ability to actually vote up or down. That is what is happening. I want to make sure the American people understand that. I know Members of this body understand that.

I want to close with this. Our majority leader, on every occasion where there has been an opportunity for this to devolve into something that was partisan and there was concern on the other side of the aisle about certain things that were occurring, at every point, the majority leader has acquiesced and agreed for things to progress in a way that the minority would feel that this was not a partisan effort.

I wish to also point out that the majority leader, when we brought this resolution of disapproval to the floor, filled the tree. He filled the tree. My friends on the other side of the aisle did not want a bunch of amendments; they wanted only to vote on a resolution of approval or disapproval. In this case, since there is a bipartisan majority in support of disapproval, that is what we are hoping to vote on. But, unfortunately, what is happening again, it appears tonight based on the spirit, although I hope something changes—just last week, 42 Senators blocked the ability of the Senate to end debate and actually vote on the substance of the deal. I hope that changes. I hope tonight at least two Senators on the other side of the aisle will give us the ability to express ourselves on the substance of the deal and not block a bipartisan majority of Members who want to express themselves through a vote of disapproval.

I yield the floor, and I thank the Senator for the time.

The PRESIDING OFFICER. The Senator from Illinois.

Mr. DURBIN. Mr. President, the Senator from Tennessee is my friend. I respect him. I have said so on the floor and have said so privately among my colleagues. For the record, I want to make it clear, though, that Senator REID and the Democrats said there will be no cloture necessary on the motion to proceed, no motion to proceed vote necessary last week on the floor to go to this measure. We had an opportunity to obstruct, to block, whatever you want to say, and we did not do it because we believed that what we had heard repeatedly—that this would be a 60-vote final passage—would ultimately be the standard. There is nothing in the statute that brings us to this measure that in any way eliminates the 60-vote requirement. It is just not there. There is nothing that does that.

When my colleague's side discovered they did not have 60 votes, which was the beginning of last week, they changed the standard and said: We want a majority vote, and anything less than that is a filibuster. So that was a Republican decision based on the fact that now 42 Democratic Senators see this issue differently.

I would just say this: We have had 8 weeks on this issue, and we should have taken 8 weeks on this issue. It is that important. And every Senator should stand up and say where they stand on this issue, and every Senator has stood up and announced where they stand on this issue. This has not been glossed over. We have not made light of it. People aren't trying to find some sneaky way to avoid responsibility. Each person is on the record. You know where I stand, I know where you stand, and that goes for every one of our colleagues.

So what are we doing tonight? Why are we going through a replay of what we did last week, and now with the threat of amendments? Now we are going to have a run of amendments. They won't be on the Iran agreement per se, on the adoption of the agreement, which was the underlying statute. They could be on something else. We are just discovering what they could be.

To say we haven't taken the time and dealt with this in a bipartisan way, dealt with it in a serious way, allowed open debate—we have done it, and we have cooperated in doing it. My colleague doesn't like the result. I happen

to believe it is a result that really reflects where we should be as a nation.

I support the President. I believe we ought to have two goals here: Stop Iran from developing a nuclear weapon and stop America from going to another war in the Middle East. That is what I want achieved, and I think we can achieve it through this agreement. But it is subject to inspection, it is subject to reports, and if the Iranians decide they want to breach this agreement, then we start back on the sanctions. We are back where we started from.

I would say to the Senator from Tennessee, having, as he has, faced these conscience votes on the floor about war and about the deaths associated with them, I conclude: First try diplomacy. If diplomacy does not work, then you have to pursue whatever is necessary for national security. But I believe we have said—42 out of 46 Democratic Senators—we support diplomacy first.

To argue that this is somehow partisan because four Senators see it differently—I think there may be some partisanship in the fact that not a single Republican Member of the House or Senate supports the President's position—not one. I think there may be some partisanship in the fact that 47 Republican Senators, on March 9, 2015, sent a letter to the Ayatollah in Iran and said, basically, stop negotiating with the United States of America. There is no point in it. That has never ever, ever happened in diplomatic history—that 47 Republican Senators would prejudge a matter under negotiation with the President of the United States. But they did. So the fact that all 47 voted against this agreement is no surprise. They announced in March they were against the agreement no matter what it said. I think that is the reality of what we face today.

I don't know why we are going to keep repeating these votes over and over. There are a lot of things we should take up. We have nine legislative days left until this fiscal year ends and we end up closing down the government. I think it is time for us to move on to important issues that should command the attention of the Senate.

The PRESIDING OFFICER. The majority leader.

Mr. MCCONNELL. Mr. President, I am going to proceed under my leader time.

I want to start by congratulating the chairman of the Foreign Relations Committee for an incredible job in giving the Senate an opportunity to actually express itself on what the President has described as an executive agreement.

It is an executive agreement. I think it is important for everybody to understand that the next President of the United States is going to take a new look at this because it doesn't have the force of law of a treaty. But the President didn't want us to have anything to do with it at all. And the chairman of the Foreign Relations Committee, Senator CORKER, skillfully negotiated with the other side to give us an opportunity, as elected representatives of the American people, to actually express our views on his unilateral action with the Iranian Government. We proceeded, as the Senator from Tennessee pointed out, in a manner that respected the process and gave the Senate an opportunity to vote on that deal only, even though technically it was open for amendment. Yet we have been denied the opportunity to get an up-or-down vote on the agreement on which the Corker-Cardin bill gave us an opportunity to express ourselves.

So I congratulate the Senator from Tennessee. It has been an extraordinary legislative performance. The Senator from Tennessee, as we all know, is someone who admires and respects and is willing to talk to the other side, and frequently good things come about as a result of it. But we are where we are.

This evening, Senate Democrats will have one more opportunity to do the right thing and end their blockade of a vote on the President's deal with Iran. We know that a strong, bipartisan majority of the Senate would vote to reject it. But Democratic leaders are determined to do anything they can to prevent that vote from happening because Democrats know the deal is indefensible—indefensible—on the merits.

The President's Iran deal would allow the world's leading state sponsor of terrorism to retain thousands of centrifuges, to enrich uranium, to conduct their research and development programs for advanced centrifuges, and to reap a multibillion-dollar cash windfall which would help it fund terrorist groups like Hezbollah.

Here is what the Iranian Defense Minister said just last week:

> I officially declare that under no circumstances will we refrain from providing material and moral support to Hezbollah, or to any other group of the resistance to the U.S. and Israel. We say this loud and clear.

That is the Iranian Defense Minister.

The assault on Israel and the assault on the United States continues unabated. In other words, President Obama's Iran deal would likely entrench Iran's nuclear capabilities, essentially help subsidize terrorism, and threaten Israel—for what? For what? It is not as if the Iranian regime is about to change its behavior. The Supreme Leader crows that change ''will never happen'' as he rails against the Great Satan—that is us—and promises Israel's demise. The scary thing about this is that he is serious. He really means it. The scarier thing is that the President's deal could empower his regime.

This is a gravely serious matter. The American people deserve to know where their respective Senators stand on the President's deal.

Democrats seem to think they can end the discussion by blocking an up-or-down vote, then turn around and pretend they care deeply about Israel and human rights. Well, if they vote again to deny the American people a final vote, they will have a chance to test the theory.

I will file an amendment that would prevent the President from lifting sanctions until Iran meets two simple benchmarks: It must formally recognize Israel's right to exist, and it must release the American citizens being held in Iranian custody.

Let me say that again. If cloture is not invoked, I will file an amendment that would prevent the President from lifting sanctions until Iran meets two simple benchmarks: It must formally recognize Israel's right to exist, and it must release American citizens being held in Iranian custody.

The President has so far resisted linking his deal—a deal that fails to end Iran's enrichment program, while leaving it as an American-recognized nuclear threshold state—to other aspects of Iran's conduct, but linkage is appropriate, and in this negotiation it would have been wise to have linkage.

Indeed, Senators say they understand the importance of standing up for an ally such as Israel in a dangerous region, and the Senate voted unanimously just a few months ago in calling for Iranian leaders to release these Americans.

Here is what one American prisoner—this is an American prisoner in Iran, one of ours—wrote earlier this year:

> As a fellow American and combat veteran, I am writing to bring to your attention my situation and that of a long list of my fellow Americans. For nearly three and a half years, I have been falsely imprisoned and treated inhumanely. . . . While I am thankful that the State Department and the Obama administration has called for my release and that of my fellow Americans, there has been no serious response to this blatant and ongoing mistreatment. . . .

My strong preference is for our Democratic friends to simply allow an up-or-down vote on the President's Iran deal. I don't know what they are protecting him from. He is proud of this deal. As I suggested last week, he could have a ceremony down there while he vetoed the resolution of disapproval. He has convinced them to protect him from what he is bragging about. But if they are determined to make that impossible, then at the very least we should be able to provide some protection to Israel and long-overdue relief to Americans who have languished in Iranian custody for years.

So let me just say this. Either way, this debate will continue. This is an issue with a very, very long shelf life. It will be before the American people for the next year and a half and will certainly be a factor in their determination of whom they want to lead our country as President in the next election.

The PRESIDING OFFICER. The Democratic leader.

Mr. REID. Mr. President, it is hard for me to comprehend how my Republican colleagues with a straight face can talk about ''Let's have an up-or-down vote on this.'' We agreed to allow

Republicans to have an up-or-down vote. I asked consent on this floor on two separate occasions, and I make the same request now. We are willing to have a 60-vote threshold. That is an agreement we made, and we are happy to do it. But for my friends now to say ''We want an up-or-down vote,'' up-or-down votes on the magical number of 60 is what they created. We didn't draft this legislation. It was brought through committee to this floor. They thought they had—they, the Republicans, thought everything was fine until they realized they didn't have enough votes and suddenly they changed direction dramatically. Fifty votes wasn't good enough for trying to raise the minimum wage. Certainly a simple majority wasn't enough to do anything about the overwhelming debt that faces the American people. It is not credit cards, it is student debt. No, we couldn't debate that; we had to have 60 votes. Equal pay for men and women? No, we are not going to allow that to happen; what we want is to have 60 votes. That is the reason we had to file cloture more than 600 times, because the rule had been established by my Republican friend, the Republican leader, during the entire Obama administration that that is the rule.

Here is what he said—and I have read on this floor all the multitude of statements he has given saying it would be 60 votes: We are not interesting in using floor time for get-well efforts. We only have so much time on the Senate floor. If this isn't a get-well issue, I don't know what would be. We had debate that took place over a long period of time with this issue. It was debated during the August recess, it was debated all last week on the floor, and the decision was made that the measures brought before this body did not get enough votes. It didn't get 60 votes. That is the threshold. We have agreed to have that vote, and suddenly the rules are suddenly attempting to be changed here, and they are not going to be changed.

It is a situation where I wonder if the Republican leader has bothered to look at the calendar. We have 8 days now until we are at the end of the fiscal year—8 days. We have 32 Republicans who have written to the Speaker saying: We are not going to allow a bill to pass unless we get rid of Planned Parenthood—health care for women. We have had statements of people running for President over here who are saying there will be nothing done on paying the government's bills unless we do something about Planned Parenthood. Other people have made statements that they want riders dealing with EPA and on and on.

Now, it would be different—maybe we wouldn't be as concerned, except you did it once. You did it once. They closed the government for almost 3 weeks. Two years ago, the government was actually shut down for almost 3 weeks.

We have staring us in the face the debt ceiling, which is going to be upon us quickly. But, no, we are told that what we are going to deal with next after this: We are going to do something that everyone knows has no chance of passing, and that is something dealing with abortion. I guess they want to do that before the Pope gets here. But it is not going to change the Pope, how he feels about the fact that Republicans have ignored poor people in America. It is not going to change the Pope, how he feels about what is happening to our great world that we live in, that we know, dealing with climate change. Republicans have denied that climate change exists. So they can have a fake vote on abortion. It is not going to change how Pope Francis feels about what is happening, and it is all being directed towards the Republicans, and he doesn't need—everyone knows what the problems are.

So we can be threatened all we need to be threatened. The Republican leader has threatened us: We lost, and we are going to make you suffer. Just like we lost ObamaCare.

We had over 600 votes to get rid of that. We may have more than that to get rid of this agreement.

They have magnified this agreement. They have this agreement—oh, it is doing all kinds of things. The purpose of this agreement, everyone knows, is to stop Iran from having a nuclear weapon, and that is what it does. That is the sole purpose of this agreement. And it is an agreement that is so important. It is so important that we got Russia, we got China, and the others, our allies—Germany, France—to sign off on this, and Great Britain. To think, after all the years of negotiating this through all of our friends and allies, including the good work that has been done in this regarding Russia and China, to think that suddenly it is going to be back the way it was. Every one of these countries said: If you don't move forward on this agreement, we are through. Sanctions are gone.

So this is not an intelligent debate because my friend the Republican leader is trying to change the rules he developed. He created these rules. He created the 60-vote threshold. We tried to change that hundreds of times, but no.

Let's also remind everybody that we did not filibuster this bill. We let the Republicans go to this bill. We let them go to the bill. We let them go to the bill. There was no motion to proceed. And people watching may say: What is that? Well, what the Republicans did time and time again, even on measures they wanted passed, they would make us file a motion to proceed and have cloture on that. That ate up a week's period of time. In their mind, that was really tasty because it was good, because it stopped Obama from moving his program ahead. Anything to stall for time. Well, the 60-vote threshold was created by the Republicans. That is the rule of this body, and we are sticking by the rules of this body. It was created by the Republicans.

So we can be—I repeat—threatened all my friend the Republican leader wants to threaten us. Whatever he wants to do, he has a right do that. We are not going to be stalling for time. If he wants to tear down a tree—remember the tree? Remember, Reid was the bad guy; he filled the tree. I can't number the times my friend the Republican leader has filled the tree—something he said would never happen. He said bills wouldn't come to this body unless there were hearings and they were reported out of committee. Of course, that is not true. Being majority leader is not as easy as giving speeches.

What is going on tonight is a charade by the Republicans to try to change the rules in the middle of the game. The Republicans have lost. They have lost this measure. We should move on to something else. It should be the budget. It shouldn't be abortion.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. CORKER. Mr. President, I do want to clarify, the bill specifically states regular order. It is not the rule of the Senate that final votes are on 60 votes. They are on a majority vote. I don't want anybody in the Senate or certainly the public to think that somehow we have a rule that bills pass on 60 votes. That is not the case. That has been a tradition on major issues, but that is not the rule. The bill specifically states we will settle under regular order, which means when cloture is invoked—which hopefully will happen tonight—we will have a simple majority vote, up or down.

Mr. REID. Could I ask my friend a question?

The PRESIDING OFFICER. Would the Senator yield for a question?

Mr. CORKER. If it is brief. I know people have a meeting to go to.

Mr. REID. Do you think this Iran issue is a major issue?

Mr. CORKER. It is a major issue.

Mr. REID. You answered your own question.

Mr. CORKER. I am hoping we are going to be able to vote our conscience on this major issue by getting cloture invoked.

I ask unanimous consent to waive the mandatory quorum call with respect to the cloture motions on amendment No. 2640 and H.J. Res. 61.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

CLOTURE MOTION

Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Senate amendment No. 2640.

Mitch McConnell, John Cornyn, John Barrasso, Bob Corker, Steve Daines, David Perdue, Tom Cotton, Susan M. Collins, Deb Fischer, Shelley Moore

Capito, Mike Crapo, Ron Johnson, Cory Gardner, Marco Rubio, Lamar Alexander, James M. Inhofe, Mike Rounds.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on amendment No. 2640, offered by the Senator from Kentucky, Mr. MCCONNELL, to H.J. Res. 61, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from South Carolina (Mr. GRAHAM) and the Senator from Kentucky (Mr. PAUL).

The PRESIDING OFFICER (Mr. DAINES). Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 56, nays 42, as follows:

[Rollcall Vote No. 265 Leg.]

YEAS—56

Alexander	Ernst	Murkowski
Ayotte	Fischer	Perdue
Barrasso	Flake	Portman
Blunt	Gardner	Risch
Boozman	Grassley	Roberts
Burr	Hatch	Rounds
Capito	Heller	Rubio
Cardin	Hoeven	Sasse
Cassidy	Inhofe	Schumer
Coats	Isakson	Scott
Cochran	Johnson	Sessions
Collins	Kirk	Shelby
Corker	Lankford	Sullivan
Cornyn	Lee	Thune
Cotton	Manchin	Tillis
Crapo	McCain	Toomey
Cruz	McConnell	Vitter
Daines	Menendez	Wicker
Enzi	Moran	

NAYS—42

Baldwin	Gillibrand	Nelson
Bennet	Heinrich	Peters
Blumenthal	Heitkamp	Reed
Booker	Hirono	Reid
Boxer	Kaine	Sanders
Brown	King	Schatz
Cantwell	Klobuchar	Shaheen
Carper	Leahy	Stabenow
Casey	Markey	Tester
Coons	McCaskill	Udall
Donnelly	Merkley	Warner
Durbin	Mikulski	Warren
Feinstein	Murphy	Whitehouse
Franken	Murray	Wyden

NOT VOTING—2

Graham	Paul

The PRESIDING OFFICER. On this vote, the yeas are 56, the nays are 42.

Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected.

The majority leader.

CLOTURE MOTION WITHDRAWN

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the cloture motion with respect to H.J. Res. 61 be withdrawn.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

VOTE ON MOTION TO COMMIT

Mr. MCCONNELL. Mr. President, I move to table the motion to commit.

The PRESIDING OFFICER. The question is on agreeing to the motion to table.

The motion was agreed to.

VOTE ON AMENDMENT NO. 2643

Mr. MCCONNELL. Mr. President, I move to table amendment No. 2643.

The PRESIDING OFFICER. The question is on agreeing to the motion to table.

The motion was agreed to.

VOTE ON AMENDMENT NO. 2641

Mr. MCCONNELL. Mr. President, I move to table amendment No. 2641.

The PRESIDING OFFICER. The question is on agreeing to the motion to table.

The motion was agreed to.

AMENDMENT NO. 2656 TO AMENDMENT NO. 2640

Mr. MCCONNELL. Mr. President, I have an amendment that is at the desk that I ask the clerk to report.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL] proposes an amendment numbered 2656 to amendment No. 2640.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To prohibit the President from waiving, suspending, reducing, providing relief from, or otherwise limiting the application of sanctions pursuant to an agreement related to the nuclear program of Iran)

Strike line 3 and all that follows and insert the following:

SECTION 1. REMOVAL OF AUTHORITY TO WAIVE, SUSPEND, REDUCE, PROVIDE RELIEF FROM, OR OTHERWISE LIMIT THE APPLICATION OF SANCTIONS PURSUANT TO AN AGREEMENT RELATED TO THE NUCLEAR PROGRAM OF IRAN.

(a) IN GENERAL.—Notwithstanding any other provision of law, the President may not—

(1) waive, suspend, reduce, provide relief from, or otherwise limit the application of sanctions described in subsection (b) or refrain from applying any such sanctions; or

(2) remove a foreign person listed in Attachment 3 or Attachment 4 to Annex II of the Joint Comprehensive Plan of Action from the list of specially designated nationals and blocked persons maintained by the Office of Foreign Asset Control of the Department of the Treasury.

(b) SANCTIONS DESCRIBED.—The sanctions described in this subsection are—

(1) the sanctions described in sections 4 through 7.9 of Annex II of the Joint Comprehensive Plan of Action; and

(2) the sanctions described in any other agreement related to the nuclear program of Iran that includes the United States, commits the United States to take action, or pursuant to which the United States commits or otherwise agrees to take action, regardless of the form it takes, whether a political commitment or otherwise, and regardless of whether it is legally binding.

(c) EXCEPTION.—The prohibitions under subsection (a) shall not apply if the Islamic Republic of Iran—

(1) has released Jason Rezaian, Robert Levinson, Saeed Abedini, and Amir Hekmati to the custody of the United States; and

(2) formally recognizes the State of Israel as a sovereign and independent state.

(d) JOINT COMPREHENSIVE PLAN OF ACTION DEFINED.—In this section, the term ''Joint Comprehensive Plan of Action'' means the Joint Comprehensive Plan of Action, signed at Vienna on July 14, 2015, by Iran and by the People's Republic of China, France, Germany, the Russian Federation, the United Kingdom and the United States, with the High Representative of the European Union for Foreign Affairs and Security Policy, and all implementing materials and agreements related to the Joint Comprehensive Plan of Action.

Mr. MCCONNELL. I ask for the yeas and nays on my amendment.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The yeas and nays were ordered.

AMENDMENT NO. 2657 TO AMENDMENT NO. 2656

Mr. MCCONNELL. Mr. President, I have a second-degree amendment at the desk.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL] proposes an amendment numbered 2657 to amendment No. 2656.

Mr. MCCONNELL. I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

At the end add the following.

''This Act shall take effect 1 day after the date of enactment.''

AMENDMENT NO. 2658

Mr. MCCONNELL. Mr. President, I have an amendment to the text proposed to be stricken.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL] proposes an amendment numbered 2658 to the language proposed to be stricken by amendment No. 2640.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

At the end add the following.

''This Act shall take effect 2 days after the date of enactment.''

Mr. MCCONNELL. Mr. President, I ask for the yeas and nays on my amendment.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The yeas and nays were ordered.

AMENDMENT NO. 2659 TO AMENDMENT NO. 2658

Mr. MCCONNELL. Mr. President, I have a second-degree amendment at the desk.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL] proposes an amendment numbered 2659 to amendment No. 2658.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

Strike ''2'' and insert ''3''.

MOTION TO COMMIT WITH AMENDMENT NO. 2660

Mr. MCCONNELL. Mr. President, I have a motion to commit with instructions at the desk.

The PRESIDING OFFICER. The clerk will report the motion.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL] moves to commit the joint resolution to the Foreign Relations Committee with instructions to report back forthwith with an amendment numbered 2660.

The amendment is as follows:

(Purpose: To prohibit the President from waiving, suspending, reducing, providing relief from, or otherwise limiting the application of sanctions pursuant to an agreement related to the nuclear program of Iran)

Strike all after the enacting clause and insert the following:

SECTION 1. REMOVAL OF AUTHORITY TO WAIVE, SUSPEND, REDUCE, PROVIDE RELIEF FROM, OR OTHERWISE LIMIT THE APPLICATION OF SANCTIONS PURSUANT TO AN AGREEMENT RELATED TO THE NUCLEAR PROGRAM OF IRAN.

(a) IN GENERAL.—Notwithstanding any other provision of law, the President may not—

(1) waive, suspend, reduce, provide relief from, or otherwise limit the application of sanctions described in subsection (b) or refrain from applying any such sanctions; or

(2) remove a foreign person listed in Attachment 3 or Attachment 4 to Annex II of the Joint Comprehensive Plan of Action from the list of specially designated nationals and blocked persons maintained by the Office of Foreign Asset Control of the Department of the Treasury.

(b) SANCTIONS DESCRIBED.—The sanctions described in this subsection are—

(1) the sanctions described in sections 4 through 7.9 of Annex II of the Joint Comprehensive Plan of Action; and

(2) the sanctions described in any other agreement related to the nuclear program of Iran that includes the United States, commits the United States to take action, or pursuant to which the United States commits or otherwise agrees to take action, regardless of the form it takes, whether a political commitment or otherwise, and regardless of whether it is legally binding.

(c) EXCEPTION.—The prohibitions under subsection (a) shall not apply if the Islamic Republic of Iran—

(1) has released Jason Rezaian, Robert Levinson, Saeed Abedini, and Amir Hekmati to the custody of the United States; and

(2) formally recognizes the State of Israel as a sovereign and independent state.

(d) JOINT COMPREHENSIVE PLAN OF ACTION DEFINED.—In this section, the term ''Joint Comprehensive Plan of Action'' means the Joint Comprehensive Plan of Action, signed at Vienna on July 14, 2015, by Iran and by the People's Republic of China, France, Germany, the Russian Federation, the United Kingdom and the United States, with the High Representative of the European Union for Foreign Affairs and Security Policy, and all implementing materials and agreements related to the Joint Comprehensive Plan of Action.

This act shall take effect 4 days after the date of enactment.

Mr. MCCONNELL. I ask for the yeas and nays on my motion.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The yeas and nays were ordered.

AMENDMENT NO. 2661

Mr. MCCONNELL. Mr. President, I have an amendment to the instructions.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL] proposes an amendment numbered 2661 to the instructions of the motion to commit H.J. Res. 61.

Mr. MCCONNELL. I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

On page 3, line 22, strike ''4'' and insert ''5''.

Mr. MCCONNELL. I ask for the yeas and nays on my amendment.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The yeas and nays were ordered.

AMENDMENT NO. 2662 TO AMENDMENT NO. 2661

Mr. MCCONNELL. Mr. President, I have a second-degree amendment at the desk.

The PRESIDING OFFICER. The clerk will report.

The bill clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL] proposes an amendment numbered 2662 to amendment No. 2661.

The amendment is as follows:

Strike ''5'' and insert ''6''.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk for amendment No. 2656.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Senate amendment No. 2656.

Mitch McConnell, John Cornyn, Roy Blunt, John Thune, Deb Fischer, John Barrasso, Roger F. Wicker, Michael B. Enzi, Shelley Moore Capito, Orrin G. Hatch, Rob Portman, Mike Crapo, Richard C. Shelby, Pat Roberts, Thad Cochran, Mike Rounds, David Perdue.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk for amendment No. 2640.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Senate amendment No. 2640.

Mitch McConnell, John Cornyn, Roy Blunt, John Thune, Deb Fischer, John Barrasso, Roger F. Wicker, Michael B. Enzi, Shelley Moore Capito, Orrin G. Hatch, Rob Portman, Mike Crapo, Richard C. Shelby, Pat Roberts, Thad Cochran, Mike Rounds, David Perdue.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion to the desk for H.J. Res. 61.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on H.J. Res. 61, a joint resolution amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act.

Mitch McConnell, John Cornyn, Roy Blunt, John Thune, Deb Fischer, John Barrasso, Roger F. Wicker, Michael B. Enzi, Shelley Moore Capito, Orrin G. Hatch, Rob Portman, Mike Crapo, Richard C. Shelby, Pat Roberts, Thad Cochran, Mike Rounds, David Perdue.

Mr. MCCONNELL. Mr. President, I ask unanimous consent to waive the mandatory quorum calls under these cloture motions.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

MORNING BUSINESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNIZING VERMONT'S SEVENTH GENERATION

Mr. LEAHY. Mr. President, I want to call the Senate's attention today to yet another outstanding Vermont business: Seventh Generation. Seventh Generation unveiled its line of environmentally friendly consumer household products more than 25 years ago. Today it has expanded to become one of the dominant businesses in this continuously emerging market.

I have visited Seventh Generation many times, and I am consistently impressed with how the company continues to find new ways of expanding its business and offering Americans affordable and more sustainable alternatives to standard household products.

Since 2011, Seventh Generation has seen its business grow year after year and has unveiled some 100 new products in the last 4 years alone. President and CEO John Replogle has reinvigorated the company, further defining its purpose and leadership in the competitive marketplace.

Seventh Generation has long been a company that fosters the business principles and ideals that so many Vermonters value: to make products locally, to keep it sustainable, to leave no footprint, and make products accessible. From its Burlington offices that overlook the shores of Lake Champlain to the shelves of the retail giants now promoting its products, Seventh Generation is yet another Vermont company leading the way in corporate responsibility.

I ask unanimous consent that the August 27, 2015, article from the Burlington Free Press entitled ''Seventh Generation: 'Bursting at the seams' '' be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Burlington Free Press, Aug. 27, 2015]

SEVENTH GENERATION: 'BURSTING AT THE SEAMS'

(By Dan D'Ambrosio)

Seventh Generation in Burlington has been on a tear since John Replogle took over as president and CEO in 2011. Sales are up more than 60 percent, from about $150 million when Replogle arrived to about $250 million projected for this year. Annual growth is in the ''low double digits,'' says Replogle.

That's a lot of toilet tissue made from recycled paper and natural, cold-water laundry detergent, not to mention the dozens of other products in Seventh Generation's expanded line of ''green'' disinfectants, dishwashing and hand soaps, surface cleaners, diapers and baby wipes and feminine hygiene products. Seventh Generation has added about 100 new products under Replogle.

The company today dominates the market for natural cleaning products, according to Replogle, who says the other leaders in the industry are Method and Mrs. Meyers Clean Day.

''Adding our sales together we have a half-billion dollar business,'' said Replogle. ''I would love to see the three brands grow to a billion dollars over the next few years.''

In typical Reploglian fashion, Replogle declines to criticize his two closest competitors in any way, going so far as to refer to them as ''frenemies.'' And he points out that the three brands together have less than a 5 percent share in any category they sell in, leaving a long way to go before they begin to threaten the Procter & Gambles of the world.

''What they're trying to do is very much in the spirit of what we're trying to do,'' Replogle said. ''Use fewer ingredients, be less toxic, be more sustainable in manufacturing and packaging. So there's a lot of commonality among our brands.''

'A REALLY SMART DUDE'

Replogle, 49, is the former president of Guinness in the United States and United Kingdom. From there he went to Unilever, where he ran the North American skin care business, with brands including Dove, Ponds, Caress and Lever 2000. Next, in 2006, Replogle took the helm at Burt's Bees, bringing the quirky natural skin care company to the masses.

''We launched at Target, CVS and Walgreen's,'' Replogle said. ''We built a national brand. I put great people on the team, and gave them a lot of freedom. We set up core values and principles to run the company and we invested behind it, and it took off.''

Which is a pretty good description of what Replogle has done at Seventh Generation. Alan Newman, founder of Magic Hat Brewing Co., launched the original Seventh Generation catalog business more than 25 years ago. Newman has been watching Replogle from his latest perch in the Maltex Building on Pine Street, where Newman is running a new craft beer company for The Boston Beer Co., a.k.a. Samuel Adams. Newman likes what he sees on the waterfront, where Seventh Generation is headquartered at Main Street Landing.

''John's a really smart dude who knows how to bring focus to an organization, who knows how to re-enthuse the mission,'' Newman said. ''From what I can tell from the outside, he's a really good delegator and manager.''

In Newman's estimation, Seventh Generation had largely lost sight of its mission four years ago when Replogle took over.

''I did not pay a lot of attention to Seventh Generation, but whenever I did they were scattered all over the place,'' Newman said. ''They didn't seem to have any mission left.''

Sales were also flat, Replogle said.

''I just knew this company stood for something greater and that it needed leadership,'' Replogle said. ''The company was at a crossroads. We were very nearly at the end of our rope frankly.''

Replogle began drawing that rope in by putting a laser focus on what Seventh Generation stands for—natural, sustainable, environmentally sensitive cleaning products, the only segment of the retail category showing significant growth.

''We're really in tune with the consumer today,'' Replogle said. ''The millennial consumer in particular, people trying to avoid chemicals, who are more conscious about not only what's in their product but also the practices of the company itself. More and more young consumers are understanding the company behind their product matters. We're winning with those consumers.''

A PIONEER BRAND

As an example of a best manufacturing practice at Seventh Generation, Replogle points to the fact that the company contracts all of its manufacturing to about 22 factories across the nation. ''You will always have the most sustainable footprint on a dispersed model,'' Replogle said. ''If we can manufacture closer to the market, we'll do a lot better. A lot of companies have one large-scale manufacturing site. Then you have to ship everything in and ship the products out.'' Second, Replogle said, Seventh Generation continues to innovate.

''We've upgraded every product in our portfolio in the last four years,'' he said. ''Every product has been improved in some material way. We never stop and we're innovating into new spaces. Plus, we've taken our brand from a few categories into several categories. We're not only in dish soap and laundry detergent, we're in hand wash, diapers and wipes and feminine care. We've gone across all the categories.''

Target has taken notice. Spokeswoman Erica Julkowski said Seventh Generation is one of a ''handful of vendors'' the giant retailer works with closely to ''ideate and develop products.'' ''Seventh Generation is a pioneer brand in natural cleaning and has been a valued partner to Target by providing ongoing innovation and thought leadership,'' Julkowski said in an email. ''Through Seventh Generation's deep understanding of the naturals cleaning industry, they continue to provide expert knowledge on the market and insight into up-and-coming products that might resonate with the Target guest.''

In Seventh Generation's soothing offices overlooking Lake Champlain—all earth tones and wood paneling with an open center staircase festooned with greenery and the company's principles emblazoned on dangling wooden signs—John Fitzgerald is working on a shelf layout for Target. The products are dish soaps and detergents.

In the computer generated ''plan-o-gram'' on his big screen, Fitzgerald proposes a display layout of not only Seventh Generation's products, but also of Method's and Mrs. Meyer's offerings, as well as giants like Cascade and Finish. Finally, Fitzgerald proposes shelf positions for Target's own house brands, all based on data collected by a third party.

''Our goal is to be objective, to share the facts and give them a recommendation,'' Replogle said. ''Our goal isn't to convince them our way is the right way.''

Nevertheless, working so closely with Target is a pretty good relationship builder, Replogle adds.

BORN HERE, STAYING HERE

Seventh Generation is bursting at the seams at Main Street Landing, with most of its approximately 140 employees working in Burlington. Replogle plans on adding another 15 employees to the staff by the end of the year.

''We have maximized our space in here,'' he said. ''Growth is a wonderful thing, but right now we're fully utilized in this building.''

That doesn't mean, however, that Seventh Generation is going anywhere.

''Burlington is our long-term home,'' Replogle said. ''We were born here, we're growing up here and will will remain here. No question. We're committed to that.''

Seventh Generation has a small office in Toronto, and a satellite office in Raleigh, North Carolina, where Replogle lived as CEO of Burt's Bees, and where his family still lives.

When he was recruited to run Seventh Generation, Replogle and his wife decided against uprooting their four children, so he has been commuting, returning to his home in Raleigh every other week.

A native of Boston and a graduate of Dartmouth and Harvard, Replogle feels he has the best of both worlds, maintaining his life in Raleigh and returning to New England for more than a visit. Replogle said it's going to feel even better when his daughter starts at Dartmouth as a freshman this fall.

''She'll be right down the road as well,'' he said.

Replogle expects to open an office in California soon, and earlier this year he launched the business in China with an office in Hangzhou.

''There's demand for our products over there,'' Replogle said. ''We're in Japan, Hong Kong, of course mainland China. We're in Korea, Vietnam, Australia. That's been growing over the last five years.''

Replogle said Seventh Generation will also be in Europe within three years.

''How we get there we're still working on right now,'' he said. ''Whether it's a direct model where we create Seventh Generation Europe or whether we partner into that market we haven't determined yet.''

THE LATEST VENTURE

Seventh Generation's office in Raleigh is home to the company's venture arm, with nine employees who look for new business opportunities beyond natural cleaning products.

''We created Seventh Generation Ventures about three years ago with the idea of

partnering with like-minded companies and helping them accelerate their growth,'' Replogle said.

The acquisitions began with Bobble, a filtered water bottle company Seventh Generation bought in 2013. The plastic water bottle features a replaceable charcoal filter, and sells for $10, with a new filter that costs about $3. It's marketed as a way to reduce disposable water bottle use.

Next, Seventh Generation Ventures picked up Presse, a travel coffee mug with built-in French press, which is being marketed under the Bobble name. Call it a K-Cup killer.

''This is our answer to Keurig,'' said Replogle, holding a stainless steel Presse in his hand. ''We looked for mission-aligned companies like this that are trying to solve a problem like, end the incredible waste of single-serve water bottles or, end the incredible waste of K-Cups.''

Seventh Generation Ventures was boosted considerably by a $30 million investment last September from former Vice President Al Gore's investment fund, the London-based Generation Investment Management LLP. Seventh Generation returned to private ownership about 15 years ago after a brief flirtation with being a publicly owned company.

The company's nine board members own about 70 percent of the company, Replogle said, with new shareholders periodically invited in, and existing shareholders offered an exit. The $30 million from Gore's foundation was mostly used to retire existing shareholders who wanted to exit.

''There's a long list of investors and companies that would love to put their money into Seventh Generation,'' Replogle said. ''We're pretty fortunate. We have a good thing happening right now.'' Seventh Generation is also debt-free.

''John has re-energized the business,'' Alan Newman said. ''He has them on clear objectives. He's done the things that you do to be successful in business.''

SAWTOOTH NATIONAL RECREATION AREA

Mr. CRAPO. Mr. President, I wish to celebrate the enactment of the Sawtooth National Recreation Area and Jerry Peak Wilderness Additions Act and congratulate my Idaho congressional delegation colleagues Representative MICHAEL K. SIMPSON and Senator JAMES E. RISCH on this important achievement.

Enactment of this legislation, also called the SNRA Plus, was accomplished due to significant hard work, led by Representative SIMPSON. Representative SIMPSON's determination to work through the many challenges that arose during the near decade of this collaborative effort has given Idaho a homegrown solution to sustaining this treasured area of Idaho.

Senator RISCH's work in shepherding this legislation through the Senate, including through the Senate Committee on Energy and Natural Resources on which he serves, is also commendable. Senator RISCH fought through many challenges in his pursuit of getting this needed legislation over the finish line.

A number of other individuals deserve acknowledgement for their considerable efforts to develop a hard-sought consensus that will be of lasting benefit. John Revier and Lindsay Slater of Representative SIMPSON's staff dedicated immeasurable time and extensive know-how to developing the legislation to reach this milestone. Custer and Blaine County Commissioners also did an outstanding job in this collaborative effort. The SNRA Plus is a win for Idaho and an example of how local governments and interests can achieve solutions to some of the most persistent public lands issues we face today.

Following the enactment of this important legislation, the focus must now shift to the hard work of successful implementation that will require commitment from the various Federal agencies and all of the affected interests. Again, I commend Representative SIMPSON, Senator RISCH and the other stakeholders for their important work that will make a lasting difference in our great State.

RECOGNIZING THE 90TH ANNIVERSARY OF U.S. PROBATION AND PRETRIAL SERVICES

Ms. COLLINS. Mr. President, in March of 1925, President Calvin Coolidge signed into law the Probation Act, making that sentencing option available in the Federal courts. Six months later, on September 22, the first Federal probation officers were appointed, taking on the crucial dual task of promoting rehabilitation and protecting public safety. On this 90th anniversary, we pay our respects to the probation officers who serve the public, helping to keep our communities safe.

The advent of probation at the Federal level was driven by the success and spread of probation by individual States. Between 1909 and 1925, some 34 bills were introduced to establish a Federal probation law. President Coolidge, who as Governor of Massachusetts was familiar with probation at the State level, provided key support for the law's final passage.

A significant impetus for the law's eventual enactment was the fact that the National Prohibition Act of 1919 made Federal criminals out of many non-violent, otherwise law-abiding Americans. Under the auspices of the U.S. Courts, Probation and Pretrial Services has been operating a Federal re-entry court since 2008, along with programs aimed at addiction recovery.

Among those first Federal probation officers was George Grover, who, 20 years before the Probation Act became the first state-authorized probation officer in Maine, serving Cumberland County. Mr. Grover was a vigorous advocate of probation as an alternative to incarceration. Allowing a non-violent offender, under rigorous supervision, to remain at home and in the community, on the job and supporting a family, Mr. Grover often said, ''Gives a man a chance to try again.''

Probation officers are important members of the law enforcement community. Together with pretrial services and other law enforcement agencies, they help individuals become productive, responsible, and law-abiding citizens.

Balancing corrections and rehabilitation with safeguarding the public is difficult and, far too often, dangerous. On this 90th anniversary, we pay our respects to the probation officers who have lost their lives or been assaulted in the line of duty. In particular, I salute the men and women of Probation and Pretrial Services in Maine and across the country for their dedication to the public they serve.

Mr. KING. Mr. President, I wish to recognize the 90th anniversary of the U.S. Probation System in Maine, for their dedication to ensuring the criminal justice system operates effectively and the public remains safe. Two events will be held in recognition, scheduled for September 21, 2015 and September 25, 2015, to commemorate 90 years of hard work and success.

Signed into law by President Calvin Coolidge in 1925, the Probation Act altered the outlook of our judicial system. The act empowered courts to suspend a sentence and place worthy defendants into the probation system. Under predetermined conditions and irrefutable terms, low-level offenders have the opportunity to stay with their families and remain employed, while giving back to the community. For 90 years, this important piece of legislation has helped change and enhance lives, while keeping communities safe.

Implementing probation services as a Federal law was a long and arduous process, and required significant effort at the State level. Maine has been a leader in supporting probation services since the early 1900s. In fact, Maine is home to George Grover, one of the first federally appointed—unpaid—State probation officers. He was appointed 90 years ago, on September 22, 1925, and served the communities and courts of Maine diligently.

The U.S. Probation and Pretrial Services of Maine are dedicated to the betterment of the entire State. Helping to change lives, keeping families together, allowing defendants to stay on the job and give back, are just a few of the benefits this system regularly achieves. The U.S. Probation System is also committed to addressing and combating the serious concern of drug addiction in Maine. Through re-entry courts and treatment services, the probation system is helping low-level offenders turn their lives around and earn a fresh start.

I applaud the U.S. Probation and Pretrial System in Maine for their dedicated service to communities and bettering lives throughout Maine. I would like to join the U.S. District Court of Maine in highlighting the success and hard work that has been demonstrated over the last 90 years.

TRIBUTE TO TERRY BOSTON

Mr. TOOMEY. Mr. President, I wish to take this moment for the Senate to recognize and honor the work of Terry

Boston, who has contributed a lifetime of service to ensure that electricity in America is available reliably and at a reasonable price.

By the end of the year, Mr. Boston will retire from the role of president and chief executive officer of PJM, a position he has held since 2008. PJM is a world-class institution that oversees the largest power grid in North America and employs over 600 people in Audubon, PA. PJM performs the critical function of keeping the lights on 24 hours a day, 7 days a week for over 51 million people in all or portions of Pennsylvania, New Jersey, Delaware, Maryland, West Virginia, Virginia, North Carolina, Tennessee, Kentucky, Ohio, Michigan, Indiana, Illinois, and the District of Columbia.

In addition to his work at PJM, Mr. Boston serves as president of the Association of Edison Illuminating Companies, Inc., and was the immediate past president of the GO 15, an association of the world's largest power grid operators. Mr. Boston was recently elected to the National Academy of Engineering, one of the highest professional honors accorded an engineer, and is a member of the board for the Electric Power Research Institute.

Prior to joining PJM, Mr. Boston was the executive vice president of the Tennessee Valley Authority, the Nation's largest public power provider. In his 35 years at TVA, Mr. Boston directed divisions in transmission and power operations, pricing, contracts, and electric system reliability.

Mr. Boston is a past chair of the North American Transmission Forum, dedicated to excellence in performance and sharing industry best practices. He also was one of the eight industry experts selected to direct the North American Reliability Corporation investigation of the August 2003 Northeast-Midwest blackout.

Terry Boston is one of the most qualified engineers and leaders in the electric industry. I wish him well in his future endeavors.

REMEMBERING WAYNE TOWNSEND

Mr. DONNELLY. Mr. President, today, I wish to recognize and honor the extraordinary service of Wayne Townsend, a lifelong Hoosier who spent 23 years in the Indiana State legislature and was the 1984 Democratic nominee for Governor.

Wayne passed away on July 3, 2015, at the age of 89. A native of Grant County, Wayne dedicated his life to Indiana and embodied the true definition of a public servant.

Throughout his legislative career, Wayne was a tireless advocate for Hoosier public schools and helped lead the effort to pass the School Reorganization Act of 1959 and its reauthorization in 1965. He also was a strong advocate for equal rights.

Throughout his political career, Wayne remained humble and caring. He served as a role model to all Hoosiers and tirelessly fought to improve the lives of millions.

I had the privilege of meeting Wayne on several occasions. His dedication to public service inspired me to create the Wayne Townsend Legislative Program in his honor. The Townsend Program affords college students and recent graduates the opportunity to serve Indiana by working in our Washington, DC, office for a semester. Wayne has been an important mentor to me during my own legislative career, and his legacy continues to motivate me today.

Born on May 1, 1926, on his family's farm in Grant County, the youngest of six children, Wayne graduated from Jefferson Township High School and went on to study agriculture at Purdue University. He joined the Army during the Korean War and served in the Counterintelligence Corps. In 1951, Wayne started his own farming business, which he eventually grew from 225 acres to 2,500 acres. He was elected to the Indiana General Assembly in 1958 at 32 years old and elected to the Indiana Senate in 1970. During his legislative career, Wayne was a member of the house ways and means committee and the senate finance committee.

Outside of politics, Wayne was a loving husband, father, and grandfather. He married Helen Hardin, his college sweetheart, in 1953, and they had five children together: Jay, Mark, Lisa, Steve, and Alan. All five of their children went to Blackford High School and graduated from Purdue University. He was also a proud grandfather to 18 grandchildren.

Wayne continued to play a prominent role in Indiana after his time in the state legislature. He was president of the Grant County Purdue Agricultural Alumni Association and a director of the Purdue Agricultural Alumni Association. Wayne also continued his involvement in education, serving as a trustee for Earlham College for 8 years and a trustee for Purdue University for 15 years. In 2007 he received the Frank O'Bannon Public Service Award, and in 2014 he received Purdue University's highest honor, the Order of the Griffin.

Wayne will be deeply missed by all Hoosiers. His integrity, tireless efforts, and strong leadership helped to make Indiana a better place, and we will always be grateful for his service. May God welcome him home and bring comfort to his family and friends.

REMEMBERING LIEUTENANT CALVIN SPANN

Mr. BOOKER. Mr. President, I wish to celebrate the remarkable life and accomplishments of a great American and New Jerseyan, Lieutenant Calvin Spann. As a boy in Rutherford, NJ, Calvin was amazed by the miracle of flight, watching as planes took off from nearby Teterboro Airport. This early passion for aviation, coupled with a determination to prove that as an African American he was as capable as anyone to fly a plane, would eventually motivate him to take a courageous risk as a young man. Lieutenant Spann enlisted in the Army Air Forces at a time when all branches of the U.S. military were still segregated. He left home behind when he was assigned by the Army to attend Flight Training School at Tuskegee University in Alabama.

In earning his wings at Tuskegee and serving in Europe during World War II as a member of the 100th Fighter Squadron and 332nd Fighter Group, Lieutenant Spann proved not only that he could fly but that he could do it with unusual bravery and skill. Lieutenant Spann flew 26 missions during the war, including what was at the time the longest bomber escort mission in history. Lieutenant Spann received numerous awards for his military service, including—much too late—a Congressional Gold Medal in 2006. The distinction with which Lieutenant Spann and his fellow Tuskegee Airmen served paved the way for President Truman to desegregate the U.S. military in 1948.

Lieutenant Spann, unfortunately, returned home at a time in which racial discrimination still outweighed his distinguished military service. Trying to build flight hours in an effort to remain a pilot, he was denied access to planes at Teterboro, and commercial airlines would not hire him simply because of his race. With characteristic resilience, he earned a living for himself and his family as a factory supervisor, sales representative, restaurant owner, and real estate broker. Fifty years later, he was inducted into the New Jersey Aviation Hall of Fame.

Lieutenant Spann pushed against a system that held all Americans back by denying some individuals the ability to contribute their talent and passion simply because of their identity. The United States of America is a better, stronger country because of Lieutenant Spann. For having the courage to pursue his dreams in the face of tremendous obstacles and at great risk to himself, Lieutenant Spann deserves our deepest respect and gratitude. May he rest in peace.

RECOGNIZING THE 100TH ANNIVERSARY OF ALLISON TRANSMISSION

Mr. DONNELLY. Mr. President, today I recognize the 100th anniversary of Allison Transmission, a company that traces its history back to the founding of the Indianapolis Speedway Team Co. in 1915. As a co-founder of the Indianapolis Motor Speedway and part owner of several racing teams, James A. Allison established a machine shop on Main Street in Speedway, IN. Allison's initial focus was racing. However, in 1917 when the United States entered World War I, Allison shifted focus to produce parts and tooling for Liberty engines used by many Allied airplanes in the war.

After a brief return to racing at the war's end in late 1918 and a win at the

1919 Indianapolis 500, Allison continued to focus on engineering aircraft and marine products. When James Allison died in 1928, General Motors bought the company. Shortly before the start of World War II, aircraft engines became the Allison Division's focus. Later, as part of GM, Allison Transmission developed the first cross-drive hydraulic unit for the M–41 Patton tank. Since then the company has made transmissions for most of the U.S. military's armored and tactical wheeled vehicles.

Further development of transmissions for buses, automatics for trucks and buses, hydraulically controlled trucks and buses, and transmissions with electronic controls were developed by Allison from the 1950s through the 1990s. GM sold Allison Transmission in 2007 to a pair of private equity firms, and in March 2012, Allison Transmission Holdings Inc. became a public company with its shares trading on the New York Stock Exchange.

Today, Allison Transmission, a company founded on the values of innovation and Hoosier hard work, continues to deliver quality products and reliable services with a current focus on fuel economy. Headquartered in Indianapolis, Allison Transmission is the world's largest manufacturer of fully automatic commercial-duty transmissions and a leader in hybrid-propulsion systems. Today, vehicles powered by an Allison fully automatic transmission can be found on every continent doing everything from transporting school children, fighting fires, and unlocking oil beneath the earth's surface. Allison Transmission currently has approximately 2,700 employees and a presence in more than 80 countries, including manufacturing facilities in the United States, Hungary, and India.

On behalf of the citizens of Indiana, I would like to congratulate Allison Transmission on 100 years of success. As a multinational company that grew out of a humble machine shop in Speedway, IN, Allison Transmission has served as an economic and community anchor for the greater Indianapolis area and beyond.

On this special occasion, we congratulate Allison Transmission on 100 years of excellence in innovation and service, and honor the generations of Hoosiers who have devoted their careers to manufacturing excellence under the Allison Transmission brand. We are proud that Allison Transmission calls Indiana home, and we wish them continued success for many years to come.

ADDITIONAL STATEMENTS

TRIBUTE TO JOSEPH CASEY

● Mr. CASEY. Mr. President, today I wish to congratulate Mr. Joseph M. Casey for his years of renowned service to the Southeastern Pennsylvania Transit Authority, SEPTA, and the Commonwealth of Pennsylvania. On September 30, 2015, Mr. Casey will retire as general manager of SEPTA.

Mr. Casey has worked in the transportation sector for over 30 years. His efforts have helped propel SEPTA, the sixth largest transit system in the Nation, to new heights in an era of great change and innovation within the transportation industry. Joe has been at the forefront of this innovation, leading the charge to transform SEPTA from a dependable transportation service to a nationwide leader and trailblazer in public transportation.

During his tenure as general manager of SEPTA, Mr. Casey demonstrated a steadfast dedication to customer service, infrastructural innovation, and business integrity.

Mr. Casey is committed to the principle of putting the customer first. He established SEPTA's first customer service division, which worked endlessly to ensure customer service was the cornerstone of SEPTA and its employees. Mr. Casey's ''Four Cs'' of customer service—cleanliness, convenience, courtesy, and communication—quickly became doctrine engrained in the daily operations of the authority. Mr. Casey's unwavering dedication to customer service helped propel SEPTA to record ridership numbers and mold SEPTA into the authority it is today.

Mr. Casey not only helped SEPTA become a more advanced and innovative authority, he worked tirelessly to improve the entire transportation infrastructure of Southeastern Pennsylvania. He supervised the attainment of 120 new Silverliner V rail cars and 700 hybrid buses, which were major improvements to SEPTA's operation. Mr. Casey also testified before the U.S. and Pennsylvania House and Senate committees regarding infrastructure and the need for investment. His testimonies helped lead to the passage of Act 89 in the Commonwealth of Pennsylvania, which provides necessary funding for critical infrastructural advancements for both rail and highway projects.

Mr. Casey's reputation of integrity and character is reflected in his commitment to economic, environmental, and social sustainability. His dedication to sustainability resulted in SEPTA earning awards such as the 2012 American Public Transportation Association Outstanding Public Transportation System and the Gold Sustainability Recognition. These awards highlight the bright and successful tenure of Mr. Joe Casey as general manager of SEPTA.

After his retirement, Mr. Casey will apply his transportation expertise as chair of the transportation committee tasked with planning and coordinating transportation logistics for the 2016 Democratic National Convention in Philadelphia.

I want to once more congratulate Joe Casey on his career as an innovative and honorable leader of SEPTA. His efforts and accomplishments have helped Pennsylvania grow and prosper. I wish him the best of luck and a happy and healthy retirement.●

TRIBUTE TO MAJOR GENERAL WALTER ZINK

● Mrs. FISCHER. Mr. President, I rise to recognize one of my Nebraska constituents, MG Walter Zink. For the last 45 years of Major General Zink's professional career, he has served our country, its military, and the great State of Nebraska. His work has spanned many areas of public service, and I wish to recognize Major General Zink and his family as he moves on to the next stage of retirement.

As a young man from Sterling, NE, Major General Zink felt the call to public service early. He enlisted in the Nebraska Army National Guard in 1970 after completing his undergraduate course work at Nebraska Wesleyan University. Major General Zink received his commission as an infantry officer through the Nebraska Military Academy in June of 1972. He spent 4 years drilling as a young officer in the 134th Infantry Battalion while he completed his law degree at the University of Nebraska College of Law. Major General Zink went on to serve as a staff judge advocate at the brigade and State headquarters level before being selected as the Nebraska assistant adjutant general for the Army. Major General Zink retired in 2008 after becoming commander of the U.S. Army North's Operational Command Post One.

Working in the legal community as an attorney, Major General Zink specialized in worker's compensation practices and tort law, while also donning the uniform on weekends to assist soldiers and the Nebraska National Guard with legal issues.

After he left the service, Zink continued to work for the State of Nebraska. Serving as State chair of the Nebraska Committee for Employer Support of the Guard and Reserve for over 5 years, Major General Zink has been an advocate for Nebraska servicemembers and their employers. His leadership helped to strengthen employer knowledge regarding the value of military experience in the workplace. Under Zink's watch, 11 Nebraska employers finished in the top 30 finalists for the Secretary of Defense Employer Support Freedom Award. The Burt County Sherriff's Office and Electrical Contractors, Inc., also took home the Defense Department's highest honor for employers in support of National Guard and Reserve employees.

In 2009, Major General Zink ran for office and won a position with the Airport Authority. Throughout his 6-year term, he worked to strengthen economic prosperity for the community of Lincoln. Additionally, Major General Zink served the governor of Nebraska and the State's National Guard by

working as a member of the adjutant general selection committee. Major General Zink has also agreed to sit on my Service Academy Selection Board, where he recommended Nebraska students for a congressional nomination to our Nation's service academies.

I would like to thank Walt, Carol, and the Zink family for their many years of public service. Please join me in recognizing this Nebraskan as he takes this next step in his journey.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. Pate, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 1:03 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 3460. An act to suspend until January 21, 2017, the authority of the President to waive, suspend, reduce, provide relief from, or otherwise limit the application of sanctions pursuant to an agreement related to the nuclear program of Iran.

ENROLLED BILL SIGNED

The President pro tempore (Mr. HATCH) announced that on today, September 15, 2015, he had signed the following enrolled bill, previously signed by the Speaker of the House:

S. 1359. An act to allow manufacturers to meet warranty and labeling requirements for consumer products by displaying the terms of warranties on Internet websites, and for other purposes.

ENROLLED BILL PRESENTED

The Secretary of the Senate reported that on today, September 15, 2015, she had presented to the President of the United States the following enrolled bill:

S. 1359. An act to allow manufacturers to meet warranty and labeling requirements for consumer products by displaying the terms of warranties on Internet websites, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–2765. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Difenoconazole; Pesticide Tolerances'' (FRL No. 9929–61) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2766. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Dimethomorph; Pesticide Tolerances'' (FRL No. 9932–26–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2767. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Cyprodinil; Pesticide Tolerances'' (FRL No. 9930–04) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2768. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Oxathiapiprolin; Pesticide Tolerances'' (FRL No. 9931–18–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2769. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Propylene glycol monomethyl ether; Exemption from the Requirement of a Tolerance'' (FRL No. 9932–06–OCSPP) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2770. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Tetraethylene Glycol; Exemption from the Requirement of a Tolerance'' (FRL No. 9933–35) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2771. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Gypsy Moth Generally Infested Areas; Additions in Minnesota, Virginia, West Virginia, and Wisconsin'' (Docket No. APHIS–2014–0023) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–2772. A communication from the Under Secretary of Defense (Comptroller), transmitting, pursuant to law, a report relative to a violation of the Antideficiency Act that involved fiscal year 2011 Operation and Maintenance, Army, funds, and was assigned Army case number 13–08; to the Committee on Appropriations.

EC–2773. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Vice Admiral David A. Dunaway, United States Navy, and his advancement to the grade of vice admiral on the retired list; to the Committee on Armed Services.

EC–2774. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Lieutenant General William M. Faulkner, United States Marine Corps, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–2775. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Lieutenant General Mark F. Ramsay, United States Air Force, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–2776. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Lieutenant General Theodore C. Nicholas, United States Army, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–2777. A communication from the Secretary of Defense, transmitting a report on the approved retirement of Lieutenant General Douglas J. Robb, United States Air Force, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–2778. A communication from the President of the United States, transmitting, pursuant to law, a report relative to an alternative plan for monthly basic pay increases for members of the uniformed services for 2016; to the Committee on Armed Services.

EC–2779. A communication from the Under Secretary of Defense (Acquisition, Technology, and Logistics), transmitting, pursuant to law, a report entitled ''Fiscal Year 2014 Inventory of Contracted Services''; to the Committee on Armed Services.

EC–2780. A communication from the Assistant to the Board of Governors of the Federal Reserve System, transmitting, pursuant to law, the report of a rule entitled ''Loans in Areas Having Special Flood Hazards'' ((RIN7100–AE22) (12 CFR Part 208)) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2781. A communication from the Chief Counsel, Federal Emergency Management Agency, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Final Flood Elevation Determinations'' ((44 CFR Part 67) (Docket No. FEMA–2015–0001)) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2782. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to Ukraine that was originally declared in Executive Order 13660 of March 6, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–2783. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to persons undermining democratic processes or institutions in Zimbabwe that was declared in Executive Order 13288 of March 6, 2003; to the Committee on Banking, Housing, and Urban Affairs.

EC–2784. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Update

to List of Countries Where Persons in the United States May Request Department of Defense Assistance in Obtaining Priority Delivery of Contracts'' (RIN0694–AG68) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2785. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to Libya that was originally declared in Executive Order 13566 of February 25, 2011; to the Committee on Banking, Housing, and Urban Affairs.

EC–2786. A communication from the Chief Counsel, Federal Emergency Management Agency, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Suspension of Community Eligibility'' ((44 CFR Part 64) (Docket No. FEMA–2015–0001)) received during adjournment of the Senate in the Office of the President of the Senate on September 2, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2787. A communication from the Associate General Counsel for Legislation and Regulations, Office of Housing-Federal Housing Commissioner, Department of Housing and Urban Development, transmitting, pursuant to law, the report of a rule entitled ''Federal Housing Administration (FHA): Standardizing Method of Payment for FHA Insurance Claim'' (RIN2502–AJ26) received during adjournment of the Senate in the Office of the President of the Senate on September 2, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2788. A communication from the Chief Counsel, Federal Emergency Management Agency, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Suspension of Community Eligibility'' ((44 CFR Part 64) (Docket No. FEMA–2015–0001)) received during adjournment of the Senate in the Office of the President of the Senate on September 2, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2789. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Addition of Certain Persons to the Entity List'' (RIN0694–AG65) received during adjournment of the Senate in the Office of the President of the Senate on September 3, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2790. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Revisions to License Exception Availability for Consumer Communications Devices and Licensing Policy for Civil Telecommunication-related Items Such as Infrastructure Regarding Sudan: Correction'' (RIN0694–AG63) received during adjournment of the Senate in the Office of the President of the Senate on September 3, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2791. A communication from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Updated Statements of Legal Authority for the Export Administration Regulations to Include August 7, 2015 Extension of Emergency Declared in Executive Order 13222'' (RIN0694–AG71) received during adjournment of the Senate in the Office of the President of the Senate on September 3, 2015; to the Committee on Banking, Housing, and Urban Affairs.

EC–2792. A communication from the Director, Office of Management and Budget, Executive Office of the President, transmitting, pursuant to law, a notification of the President's intent to exempt all military personnel accounts from sequester for fiscal year 2016, if sequester is necessary; to the Committee on the Budget.

EC–2793. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Michigan; Michigan State Board Requirements'' (FRL No. 9933–11–Region 5) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Environment and Public Works.

EC–2794. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Missouri; 2013 Missouri State Implementation Plan for the 2008 Lead Standard'' (FRL No. 9933–09–Region 7) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Environment and Public Works.

EC–2795. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; New Mexico; Revisions to the New Source Review (NSR) State Implementation Plan (SIP) for Albuquerque-Bernalillo County; Prevention of Significant Deterioration (PSD) Permitting'' (FRL No. 9931–35–Region 6) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Environment and Public Works.

EC–2796. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Illinois; Disapproval of State Board Infrastructure SIP Requirements for the 2006 PM2.5 and 2008 Ozone NAAQS'' (FRL No. 9932–97–Region 5) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Environment and Public Works.

EC–2797. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Michigan: Final Authorization of State Hazardous Waste Management Program Revision'' (FRL No. 9933–29–Region 5) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Environment and Public Works.

EC–2798. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''National Emission Standards for Hazardous Air Pollutants for Secondary Aluminum Production'' ((RIN2060–AQ40) (FRL No. 9932–44–OAR)) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Environment and Public Works.

EC–2799. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Partial Approval and Disapproval of Air Quality Implementation Plans; Nebraska; Revision to the State Implementation Plan (SIP) Infrastructure Requirements for the 1997 and 2006 Fine Particulate Matter National Ambient Air Quality Standards and the Revocation of the PM10 Annual Standard and Adoption of the 24hr PM2.5 Standard.'' (FRL No. 9933–04–Region 7) received during adjournment of the Senate in the Office of the President of the Senate on August 26, 2015; to the Committee on Environment and Public Works.

EC–2800. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Arizona; Phased Discontinuation of State II Vapor Recovery Program'' (FRL No. 9927–14–Region 9) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Environment and Public Works.

EC–2801. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Georgia; Changes to Georgia Fuel Rule and Other Miscellaneous Rules'' (FRL No. 9933–32–Region 4) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Environment and Public Works.

EC–2802. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Texas; Attainment Demonstration for the Dallas/Fort Worth 8-Hour Ozone Nonattainment Area; Determination of Attainment of the 1997 Ozone Standard'' (FRL No. 9931–78–Region 6) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Environment and Public Works.

EC–2803. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of State Implementation Plans; Alaska; Transportation Conformity State Implementation Plan'' (FRL No. 9933–43–Region 10) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Environment and Public Works.

EC–2804. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Texas; Infrastructure Requirements for the 1997 Ozone and the 1997 and 2006 PM2.5 NAAQS'' (FRL No. 9932–50–Region 6) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Environment and Public Works.

EC–2805. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Revisions to the California State Implementation Plan, Feather River Air Quality Management District; Correction'' (FRL No. 9933–50–Region 9) received during adjournment of the Senate in the Office of the President of the Senate on September 1, 2015; to the Committee on Environment and Public Works.

EC–2806. A communication from the Director of the Regulatory Management Division,

Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Indiana; SO2 Revision for Walsh and Kelly'' (FRL No. 9933–65–Region 5) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Environment and Public Works.

EC–2807. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Wisconsin; Infrastructure SIP Requirements for the 2008 Ozone, 2010 NO2, and 2010 SO2 NAAQS'' (FRL No. 9933–62–Region 5) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Environment and Public Works.

EC–2808. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; State of Utah; Motor Vehicle Inspection and Maintenance and Associated Provisions.'' (FRL No. 9930–71–Region 8) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Environment and Public Works.

EC–2809. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Significant New Use Rule on Substituted Cyclosiloxane; Removal'' ((RIN2070–AB27) (FRL No. 9932–56)) received in the Office of the President of the Senate on September 8, 2015; to the Committee on Environment and Public Works.

EC–2810. A communication from the Assistant Secretary of the Army (Civil Works), transmitting, pursuant to law, the report of the Secretary of the Army's recommendation to authorize the Central Everglades Planning Project, Florida; to the Committee on Environment and Public Works.

EC–2811. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Administrative Requirements for Grants and Cooperative Agreements'' (RIN1991–AC02) received during adjournment of the Senate in the Office of the President of the Senate on September 3, 2015; to the Committee on Energy and Natural Resources.

EC–2812. A communication from the Chairman of the Federal Energy Regulatory Commission, transmitting, pursuant to law, a report relative to the progress made in licensing and constructing the Alaska Natural Gas Pipeline; to the Committee on Energy and Natural Resources.

EC–2813. A communication from the Secretary of the Interior, transmitting proposed legislation entitled ''National Park Service Centennial Act''; to the Committee on Energy and Natural Resources.

EC–2814. A communication from the Assistant Secretary, Office of Electricity Delivery and Energy Reliability, Department of Energy, transmitting, pursuant to law, a report entitled ''2014/2015 Economic Dispatch and Technological Change''; to the Committee on Energy and Natural Resources.

EC–2815. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting, pursuant to law, two reports entitled ''Alternative Fuel Use by Federal Dual Fueled Vehicles, Fiscal Years 2011 and 2012'' and ''Alternative Fuel Use by Federal Dual Fueled Vehicles, Fiscal Year 2013''; to the Committee on Energy and Natural Resources.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, without amendment:

S. 1090. A bill to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to provide eligibility for broadcasting facilities to receive certain disaster assistance, and for other purposes (Rept. No. 114–142).

S. 1580. A bill to allow additional appointing authorities to select individuals from competitive service certificates (Rept. No. 114–143).

By Mr. VITTER, from the Committee on Small Business and Entrepreneurship, without amendment with a preamble:

S. Res. 252. An original resolution expressing the sense of the Committee on Small Business and Entrepreneurship of the Senate relating to easing the burden of Federal tax compliance on small businesses.

By Mr. VITTER, from the Committee on Small Business and Entrepreneurship, with an amendment in the nature of a substitute:

S. 1400. A bill to amend the Small Business Act to direct the task force of the Office of Veterans Business Development to provide access to and manage the distribution of excess or surplus property to veteran-owned small businesses.

By Mr. VITTER, from the Committee on Small Business and Entrepreneurship, without amendment:

S. 1756. A bill to help small businesses take advantage of energy efficiency.

S. 1857. A bill to amend the Small Business Act to provide for expanded participation in the microloan program, and for other purposes.

By Mr. VITTER, from the Committee on Small Business and Entrepreneurship, with an amendment in the nature of a substitute:

S. 1866. A bill to establish the veterans' business outreach center program, to improve the programs for veterans of the Small Business Administration, and for other purposes.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mrs. FEINSTEIN:

S. 2029. A bill for the relief of Shirley Constantino Tan; to the Committee on the Judiciary.

By Mr. BENNET (for himself, Mr. BURR, Ms. WARREN, and Mr. HATCH):

S. 2030. A bill to allow the sponsor of an application for the approval of a targeted drug to rely upon data and information with respect to such sponsor's previously approved targeted drugs; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BARRASSO (for himself, Mr. WYDEN, Mr. ENZI, and Mr. MERKLEY):

S. 2031. A bill to reduce temporarily the royalty required to be paid for sodium produced on Federal lands, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. HOEVEN (for himself and Mr. HEINRICH):

S. 2032. A bill to adopt the bison as the national mammal of the United States; to the Committee on the Judiciary.

By Mr. SCHATZ (for himself and Ms. MIKULSKI):

S. 2033. A bill to provide that 6 of the 12 weeks of parental leave made available to a Federal employee shall be paid leave, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. TOOMEY:

S. 2034. A bill to amend title 18, United States Code, to provide additional aggravating factors for the imposition of the death penalty based on the status of the victim; to the Committee on the Judiciary.

By Mr. CARDIN (for himself, Mr. REID, Ms. BALDWIN, Mr. CARPER, Mrs. GILLIBRAND, Ms. HIRONO, Mr. KAINE, Mr. LEAHY, Ms. MIKULSKI, Mrs. SHAHEEN, and Mr. WARNER):

S. 2035. A bill to provide for the compensation of Federal employees affected by a lapse in appropriations; read the first time.

By Mr. VITTER (for himself and Ms. WARREN):

S. 2036. A bill to suspend the current compensation packages for the chief executive officers of Fannie Mae and Freddie Mac, and for other purposes; considered and passed.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. VITTER:

S. Res. 252. An original resolution expressing the sense of the Committee on Small Business and Entrepreneurship of the Senate relating to easing the burden of Federal tax compliance on small businesses; from the Committee on Small Business and Entrepreneurship; placed on the calendar.

By Mr. NELSON (for himself, Mr. RUBIO, and Mr. KAINE):

S. Res. 253. A resolution welcoming King Felipe VI and Queen Letizia of Spain on their official visit to the United States, including visits to Miami and St. Augustine, Florida; to the Committee on Foreign Relations.

By Mr. MENENDEZ (for himself, Mr. REID, Mr. CORNYN, Mr. BENNET, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. BROWN, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mrs. FEINSTEIN, Mr. FRANKEN, Mrs. GILLIBRAND, Mr. HEINRICH, Mr. HELLER, Ms. HIRONO, Mr. KAINE, Mr. MARKEY, Mrs. MURRAY, Mr. NELSON, Mr. PETERS, Mr. REED, Mr. RUBIO, Mr. SCHUMER, Ms. STABENOW, Mr. UDALL, Mr. WARNER, and Ms. WARREN):

S. Res. 254. A resolution recognizing Hispanic Heritage Month and celebrating the heritage and culture of Latinos in the United States and the immense contributions of Latinos to the United States; considered and agreed to.

By Mr. MENENDEZ (for himself, Mr. REID, Mr. CORNYN, Mr. BENNET, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mrs. FEINSTEIN, Mrs. GILLIBRAND, Mr. HEINRICH, Mr. HELLER, Mr. KAINE, Mr. MARKEY, Mrs. MURRAY, Mr. NELSON, Mr. PETERS, Mr. RUBIO, Mr. SCHUMER, Mr. UDALL, Mr. WARNER, and Ms. WARREN):

S. Res. 255. A resolution designating the week beginning September 14, 2015, as National Hispanic-Serving Institutions Week; considered and agreed to.

By Mrs. FISCHER (for herself and Mr. BOOKER):

S. Res. 256. A resolution designating September 2015 as ''School Bus Safety Month''; considered and agreed to.

ADDITIONAL COSPONSORS

S. 271

At the request of Mr. REID, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 271, a bill to amend title 10, United States Code, to permit certain retired members of the uniformed services who have a service-connected disability to receive both disability compensation from the Department of Veterans Affairs for their disability and either retired pay by reason of their years of military service or Combat-Related Special Compensation, and for other purposes.

S. 275

At the request of Mr. ISAKSON, the name of the Senator from Mississippi (Mr. COCHRAN) was added as a cosponsor of S. 275, a bill to amend title XVIII of the Social Security Act to provide for the coverage of home as a site of care for infusion therapy under the Medicare program.

S. 298

At the request of Mr. GRASSLEY, the name of the Senator from South Carolina (Mr. GRAHAM) was added as a cosponsor of S. 298, a bill to amend titles XIX and XXI of the Social Security Act to provide States with the option of providing services to children with medically complex conditions under the Medicaid program and Children's Health Insurance Program through a care coordination program focused on improving health outcomes for children with medically complex conditions and lowering costs, and for other purposes.

S. 370

At the request of Mrs. FEINSTEIN, the name of the Senator from Minnesota (Ms. KLOBUCHAR) was added as a cosponsor of S. 370, a bill to require breast density reporting to physicians and patients by facilities that perform mammograms, and for other purposes.

S. 481

At the request of Mr. HATCH, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. 481, a bill to amend the Controlled Substances Act and the Federal Food, Drug, and Cosmetic Act with respect to drug scheduling recommendations by the Secretary of Health and Human Services, and with respect to registration of manufacturers and distributors seeking to conduct clinical testing, and for other purposes.

S. 490

At the request of Mr. INHOFE, the name of the Senator from Florida (Mr. RUBIO) was added as a cosponsor of S. 490, a bill to achieve domestic energy independence by empowering States to control the development and production of all forms of energy on all available Federal land.

S. 525

At the request of Mr. COONS, the name of the Senator from Connecticut (Mr. MURPHY) was added as a cosponsor of S. 525, a bill to amend the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) to reform the Food for Peace Program, and for other purposes.

S. 569

At the request of Mr. LEAHY, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 569, a bill to reauthorize the farm to school program, and for other purposes.

S. 571

At the request of Mr. INHOFE, the name of the Senator from South Carolina (Mr. GRAHAM) was added as a cosponsor of S. 571, a bill to amend the Pilot's Bill of Rights to facilitate appeals and to apply to other certificates issued by the Federal Aviation Administration, to require the revision of the third class medical certification regulations issued by the Federal Aviation Administration, and for other purposes.

S. 590

At the request of Mrs. MCCASKILL, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 590, a bill to amend the Higher Education Act of 1965 and the Jeanne Clery Disclosure of Campus Security Policy and Campus Crime Statistics Act to combat campus sexual violence, and for other purposes.

S. 637

At the request of Mr. CRAPO, the name of the Senator from Illinois (Mr. KIRK) was added as a cosponsor of S. 637, a bill to amend the Internal Revenue Code of 1986 to extend and modify the railroad track maintenance credit.

S. 662

At the request of Mr. HATCH, the name of the Senator from Georgia (Mr. ISAKSON) was added as a cosponsor of S. 662, a bill to amend title 17, United States Code, to ensure fairness in the establishment of certain rates and fees under sections 114 and 115 of such title, and for other purposes.

S. 681

At the request of Mrs. GILLIBRAND, the names of the Senator from Oregon (Mr. WYDEN), the Senator from Virginia (Mr. KAINE) and the Senator from Virginia (Mr. WARNER) were added as cosponsors of S. 681, a bill to amend title 38, United States Code, to clarify presumptions relating to the exposure of certain veterans who served in the vicinity of the Republic of Vietnam, and for other purposes.

S. 709

At the request of Mr. ROBERTS, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 709, a bill to amend the Internal Revenue Code of 1986 to repeal the amendments made by the Patient Protection and Affordable Care Act which disqualify expenses for over-the-counter drugs under health savings accounts and health flexible spending arrangements.

S. 774

At the request of Mr. MORAN, the name of the Senator from South Carolina (Mr. GRAHAM) was added as a cosponsor of S. 774, a bill to amend the Federal Financial Institutions Examination Council Act of 1978 to improve the examination of depository institutions, and for other purposes.

S. 979

At the request of Mr. NELSON, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 979, a bill to amend title 10, United States Code, to repeal the requirement for reduction of survivor annuities under the Survivor Benefit Plan by veterans' dependency and indemnity compensation, and for other purposes.

S. 1090

At the request of Mr. BOOKER, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 1090, a bill to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to provide eligibility for broadcasting facilities to receive certain disaster assistance, and for other purposes.

S. 1122

At the request of Mr. DURBIN, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 1122, a bill to provide that chapter 1 of title 9 of the United States Code, relating to the enforcement of arbitration agreements, shall not apply to enrollment agreements made between students and certain institutions of higher education, and to prohibit limitations on the ability of students to pursue claims against certain institutions of higher education.

S. 1458

At the request of Mr. COATS, the name of the Senator from Kentucky (Mr. MCCONNELL) was added as a cosponsor of S. 1458, a bill to amend the Surface Mining Control and Reclamation Act of 1977 to ensure scientific transparency in the development of environmental regulations and for other purposes.

S. 1519

At the request of Mr. GARDNER, the name of the Senator from Montana (Mr. DAINES) was added as a cosponsor of S. 1519, a bill to amend the Labor Management Relations Act, 1947 to address slowdowns, strikes, and lock-outs occurring at ports in the United States, and for other purposes.

S. 1559

At the request of Ms. AYOTTE, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 1559, a bill to protect victims of domestic violence, sexual assault, stalking, and dating violence from emotional and psychological trauma caused by acts of violence or threats of violence against their pets.

S. 1617

At the request of Mr. RUBIO, the name of the Senator from Illinois (Mr. KIRK) was added as a cosponsor of S. 1617, a bill to prevent Hizballah and associated entities from gaining access

to international financial and other institutions, and for other purposes.

S. 1715

At the request of Mr. HOEVEN, the name of the Senator from New Hampshire (Ms. AYOTTE) was added as a cosponsor of S. 1715, a bill to require the Secretary of the Treasury to mint coins in commemoration of the 400th anniversary of the arrival of the Pilgrims.

S. 1766

At the request of Mr. SCHATZ, the names of the Senator from Vermont (Mr. LEAHY), the Senator from Maryland (Mr. CARDIN), the Senator from Maryland (Ms. MIKULSKI), the Senator from Illinois (Mr. DURBIN), the Senator from Delaware (Mr. COONS) and the Senator from North Dakota (Ms. HEITKAMP) were added as cosponsors of S. 1766, a bill to direct the Secretary of Defense to review the discharge characterization of former members of the Armed Forces who were discharged by reason of the sexual orientation of the member, and for other purposes.

S. 1795

At the request of Mr. SCHUMER, the names of the Senator from Maryland (Mr. CARDIN) and the Senator from Washington (Ms. CANTWELL) were added as cosponsors of S. 1795, a bill to amend the Internal Revenue Code of 1986 to provide tax relief for major disasters declared in any of calendar years 2012 through 2015, to make certain tax relief provisions permanent, and for other purposes.

S. 1798

At the request of Mr. RUBIO, the name of the Senator from Arkansas (Mr. COTTON) was added as a cosponsor of S. 1798, a bill to reauthorize the United States Commission on International Religious Freedom, and for other purposes.

S. 1830

At the request of Mr. BARRASSO, the name of the Senator from Delaware (Mr. CARPER) was added as a cosponsor of S. 1830, a bill to amend title XVIII of the Social Security Act to provide for the coverage of marriage and family therapist services and mental health counselor services under part B of the Medicare program, and for other purposes.

S. 1831

At the request of Mr. TOOMEY, the names of the Senator from Maryland (Mr. CARDIN) and the Senator from California (Mrs. FEINSTEIN) were added as cosponsors of S. 1831, a bill to revise section 48 of title 18, United States Code, and for other purposes.

S. 1833

At the request of Mr. CASEY, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 1833, a bill to amend the Richard B. Russell National School Lunch Act to improve the child and adult care food program.

S. 1957

At the request of Mrs. FEINSTEIN, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of S. 1957, a bill to require the Attorney General to provide State officials with access to criminal history information with respect to certain financial service providers required to undergo State criminal background checks, and for other purposes.

S. 1987

At the request of Mr. INHOFE, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 1987, a bill to amend the Toxic Substances Control Act relating to lead-based paint renovation and remodeling activities.

S. 2015

At the request of Mr. ALEXANDER, the name of the Senator from Indiana (Mr. COATS) was added as a cosponsor of S. 2015, a bill to clarify the treatment of two or more employers as joint employers under the National Labor Relations Act.

S. 2028

At the request of Mr. WHITEHOUSE, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 2028, a bill to amend the Federal Credit Union Act, to advance the ability of credit unions to promote small business growth and economic development opportunities, and for other purposes.

S. RES. 217

At the request of Mr. BLUMENTHAL, the name of the Senator from Hawaii (Ms. HIRONO) was added as a cosponsor of S. Res. 217, a resolution designating October 8, 2015, as ''National Hydrogen and Fuel Cell Day''.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mrs. FEINSTEIN:

S. 2029. A bill for the relief of Shirley Constantino Tan; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, today I am reintroducing a bill for the private relief of Shirley Constantino Tan. Ms. Tan is a Filipina national living in Pacifica, CA. She is the proud mother of 19 year old U.S. citizen twin boys, Jashley and Joriene, and the spouse of Jay Mercado, a naturalized U.S. citizen.

I believe Ms. Tan merits Congress' special consideration for this extraordinary form of relief because I believe her removal from the United States would cause undue hardship for her and her family. She faces deportation to the Philippines, which would separate her from her family and jeopardize her safety.

Ms. Tan experienced horrific violence in the Philippines before she left to come to the United States. When she was only 14 years old, her cousin murdered her mother and her sister and shot Shirley in the head. While the cousin who committed the murders was eventually prosecuted, he received a short jail sentence. Fearing for her safety, Ms. Tan fled the Philippines just before her cousin was due to be released from jail. She entered the U.S. legally on a visitor's visa in 1989.

Ms. Tan's current deportation order is the result of negligent counsel. Shirley applied for asylum in 1995. While her case appeal was pending at the Board of Immigration Appeals, her attorney failed to submit a brief to support her case. As a result, the case was dismissed, and the Board of Immigration Appeals granted Shirley voluntary departure from the United States.

Shirley never received notice that the Board of Immigration Appeals granted her voluntary departure. Shirley's attorney moved offices, did not receive the order, and ultimately never informed her of the order. As a result, Shirley did not depart the United States and the grant of voluntary departure automatically became a deportation order. She learned about the deportation order for the first time on January 28, 2009, when Immigration and Customs Enforcement agents took her into immigration custody.

Because of her attorney's negligent actions, Ms. Tan was denied the opportunity to present her case in U.S. immigration proceedings. Shirley later filed a complaint with the State Bar of California against her former attorney. She is not the first person to file such a complaint against this attorney.

On February 4, 2015, Shirley's spouse, Jay, a U.S. Citizen, filed an approved spousal petition on her behalf. On August 20, 2015, U.S. Citizenship and Immigration Services denied Shirley's application due to the fact that Shirley still had a final order or removal. Shirley must go back to the immigration court and ask for the court to terminate her case and then reapply with United States Immigration and Citizenship Services. Shirley is now again faced with deportation while she seeks to close her case before the Immigration Judge.

In addition to the hardship that would come to Ms. Tan if she is deported, Shirley's deportation would be a serious hardship to her two U.S. citizen children, Jashley and Joriene, who are minors.

Joriene is a sophomore at Stanford University and is pre-Med in Human Biology. Jashley is a sophomore at Chapman University and plans to declare his Business major in spring. In addition to his studies, Jashley is involved in Stanford's Pilipino-American Student Union. Ms. Tan no longer runs her in-home daycare and is a stay-at-home mom.

If Ms. Tan were forced to leave the United States, her family has expressed that they would go with Shirley to the Philippines or try to find a third country where the entire family could relocate. This would mean that Jashley and Joriene would have to leave behind their education and the only home they know in the United States.

I do not believe it is in our Nation's best interest to force this family, with two U.S. citizen children, to make the

choice between being separated and relocating to a country where they may face safety concerns or other serious hardships.

Ms. Tan and her family are involved in their community in Pacifica and own their own home. The family attends Good Shepherd Catholic Church, volunteering at the church and the Mother Theresa of Calcutta's Daughters of Charity. Shirley has the support of dozens of members of her community who shared with me the family's spirit of commitment to their community.

Enactment of the legislation I am introducing on behalf of Ms. Tan today will enable this entire family to continue their lives in California and make positive contributions to their community.

I ask my colleagues to support this private bill.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2029

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. PERMANENT RESIDENT STATUS FOR SHIRLEY CONSTANTINO TAN.

(a) IN GENERAL.—Notwithstanding subsections (a) and (b) of section 201 of the Immigration and Nationality Act (8 U.S.C. 1151), Shirley Constantino Tan shall be eligible for issuance of an immigrant visa or for adjustment of status to that of an alien lawfully admitted for permanent residence upon filing an application for issuance of an immigrant visa under section 204 of such Act (8 U.S.C. 1154) or for adjustment of status to lawful permanent resident.

(b) ADJUSTMENT OF STATUS.—If Shirley Constantino Tan enters the United States before the filing deadline specified in subsection (c), she shall be considered to have entered and remained lawfully and shall, if otherwise eligible, be eligible for adjustment of status under section 245 of the Immigration and Nationality Act (8 U.S.C. 1255) as of the date of the enactment of this Act.

(c) DEADLINE FOR APPLICATION AND PAYMENT OF FEES.—Subsections (a) and (b) shall apply only if the application for issuance of an immigrant visa or the application for adjustment of status is filed with appropriate fees within 2 years after the date of the enactment of this Act.

(d) REDUCTION OF IMMIGRANT VISA NUMBER.—Upon the granting of an immigrant visa or permanent residence to Shirley Constantino Tan, the Secretary of State shall instruct the proper officer to reduce by one, during the current or next following fiscal year, the total number of immigrant visas that are made available to natives of the country of the alien's birth under section 203(a) of the Immigration and Nationality Act (8 U.S.C. 1153(a)) or, if applicable, the total number of immigrant visas that are made available to natives of the country of the alien's birth under section 202(e) of such Act (8 U.S.C. 1152(e)).

(e) PAYGO.—The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the Senate Budget Committee, provided that such statement has been submitted prior to the vote on passage.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 252—EXPRESSING THE SENSE OF THE COMMITTEE ON SMALL BUSINESS AND ENTREPRENEURSHIP OF THE SENATE RELATING TO EASING THE BURDEN OF FEDERAL TAX COMPLIANCE ON SMALL BUSINESSES

Mr. VITTER submitted the following resolution; from the Committee on Small Business and Entrepreneurship; which was placed on the calendar:

S. RES. 252

Whereas American small businesses face major obstacles complying with their Federal tax obligations;

Whereas the complexity of the Federal tax code unfairly penalizes small businesses;

Whereas such complexity requires small business owners to spend significant amounts of time, money, and resources complying with their tax obligations and less time operating their business;

Whereas Congress has exacerbated these challenges for America's small businesses by failing to update the tax code in a manner that properly reflects current circumstances;

Whereas tax policy should also promote increased savings by American citizens to be able to afford the costs of living deeper into old age;

Whereas employee stock ownership plans help small businesses offer economic incentives to employees and help employees save more for their retirements via investments in their employing companies;

Whereas tax policy should support small businesses in providing benefit packages to their employees to be competitive with larger employers for the best talent;

Whereas the successful research and development tax credit has been used to incentivize private firms to invest in research and development, and private investment leads to spillover effects that can have a broad public good through the creation of new products, the development of new processes, and the launching of new industries;

Whereas while the research and development tax credit is essential for our innovators, it is not accessible to many small businesses and startups—per the Government Accountability Office, over half of the credit goes to firms with $1,000,000,000 or more in receipts;

Whereas, according to the Congressional Research Service, numerous commercially successful innovations originated in small, fledgling firms that could not access the research and development credit;

Whereas, if Congress made the research and development tax credit more available to small businesses and startups, thousands of innovative small firms could claim the credit, boosting their capacity to invest in innovation and job creation; and

Whereas prudent changes to the structure of the Federal tax code would ease the burden of tax compliance, allowing small businesses to put more money back into their business, community, and the economy: Now, therefore, be it

Resolved, That it is the sense of the Committee on Small Business and Entrepreneurship that the Senate should enact the following:

TITLE I—SMALL BUSINESS TAX REFORM

SEC. 101. EXPANSION OF CASH ACCOUNTING THRESHOLD.

(a) IN GENERAL.—

(1) IN GENERAL.—Paragraph (3) of section 448(b) of the Internal Revenue Code of 1986 is amended by striking ''$5,000,000'' in the text and in the heading and inserting ''$25,000,000''.

(2) CONFORMING AMENDMENTS.—Section 448(c) of such Code is amended—

(A) by striking ''$5,000,000'' each place it appears in the text and in the heading of paragraph (1) and inserting ''$25,000,000'', and

(B) by adding at the end the following new paragraph:

''(4) INFLATION ADJUSTMENT.—In the case of any taxable year beginning in a calendar year after 2015, the dollar amount contained in subsection (b)(3) and paragraph (1) of this subsection shall be increased by an amount equal to—

''(A) such dollar amount, multiplied by

''(B) the cost-of-living adjustment determined under section 1(f)(3) for the calendar year in which the taxable year begins, by substituting 'calendar year 2014' for 'calendar year 1992' in subparagraph (B) thereof.

If any amount as adjusted under this subparagraph is not a multiple of $100,000, such amount shall be rounded to the nearest multiple of $100,000.''.

(b) EXEMPTION FROM INVENTORY REQUIREMENT.—Section 471 of the Internal Revenue Code of 1986 is amended by redesignating subsection (c) as subsection (d) and by inserting after subsection (b) the following new subsection:

''(c) SECTION NOT TO APPLY TO CERTAIN CASH METHOD TAXPAYERS.—If a taxpayer—

''(1) would otherwise be required to use inventories under this section for any taxable year, but

''(2) the taxpayer meets the gross receipts test of section 448(b) for the taxable year and is eligible and elects to use the cash receipts and disbursements method of accounting for the taxable year,

then the requirement to use inventories shall not apply to the taxpayer for the taxable year.''.

(c) EFFECTIVE DATE AND SPECIAL RULE.—

(1) IN GENERAL.—The amendments made by this section shall apply to taxable years beginning after December 31, 2014.

(2) CHANGE IN METHOD OF ACCOUNTING.—In the case of any taxpayer changing the taxpayer's method of accounting for any taxable year under the amendments made by this section—

(A) such change shall be treated as initiated by the taxpayer; and

(B) such change shall be treated as made with the consent of the Secretary of the Treasury.

SEC. 102. MODIFICATION OF SAFE HARBOR FOR EXPENSING OF ACQUISITION OR PRODUCTION COSTS OF TANGIBLE PROPERTY.

(a) REQUIREMENT TO MODIFY SAFE HARBOR.—The Secretary of the Treasury or his delegate shall, within 180 days after the date of enactment of this Act, modify Treasury Regulations section 1.263(a)–1(f) by—

(1) increasing the amount of the de minimis safe harbor for taxpayers without applicable financial statements from $500 to $2,500,

(2) requiring adequate records showing the dollar amount being expensed in lieu of accounting procedures in place at the beginning of the taxable year, and

(3) modifying the definition of applicable financial statement to include reviewed financial statements.

(b) EFFECTIVE DATE.—The modifications required by subsection (a) shall apply to taxable years beginning after December 31, 2014.

SEC. 103. REMOVAL OF COMPUTER EQUIPMENT FROM LISTED PROPERTY.

(a) IN GENERAL.—Section 280F(d)(4)(A) of the Internal Revenue Code of 1986 is amended by inserting ''and'' at the end of clause (iii) and by striking clause (iv).

(b) CONFORMING AMENDMENT.—Section 280F(d)(4) of the Internal Revenue Code of 1986 is amended by striking subparagraph (B) and by redesignating subparagraph (C) as subparagraph (B).

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SEC. 104. DEDUCTION FOR HEALTH INSURANCE COSTS IN COMPUTING SELF-EMPLOYMENT TAXES.

(a) IN GENERAL.—Paragraph (4) of section 162(l) of the Internal Revenue Code of 1986 is amended by striking ''for taxable years beginning before January 1, 2010, or after December 31, 2010'' and inserting ''for taxable years beginning before January 1, 2015.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2014.

SEC. 105. MODIFICATION OF RULES RELATING TO THE TERMINATION OF PARTNERSHIPS AND S CORPORATIONS.

(a) NO TERMINATION OF PARTNERSHIP ON SALE OR EXCHANGE OF ASSETS.—

(1) IN GENERAL.—Section 708(b)(1) of the Internal Revenue Code of 1986 is amended by striking ''only if'' and all that follows and inserting ''only if no part of any business, financial operation, or venture of the partnership continues to be carried on by any of its partners in a partnership.''.

(2) CONFORMING AMENDMENTS.—

(A) Section 168(i)(7)(B) of such Code is amended by striking the last sentence.

(B) Section 743(e) of such Code is amended by striking paragraph (4).

(C) Section 774 of such Code is amended by striking subsection (c).

(b) NO TERMINATION OF S CORPORATION STATUS DUE TO EXCESSIVE PASSIVE INVESTMENT INCOME.—Paragraph (3) of section 1362(d) of the Internal Revenue Code of 1986 is amended by adding at the end the following new subparagraph:

''(D) TERMINATION.—This paragraph shall not apply to taxable years ending after the date of the enactment of this subparagraph.''.

TITLE II—PROVISIONS RELATED TO THE INTERNAL REVENUE SERVICE

SEC. 201. INFLATION ADJUSTMENTS FOR CERTAIN PROVISIONS.

(a) IN GENERAL.—Chapter 77 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 7529. INFLATION ADJUSTMENTS.

''(a) IN GENERAL.—In the case of any taxable year beginning in a calendar year after 2015, each of the specified dollar amounts shall be increased by an amount equal to—

''(1) such dollar amount, multiplied by

''(2) the cost-of-living adjustment determined under section 1(f)(3) for the calendar year in which the taxable year begins, determined by substituting 'calendar year 2014' for 'calendar year 1992' in subparagraph (B) thereof.

''(b) SPECIFIED DOLLAR AMOUNTS.—For purposes of subsection (a), the specified dollar amounts are—

''(1) the $50,000 amount in section 79(a)(1),

''(2) each of the $5,250 amounts in section 127(a)(2),

''(3) each of the $500 amounts in paragraphs (11)(A), (11)(B), and (12) of section 170(f),

''(4) the $5,000 amount in section 170(f)(11)(C),

''(5) the $10,000,000 amount in section 263A(b)(2),

''(6) each of the dollar amounts in section 274(b)(1),

''(7) each of the $400 amounts in section 274(j),

''(8) the $1,600 amount in section 274(j)(2)(B),

''(9) the $10,000,000 amount in section 1202(b)(1),

''(10) each of the $50,000,000 amounts in section 1202(d)(1),

''(11) the $50,000 amount in section 1244(b)(1), and

''(12) the $1,000,000 in section 1244(c)(3)(A).

''(c) ROUNDING.—

''(1) Any increase determined under paragraph (5), (9), or (10) of subsection (b) shall be rounded to the nearest multiple of $100,000.

''(2) Any increase determined under paragraph (1), (4), (11), or (12) of subsection (b) shall be rounded to the nearest multiple of $1,000.

''(3) Any increase determined under paragraph (2) of subsection (b) shall be rounded to the nearest multiple of $500.

''(4) Any increase determined under paragraph (3), (7), or (8) of subsection (b) shall be rounded to the nearest multiple of $100.

''(5) Any increase determined under paragraph (6) of subsection (b) shall be rounded to the nearest multiple of $5.''.

(b) CONFORMING AMENDMENTS.—

(1) Section 1202(b)(3) of such Code is amended by striking ''paragraph (1)(A) shall be applied by substituting '$5,000,000' for '$10,000,000'\'' and inserting ''the amount under paragraph (1)(A) shall be 50 percent of such dollar amount (determined without regard to this paragraph)''.

(2) Section 1244(b)(2) of such Code is amended by striking ''$100,000'' and inserting ''200 percent of the amount under paragraph (1)''.

(c) CLERICAL AMENDMENT.—The table of sections for chapter 77 of such Code is amended by adding at the end the following new item:

''Sec. 7529. Inflation adjustments.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SEC. 202. REPORT ON IMPROVEMENTS TO CUSTOMER SERVICE.

Not later than June 30, 2016, the Commissioner of Internal Revenue shall submit to the Committee on Small Business and Entrepreneurship of the Senate, the Committee on Finance of the Senate, and the Committee on Ways and Means of the House of Representatives a report detailing specific ways to improve customer service to small businesses, including objectively measurable goals for how to reduce response times.

SEC. 203. RETURN DUE DATE MODIFICATIONS.

(a) NEW DUE DATE FOR PARTNERSHIP FORM 1065, S CORPORATION FORM 1120S, AND C CORPORATION FORM 1120.—

(1) PARTNERSHIPS.—

(A) IN GENERAL.—Section 6072 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(f) RETURNS OF PARTNERSHIPS.—Returns of partnerships under section 6031 made on the basis of the calendar year shall be filed on or before the 15th day of March following the close of the calendar year, and such returns made on the basis of a fiscal year shall be filed on or before the 15th day of the third month following the close of the fiscal year.''.

(B) CONFORMING AMENDMENT.—Section 6072(a) of such Code is amended by striking ''6017, or 6031'' and inserting ''or 6017''.

(2) S CORPORATIONS.—

(A) IN GENERAL.—So much of subsection (b) of 6072 of such Code as precedes the second sentence thereof is amended to read as follows:

''(b) RETURNS OF CERTAIN CORPORATIONS.—Returns of S corporations under sections 6012 and 6037 made on the basis of the calendar year shall be filed on or before the 31st day of March following the close of the calendar year, and such returns made on the basis of a fiscal year shall be filed on or before the last day of the third month following the close of the fiscal year.''.

(B) CONFORMING AMENDMENTS.—

(i) Section 1362(b) of such Code is amended—

(I) by striking ''15th'' each place it appears and inserting ''last'',

(II) by striking ''2½'' each place it appears and inserting ''3'', and

(III) by striking ''2 months and 15 days'' in paragraph (4) and inserting ''3 months''.

(ii) Section 1362(d)(1)(C)(i) of such Code is amended by striking ''15th'' and inserting ''last''.

(iii) Section 1362(d)(1)(C)(ii) of such Code is amended by striking ''such 15th day'' and inserting ''the last day of the 3d month thereof''.

(3) CONFORMING AMENDMENTS RELATING TO C CORPORATIONS.—

(A) Section 170(a)(2)(B) of such Code is amended by striking ''third month'' and inserting ''4th month''.

(B) Section 563 of such Code is amended by striking ''third month'' each place it appears and inserting ''4th month''.

(C) Section 1354(d)(1)(B)(i) of such Code is amended by striking ''3d month'' and inserting ''4th month''.

(D) Subsection (a) and (c) of section 6167 of such Code are each amended by striking ''third month'' and inserting ''4th month''.

(E) Section 6425(a)(1) of such Code is amended by striking ''third month'' and inserting ''4th month''.

(F) Subsections (b)(2)(A), (g)(3), and (h)(1) of section 6655 of such Code are each amended by striking ''3rd month'' and inserting ''4th month''.

(4) EFFECTIVE DATE.—The amendments made by this subsection shall apply to returns for taxable years beginning after December 31, 2015.

(b) MODIFICATION OF DUE DATES BY REGULATION.—In the case of returns for taxable years beginning after December 31, 2013, the Secretary of the Treasury or the Secretary's delegate shall modify appropriate regulations to provide as follows:

(1) The maximum extension for the returns of partnerships filing Form 1065 shall be a 6-month period beginning on the due date for filing the return (without regard to any extensions).

(2) The maximum extension for the returns of trusts and estates filing Form 1041 shall be a 5½-month period beginning on the due date for filing the return (without regard to any extensions).

(3) The maximum extension for the returns of employee benefit plans filing Form 5500 shall be an automatic 3½-month period beginning on the due date for filing the return (without regard to any extensions).

(4) The maximum extension for the Forms 990 (series) returns of organizations exempt from income tax shall be an automatic 6-month period beginning on the due date for filing the return (without regard to any extensions).

(5) The maximum extension for the returns of organizations exempt from income tax that are required to file Form 4720 returns of excise taxes shall be an automatic 6-month period beginning on the due date for filing the return (without regard to any extensions).

(6) The maximum extension for the returns of trusts required to file Form 5227 shall be an automatic 6-month period beginning on

the due date for filing the return (without regard to any extensions).

(7) The maximum extension for the returns of Black Lung Benefit Trusts required to file Form 6069 returns of excise taxes shall be an automatic 6-month period beginning on the due date for filing the return (without regard to any extensions).

(8) The maximum extension for a taxpayer required to file Form 8870 shall be an automatic 6-month period beginning on the due date for filing the return (without regard to any extensions).

(9) The due date of Form 3520–A, Annual Information Return of a Foreign Trust with a United States Owner, shall be the 15th day of the 4th month after the close of the trust's taxable year, and the maximum extension shall be a 6-month period beginning on such day.

(10) The due date of FinCEN Form 114 (relating to Report of Foreign Bank and Financial Accounts) shall be April 15 with a maximum extension for a 6-month period ending on October 15, and with provision for an extension under rules similar to the rules of 26 C.F.R. 1.6081–5. For any taxpayer required to file such form for the first time, the Secretary of the Treasury may waive any penalty for failure to timely request or file an extension.

(11) Taxpayers filing Form 3520, Annual Return to Report Transactions with Foreign Trusts and Receipt of Certain Foreign Gifts, shall be allowed to extend the time for filing such form separately from the income tax return of the taxpayer, for an automatic 6-month period beginning on the due date for filing the return (without regard to any extensions).

(c) CORPORATIONS PERMITTED STATUTORY AUTOMATIC 6-MONTH EXTENSION OF INCOME TAX RETURNS.—

(1) IN GENERAL.—Section 6081(b) of the Internal Revenue Code of 1986 is amended by striking ''3 months'' and inserting ''6 months''.

(2) EFFECTIVE DATE.—The amendment made by this section shall apply to returns for taxable years beginning after December 31, 2015.

TITLE III—PROVISIONS RELATED TO START-UP BUSINESSES

SEC. 301. REDUCTION IN HOLDING PERIOD FOR QUALIFIED SMALL BUSINESS STOCK.

(a) IN GENERAL.—Paragraph (1) of section 1202(a) of the Internal Revenue Code of 1986 is amended by striking ''5 years'' and inserting ''3 years''.

(b) CONFORMING AMENDMENTS.—

(1) Paragraph (2) of section 1202(b) of such Code is amended by striking ''5 years'' and inserting ''3 years''

(2) Subparagraph (A) of section 1202(g)(2) of such Code is amended by striking ''5 years'' and inserting ''3 years'',

(3) Subparagraph (C) of section 1202(h)(2) of such Code is amended by striking ''5-year'' and inserting ''3-year'', and

(4) Subparagraph (A) of section 1202(j)(1) of such Code is amended by striking ''5 years'' and inserting ''3 years''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to stock issued after the date of the enactment of this Act.

SEC. 302. EXTENSION OF ROLLOVER PERIOD FOR QUALIFIED SMALL BUSINESS STOCK.

(a) IN GENERAL.—Paragraph (1) of section 1045(a) of the Internal Revenue Code of 1986 is amended by striking ''60-day period'' and inserting ''1-year period''.

(b) CONFORMING AMENDMENT.—Paragraph (3) of section 1045(b) of such Code is amended by striking ''60-day period'' and inserting ''1-year period''.

(c) EFFECTIVE DATE.—The amendment made by this section shall apply to sales after the date of the enactment of this Act.

TITLE IV—PROMOTION AND EXPANSION OF PRIVATE EMPLOYEE OWNERSHIP

SEC. 401. SHORT TITLE.

This title may be cited as the ''Promotion and Expansion of Private Employee Ownership Act of 2015''.

SEC. 402. FINDINGS.

Congress finds that—

(1) on January 1, 1998—nearly 25 years after the Employee Retirement Income Security Act of 1974 was enacted and the employee stock ownership plan (hereafter in this section referred to as an ''ESOP'') was created—employees were first permitted to be owners of subchapter S corporations pursuant to the Small Business Job Protection Act of 1996 (Public Law 104–188);

(2) with the passage of the Taxpayer Relief Act of 1997 (Public Law 105–34), Congress designed incentives to encourage businesses to become ESOP-owned S corporations;

(3) since that time, several thousand companies have become ESOP-owned S corporations, creating an ownership interest for several million Americans in companies in every State in the country, in industries ranging from heavy manufacturing to technology development to services;

(4) while estimates show that 40 percent of working Americans have no formal retirement account at all, every United States worker who is an employee-owner of an S corporation company through an ESOP has a valuable qualified retirement savings account;

(5) recent studies have shown that employees of ESOP-owned S corporations enjoy greater job stability than employees of comparable companies;

(6) studies also show that employee-owners of S corporation ESOP companies have amassed meaningful retirement savings through their S ESOP accounts that will give them the means to retire with dignity;

(7) under the Small Business Act (15 U.S.C. 631 et seq.) and the regulations promulgated by the Administrator of the Small Business Administration, a small business concern that was eligible under the Small Business Act for the numerous preferences of the Act is denied treatment as a small business concern after an ESOP acquires more than 49 percent of the business, even if the number of employees, the revenue of the small business concern, and the racial, gender, or other criteria used under the Act to determine whether the small business concern is eligible for benefits under the Act remain the same, solely because of the acquisition by the ESOP; and

(8) it is the goal of Congress to both preserve and foster employee ownership of S corporations through ESOPs.

SEC. 403. DEFERRAL OF TAX FOR CERTAIN SALES OF EMPLOYER STOCK TO EMPLOYEE STOCK OWNERSHIP PLAN SPONSORED BY S CORPORATION.

(a) IN GENERAL.—Subparagraph (A) of section 1042(c)(1) of the Internal Revenue Code of 1986 is amended by striking ''domestic C corporation'' and inserting ''domestic corporation''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply to sales after the date of the enactment of this Act.

SEC. 404. DEPARTMENT OF TREASURY TECHNICAL ASSISTANCE OFFICE.

(a) ESTABLISHMENT REQUIRED.—Before the end of the 90-day period beginning on the date of enactment of this Act, the Secretary of Treasury shall establish the S Corporation Employee Ownership Assistance Office to foster increased employee ownership of S corporations.

(b) DUTIES OF THE OFFICE.—The S Corporation Employee Ownership Assistance Office shall provide—

(1) education and outreach to inform companies and individuals about the possibilities and benefits of employee ownership of S corporations; and

(2) technical assistance to assist S corporations in sponsoring employee stock ownership plans.

SEC. 405. SMALL BUSINESS AND EMPLOYEE STOCK OWNERSHIP.

(a) IN GENERAL.—The Small Business Act (15 U.S.C. 631 et seq.) is amended—

(1) by redesignating section 47 as section 48; and

(2) by inserting after section 46 the following:

''SEC. 47. EMPLOYEE STOCK OWNERSHIP PLANS.

''(a) DEFINITIONS.—In this section—

''(1) the term 'ESOP' means an employee stock ownership plan, as defined in section 4975(e)(7) of the Internal Revenue Code of 1986, as amended; and

''(2) the term 'ESOP business concern' means a business concern that was a small business concern eligible for a loan, preference, or other program under this Act before the date on which more than 49 percent of the business concern was acquired by an ESOP.

''(b) CONTINUED ELIGIBILITY.—In determining whether an ESOP business concern qualifies as a small business concern for purposes of a loan, preference, or other program under this Act, each ESOP participant shall be treated as directly owning his or her proportionate share of the stock in the ESOP business concern owned by the ESOP.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect on January 1 of the first calendar year beginning after the date of the enactment of this Act.

SENATE RESOLUTION 253—WELCOMING KING FELIPE VI AND QUEEN LETIZIA OF SPAIN ON THEIR OFFICIAL VISIT TO THE UNITED STATES, INCLUDING VISITS TO MIAMI AND ST. AUGUSTINE, FLORIDA

Mr. NELSON (for himself, Mr. RUBIO, and Mr. KAINE) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 253

Whereas King Felipe VI and Queen Letizia of Spain are visiting St. Augustine, Florida to celebrate the 450th Commemoration of the city and to participate in the annual United States-Spain Council forum;

Whereas Spanish explorer Ponce de León landed on the east coast of Florida in 1513 and named the land he discovered La Florida;

Whereas St. Augustine was founded by Spanish admiral Pedro Menéndez de Avilés on September 8, 1565;

Whereas St. Augustine is the oldest continuously occupied European settlement in the United States;

Whereas the United States-Spain Council serves an important purpose in bringing the United States and Spain closer through trade, investment, education, and culture, as well as by fostering military cooperation between the 2 countries;

Whereas the United States-Spain Council is holding its annual forum in St. Augustine from September 18–20, 2015;

Whereas the people and Governments of the United States and Spain have both benefitted from strong economic and cultural ties;

Whereas Spain has played a special role in the history and culture of St. Augustine and Florida; and

Whereas King Felipe VI and Queen Letizia met with President Barack Obama on September 15, 2015, for their first official visit to the White House: Now, therefore, be it

Resolved, That the Senate—

(1) welcomes King Felipe VI and Queen Letizia of Spain during their visit to the United States; and

(2) expresses its appreciation for the efforts of King Felipe VI and Queen Letizia to strengthen the bonds between the people and Governments of the United States and Spain.

SENATE RESOLUTION 254—RECOGNIZING HISPANIC HERITAGE MONTH AND CELEBRATING THE HERITAGE AND CULTURE OF LATINOS IN THE UNITED STATES AND THE IMMENSE CONTRIBUTIONS OF LATINOS TO THE UNITED STATES

Mr. MENENDEZ (for himself, Mr. REID, Mr. CORNYN, Mr. BENNET, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. BROWN, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mrs. FEINSTEIN, Mr. FRANKEN, Mrs. GILLIBRAND, Mr. HEINRICH, Mr. HELLER, Ms. HIRONO, Mr. KAINE, Mr. MARKEY, Mrs. MURRAY, Mr. NELSON, Mr. PETERS, Mr. REED, Mr. RUBIO, Mr. SCHUMER, Ms. STABENOW, Mr. UDALL, Mr. WARNER, and Ms. WARREN) submitted the following resolution; which was considered and agreed to:

S. RES. 254

Whereas the United States celebrates Hispanic Heritage Month from September 15, 2015, through October 15, 2015;

Whereas the United States Census Bureau estimates the Hispanic population in the United States at more than 55,000,000 people, making Hispanic Americans 17.4 percent of the population of the United States and the largest racial or ethnic minority group in the United States;

Whereas there were 1,000,000 or more Latino residents in Puerto Rico and each of the following 8 States in 2014: Arizona, California, Colorado, Florida, Illinois, New Jersey, New York, and Texas;

Whereas Latinos grew the United States population by more than 1,150,000 people between July 1, 2013, and July 1, 2014, accounting for nearly ½ of all population growth during this period;

Whereas the Latino population in the United States is projected to grow to 105,550,000 by 2050, at which point the Latino population will comprise more than 25 percent of the total population of the United States;

Whereas the Latino population in the United States is currently the third largest worldwide, exceeding the population in every Latin American and Caribbean country except for Mexico and Brazil;

Whereas there were 12,200,000 Latino family households in the United States and more than 17,900,000 Latino children under the age of 18 in 2014, representing approximately ⅓ of the total Latino population in the United States;

Whereas more than 1 in 4 public school students in the United States is Latino, and the share of Latino students is expected to rise to nearly 30 percent in the next decade;

Whereas 19 percent of all college students between the ages of 18 and 24 years old are Latino, making Latinos the largest racial or ethnic minority group on college campuses in the United States, including both 2-year community colleges and 4-year colleges and universities;

Whereas a record 11,200,000 Latinos voted in the 2012 Presidential election, representing a record 8.4 percent of the electorate in the United States;

Whereas an estimated 28,500,000 Latinos will be eligible to vote in the 2016 Presidential election, and the number of eligible Latino voters is expected to rise to 40,000,000 by 2030, accounting for 40 percent of the growth in the eligible electorate in the United States over the next 15 years;

Whereas more than 2,000 Latino citizens currently turn 18 and become eligible to vote every day, and an estimated 1,000,000 Latino citizens will turn 18 and become eligible to vote every year by 2024;

Whereas the annual purchasing power of Hispanic Americans was an estimated $1,300,000,000,000 in 2014, larger than the economy of all but 15 countries in the world;

Whereas there are more than 3,200,000 Hispanic-owned firms in the United States, supporting millions of employees nationwide and contributing more than $468,000,000,000 in revenue to the economy of the United States;

Whereas Hispanic-owned businesses represent the fastest growing segment of small businesses in the United States, with Latino entrepreneurs starting businesses at more than twice the national rate;

Whereas, as of August 2015, more than 26,000,000 Latino workers represented 16.6 percent of the total civilian labor force in the United States, and the Latino share of the labor force is expected to grow to 19.1 percent by 2022, with the Latino population accounting for more than 40 percent of the increase in employment in the United States over the next 5 years;

Whereas Latinos have the highest labor force participation rate of any racial or ethnic group at 65.6 percent, compared to 62.6 percent overall;

Whereas there were 270,000 Latino elementary and middle school teachers, 75,000 Latino chief executives of businesses, 63,000 Latino lawyers, and 64,000 Latino physicians and surgeons contributing to the United States through their professions in 2014;

Whereas Hispanic Americans serve in all branches of the United States Armed Forces and have bravely fought in every war in the history of the United States;

Whereas, as of July 31, 2015, more than 164,000 Hispanic active duty service members served with distinction in the United States Armed Forces;

Whereas, as of August 31, 2015, approximately 284,000 Latinos have served in overseas contingency operations since September 11, 2001, including more than 8,500 Latinos currently serving in operations in Iraq and Afghanistan;

Whereas, as of September 2015, at least 675 United States Armed Forces fatalities in Iraq and Afghanistan were Hispanic;

Whereas an estimated 200,000 Latinos were mobilized for World War I and approximately 500,000 Latinos served during World War II;

Whereas more than 80,000 Latinos served in the Vietnam War, representing 5.5 percent of individuals who made the ultimate sacrifice for the United States in the conflict, even though Latinos comprised only 4.5 percent of the population of the United States at the time;

Whereas approximately 148,000 Hispanic soldiers served in the Korean War, including Puerto Rico's 65th Infantry Regiment known as the ''Borinqueneers'', the only active-duty segregated Latino military unit in the history of the United States;

Whereas, as of September 2015, there are an estimated 1,500,000 living Latino veterans of the United States Armed Forces;

Whereas 61 Hispanic Americans have received the Congressional Medal of Honor, the highest award for valor in action against an enemy force that can be bestowed on an individual serving in the United States Armed Forces;

Whereas Hispanic Americans are dedicated public servants, holding posts at the highest levels of government, including 1 seat on the Supreme Court of the United States, 3 seats in the Senate, 34 seats in the House of Representatives, and 3 seats in the Cabinet; and

Whereas Hispanic Americans harbor a deep commitment to family and community, an enduring work ethic, and a perseverance to succeed and contribute to society: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the celebration of Hispanic Heritage Month from September 15, 2015, through October 15, 2015;

(2) esteems the integral role of Latinos and the manifold heritage of Latinos in the economy, culture, and identity of the United States; and

(3) urges the people of the United States to observe Hispanic Heritage Month with appropriate programs and activities that celebrate the contributions of Latinos to life in the United States.

SENATE RESOLUTION 255—DESIGNATING THE WEEK BEGINNING SEPTEMBER 14, 2015, AS NATIONAL HISPANIC-SERVING INSTITUTIONS WEEK

Mr. MENENDEZ (for himself, Mr. REID, Mr. CORNYN, Mr. BENNET, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mrs. FEINSTEIN, Mrs. GILLIBRAND, Mr. HEINRICH, Mr. HELLER, Mr. KAINE, Mr. MARKEY, Mrs. MURRAY, Mr. NELSON, Mr. PETERS, Mr. RUBIO, Mr. SCHUMER, Mr. UDALL, Mr. WARNER, and Ms. WARREN) submitted the following resolution; which was considered and agreed to:

S. RES. 255

Whereas Hispanic-Serving Institutions are degree-granting institutions that have a full-time equivalent undergraduate enrollment of at least 25 percent Hispanic students;

Whereas Hispanic-Serving Institutions play an important role in educating many underprivileged students and helping those students attain their full potential through higher education;

Whereas more than 400 Hispanic-Serving Institutions operate in the United States;

Whereas Hispanic-Serving Institutions represent just 12 percent of all nonprofit institutions of higher education, yet serve nearly 60 percent of all Hispanic undergraduate students, enrolling more than 1,700,000 Hispanic undergraduate students in 2013;

Whereas the number of ''emerging Hispanic-Serving Institutions'', defined as institutions that do not yet meet the threshold of 25 percent Hispanic enrollment but serve a Hispanic student population of between 15 and 24 percent, grew to nearly 300 colleges and universities in 2013;

Whereas Hispanic-Serving Institutions are located in 21 States and Puerto Rico, and emerging Hispanic-Serving Institutions are located in 29 States and Washington, DC;

Whereas Hispanic-Serving Institutions are actively involved in stabilizing and improving the communities in which the institutions are located;

Whereas celebrating the vast contributions of Hispanic-Serving Institutions to the United States strengthens the culture of the United States; and

Whereas the achievements and goals of Hispanic-Serving Institutions deserve national recognition: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the achievements and goals of Hispanic-Serving Institutions across the United States;

(2) designates the week beginning September 14, 2015, as National Hispanic-Serving Institutions Week; and

(3) calls on the people of the United States and interested groups to observe the week with appropriate ceremonies, activities, and programs to demonstrate support for Hispanic-Serving Institutions.

SENATE RESOLUTION 256—DESIGNATING SEPTEMBER 2015 AS ''SCHOOL BUS SAFETY MONTH''

Mrs. FISCHER (for herself and Mr. BOOKER) submitted the following resolution; which was considered and agreed to:

S. RES. 256

Whereas approximately 480,000 public and private school buses carry 26,000,000 children to and from school every weekday in the United States;

Whereas America's 480,000 public and private school buses comprise the largest mass transportation fleet in the Nation;

Whereas during the school year, school buses make more than 55,000,000 passenger trips daily and students ride these school buses 10,000,000,000 times per year as the Nation's fleet travels over 5,600,000,000 miles per school year;

Whereas school buses are designed to be safer than passenger vehicles and are 13 times safer than other modes of school transportation, and 44 times safer than vehicles driven by teenagers;

Whereas in an average year, about 25 school children are killed in school bus accidents, with one-third of these children struck by their own school buses in loading/unloading zones, one-third struck by motorists who fail to stop for school buses, and one-third killed as they approach or depart a school bus stop;

Whereas The Child Safety Network, celebrating 27 years of national public service, has collaborated with the National PTA and the school bus industry to create public service announcements to reduce distracted driving near school buses, increase ridership, and provide free resources to school districts in order to increase driver safety training, provide free technology for tracking school buses, reduce on-board bullying, and educate students; and

Whereas the adoption of School Bus Safety Month will allow broadcast and digital media and social networking industries to make commitments to disseminate public service announcements designed to save children's lives by making motorists aware of school bus safety issues: Now, therefore, be it

Resolved, That the Senate designates September 2015 as ''School Bus Safety Month''.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2656. Mr. MCCONNELL (for himself, Mr. ROBERTS, Mr. PERDUE, Mr. BLUNT, Mr. INHOFE, Mr. BOOZMAN, Mr. TOOMEY, Mr. RUBIO, Mrs. ERNST, Mr. MCCAIN, Mr. HATCH, Mr. LEE, Mr. ISAKSON, Mr. ROUNDS, Mr. SCOTT, Mr. VITTER, Mrs. FISCHER, Mr. KIRK, Mr. MORAN, Mr. COCHRAN, Mr. BARRASSO, Mr. CORKER, Mr. SHELBY, Mr. LANKFORD, Mr. JOHNSON, Mr. TILLIS, Mrs. CAPITO, Mr. COATS, and Mr. CRUZ) submitted an amendment intended to be proposed to amendment SA 2640 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act.

SA 2657. Mr. MCCONNELL proposed an amendment to amendment SA 2656 submitted by Mr. MCCONNELL (for himself, Mr. ROBERTS, Mr. PERDUE, Mr. BLUNT, Mr. INHOFE, Mr. BOOZMAN, Mr. TOOMEY, Mr. RUBIO, Mrs. ERNST, Mr. MCCAIN, Mr. HATCH, Mr. LEE, Mr. ISAKSON, Mr. ROUNDS, Mr . SCOTT, Mr. VITTER, Mrs. FISCHER, Mr. KIRK, Mr . MORAN, Mr. COCHRAN, Mr. BARRASSO, Mr. CORKER, Mr. SHELBY, Mr. LANKFORD, Mr. JOHNSON, Mr. TILLIS, Mrs. CAPITO, Mr. COATS, and Mr. CRUZ) to the amendment SA 2640 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, supra.

SA 2658. Mr. MCCONNELL proposed an amendment to the joint resolution H.J. Res. 61, supra.

SA 2659. Mr. MCCONNELL proposed an amendment to amendment SA 2658 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, supra.

SA 2660. Mr. MCCONNELL proposed an amendment to the joint resolution H.J. Res. 61, supra.

SA 2661. Mr. MCCONNELL proposed an amendment to amendment SA 2660 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, supra.

SA 2662. Mr. MCCONNELL proposed an amendment to amendment SA 2661 proposed by Mr. MCCONNELL to the amendment SA 2660 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, supra.

TEXT OF AMENDMENTS

SA 2656. Mr. MCCONNELL (for himself, Mr. ROBERTS, Mr. PERDUE, Mr. BLUNT, Mr. INHOFE, Mr. BOOZMAN, Mr. TOOMEY, Mr. RUBIO, Mrs. ERNST, Mr. MCCAIN, Mr. HATCH, Mr. LEE, Mr. ISAKSON, Mr. ROUNDS, Mr. SCOTT, Mr. VITTER, Mrs. FISCHER, Mr. KIRK, Mr. MORAN, Mr. COCHRAN, Mr. BARRASSO, Mr. CORKER, Mr. SHELBY, Mr. LANKFORD, Mr. JOHNSON, Mr. TILLIS, Mrs. CAPITO, Mr. COATS, and Mr. CRUZ) submitted an amendment intended to be proposed to amendment SA 2640 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; as follows:

Strike line 3 and all that follows and insert the following:

SECTION 1. REMOVAL OF AUTHORITY TO WAIVE, SUSPEND, REDUCE, PROVIDE RELIEF FROM, OR OTHERWISE LIMIT THE APPLICATION OF SANCTIONS PURSUANT TO AN AGREEMENT RELATED TO THE NUCLEAR PROGRAM OF IRAN.

(a) IN GENERAL.—Notwithstanding any other provision of law, the President may not—

(1) waive, suspend, reduce, provide relief from, or otherwise limit the application of sanctions described in subsection (b) or refrain from applying any such sanctions; or

(2) remove a foreign person listed in Attachment 3 or Attachment 4 to Annex II of the Joint Comprehensive Plan of Action from the list of specially designated nationals and blocked persons maintained by the Office of Foreign Asset Control of the Department of the Treasury.

(b) SANCTIONS DESCRIBED.—The sanctions described in this subsection are—

(1) the sanctions described in sections 4 through 7.9 of Annex II of the Joint Comprehensive Plan of Action; and

(2) the sanctions described in any other agreement related to the nuclear program of Iran that includes the United States, commits the United States to take action, or pursuant to which the United States commits or otherwise agrees to take action, regardless of the form it takes, whether a political commitment or otherwise, and regardless of whether it is legally binding.

(c) EXCEPTION.—The prohibitions under subsection (a) shall not apply if the Islamic Republic of Iran—

(1) has released Jason Rezaian, Robert Levinson, Saeed Abedini, and Amir Hekmati to the custody of the United States; and

(2) formally recognizes the State of Israel as a sovereign and independent state.

(d) JOINT COMPREHENSIVE PLAN OF ACTION DEFINED.—In this section, the term ''Joint Comprehensive Plan of Action'' means the Joint Comprehensive Plan of Action, signed at Vienna on July 14, 2015, by Iran and by the People's Republic of China, France, Germany, the Russian Federation, the United Kingdom and the United States, with the High Representative of the European Union for Foreign Affairs and Security Policy, and all implementing materials and agreements related to the Joint Comprehensive Plan of Action.

SA 2657. Mr. MCCONNELL proposed an amendment to amendment SA 2656 submitted by Mr. MCCONNELL (for himself, Mr. ROBERTS, Mr. PERDUE, Mr. BLUNT, Mr. INHOFE, Mr. BOOZMAN, Mr. TOOMEY, Mr. RUBIO, Mrs. ERNST, Mr. MCCAIN, Mr. HATCH, Mr. LEE, Mr. ISAKSON, Mr. ROUNDS, Mr. SCOTT, Mr. VITTER, Mrs. FISCHER, Mr. KIRK, Mr. MORAN, Mr. COCHRAN, Mr. BARRASSO, Mr. CORKER, Mr. SHELBY, Mr. LANKFORD, Mr. JOHNSON, Mr. TILLIS, Mrs. CAPITO, Mr. COATS, and Mr. CRUZ) to the amendment SA 2640 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; as follows:

At the end add the following.

''This Act shall take effect 1 day after the date of enactment.''

SA 2658. Mr. MCCONNELL proposed an amendment to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies

under the Patient Protection and Affordable Care Act; as follows:

At the end add the following.

''This Act shall take effect 2 days after the date of enactment.''

SA 2659. Mr. MCCONNELL proposed an amendment to amendment SA 2658 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; as follows:

Strike ''2'' and insert ''3''

SA 2660. Mr. MCCONNELL proposed an amendment to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. REMOVAL OF AUTHORITY TO WAIVE, SUSPEND, REDUCE, PROVIDE RELIEF FROM, OR OTHERWISE LIMIT THE APPLICATION OF SANCTIONS PURSUANT TO AN AGREEMENT RELATED TO THE NUCLEAR PROGRAM OF IRAN.

(a) IN GENERAL.—Notwithstanding any other provision of law, the President may not—

(1) waive, suspend, reduce, provide relief from, or otherwise limit the application of sanctions described in subsection (b) or refrain from applying any such sanctions; or

(2) remove a foreign person listed in Attachment 3 or Attachment 4 to Annex II of the Joint Comprehensive Plan of Action from the list of specially designated nationals and blocked persons maintained by the Office of Foreign Asset Control of the Department of the Treasury.

(b) SANCTIONS DESCRIBED.—The sanctions described in this subsection are—

(1) the sanctions described in sections 4 through 7.9 of Annex II of the Joint Comprehensive Plan of Action; and

(2) the sanctions described in any other agreement related to the nuclear program of Iran that includes the United States, commits the United States to take action, or pursuant to which the United States commits or otherwise agrees to take action, regardless of the form it takes, whether a political commitment or otherwise, and regardless of whether it is legally binding.

(c) EXCEPTION.—The prohibitions under subsection (a) shall not apply if the Islamic Republic of Iran—

(1) has released Jason Rezaian, Robert Levinson, Saeed Abedini, and Amir Hekmati to the custody of the United States; and

(2) formally recognizes the State of Israel as a sovereign and independent state.

(d) JOINT COMPREHENSIVE PLAN OF ACTION DEFINED.—In this section, the term ''Joint Comprehensive Plan of Action'' means the Joint Comprehensive Plan of Action, signed at Vienna on July 14, 2015, by Iran and by the People's Republic of China, France, Germany, the Russian Federation, the United Kingdom and the United States, with the High Representative of the European Union for Foreign Affairs and Security Policy, and all implementing materials and agreements related to the Joint Comprehensive Plan of Action.

This act shall take effect 4 days after the date of enactment.

SA 2661. Mr. MCCONNELL proposed an amendment to amendment SA 2660 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; as follows:

On page 3, line 22, strike ''4'' and insert ''5''

SA 2662. Mr. MCCONNELL proposed an amendment to amendment SA 2661 proposed by Mr. MCCONNELL to the amendment SA 2660 proposed by Mr. MCCONNELL to the joint resolution H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; as follows:

Strike ''5'' and insert ''6''

AUTHORITY FOR COMMITTEES TO MEET

SELECT COMMITTEE ON INTELLIGENCE

Mr. MORAN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on September 15, 2015, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

EQUITY IN GOVERNMENT COMPENSATION ACT OF 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of S. 2036, introduced earlier today.

The PRESIDING OFFICER. The clerk will report the bill by title.

The bill clerk read as follows:

A bill (S. 2036) to suspend the current compensation packages for the chief executive officers of Fannie Mae and Freddie Mac, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. I ask unanimous consent that the bill be read a third time and passed, and the motion to reconsider be laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 2036) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 2036

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Equity in Government Compensation Act of 2015''.

SEC. 2. DEFINITIONS.

In this Act:

(1) DIRECTOR.—The term ''Director'' means the Director of the Federal Housing Finance Agency.

(2) ENTERPRISE.—The term ''enterprise'' means—

(A) the Federal National Mortgage Association and any affiliate thereof; and

(B) the Federal Home Loan Mortgage Corporation and any affiliate thereof.

SEC. 3. REASONABLE PAY FOR CHIEF EXECUTIVE OFFICERS.

(a) SUSPENSION OF CURRENT COMPENSATION PACKAGE AND LIMITATION.—The Director shall suspend the compensation packages approved for 2015 for the chief executive officers of each enterprise and, in lieu of such packages, subject to the limitation under subsection (b), establish the compensation and benefits for each such chief executive officer at the same level in effect for such officer as of January 1, 2015, and such compensation and benefits may not thereafter be increased.

(b) LIMITATION ON BONUSES.—Subsection (a) shall not be construed to affect the applicability of section 16 of the STOCK Act (12 U.S.C. 4518a) to the chief executive officer of each enterprise.

(c) APPLICABILITY.—Subsection (a) shall only apply to a chief executive officer of an enterprise if the enterprise is in conservatorship or receivership pursuant to section 1367 of the Federal Housing Enterprises Financial Safety and Soundness Act of 1992 (12 U.S.C. 4617).

SEC. 4. FANNIE AND FREDDIE CHIEF EXECUTIVE OFFICERS NOT FEDERAL EMPLOYEES.

Any chief executive officer affected by any provision under section 3 shall not be considered a Federal employee.

NATIONAL DIRECT SUPPORT PROFESSIONALS RECOGNITION WEEK

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Judiciary Committee be discharged from further consideration of S. Res. 245 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 245) designating the week beginning September 13, 2015, as ''National Direct Support Professionals Recognition Week.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 245) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of August 5, 2015, under ''Submitted Resolutions.'')

RESOLUTIONS SUBMITTED TODAY

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate now proceed to the en bloc consideration of the following Senate resolutions, which were submitted earlier today: S. Res. 254, S. Res. 255, and S. Res. 256.

There being no objection, the Senate proceeded to consider the resolutions en bloc.

Mr. MCCONNELL. I ask unanimous consent that the resolutions be agreed to, the preambles be agreed to, and the motions to reconsider be laid upon the table en bloc.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolutions were agreed to.

The preambles were agreed to.

(The resolutions, with their preambles, are printed in today's RECORD under ''Submitted Resolutions.'')

MEASURES READ THE FIRST TIME—S. 2035 AND H.R. 36

Mr. MCCONNELL. Mr. President, I understand there are two bills at the desk, and I ask for their first reading en bloc.

The PRESIDING OFFICER. The clerk will read the bills by title for the first time en bloc.

The bill clerk read as follows:

A bill (S. 2035) to provide for the compensation of Federal employees affected by a lapse in appropriations.

A bill (H.R. 36) to amend title 18, United States Code, to protect pain-capable unborn children, and for other purposes.

Mr. MCCONNELL. I now ask for a second reading, and I object to my own request, all en bloc.

The PRESIDING OFFICER. Objection having been heard, the bills will be read for the second time on the next legislative day.

ORDERS FOR WEDNESDAY, SEPTEMBER 16, 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10 a.m., Wednesday, September 16; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following leader remarks, the Senate be in a period of morning business for 1 hour, with Senators permitted to speak therein, and that the majority control the first half and the Democrats control the final half; that following morning business, the Senate then resume consideration of H.J. Res. 61, with the time until 12:30 p.m. equally divided between the two leaders or their designees; further, that the Senate recess from 12:30 p.m. to 2:15 p.m. to allow for the weekly conference meetings; finally, that the filing deadline for all first-degree amendments be at 2:30 p.m. tomorrow.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 7:43 p.m., adjourned until Wednesday, September 16, 2015, at 10 a.m.

NOMINATIONS

Executive nominations received by the Senate:

THE JUDICIARY

REBECCA GOODGAME EBINGER, OF IOWA, TO BE UNITED STATES DISTRICT JUDGE FOR THE SOUTHERN DISTRICT OF IOWA, VICE JAMES E. GRITZNER, RETIRED.

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be vice admiral

REAR ADM. ELIZABETH L. TRAIN

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be vice admiral

VICE ADM. FRANK C. PANDOLFE

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be vice admiral

REAR ADM. RAQUEL C. BONO

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be vice admiral

REAR ADM. DAVID C. JOHNSON

IN THE MARINE CORPS

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES MARINE CORPS TO THE GRADE INDICATED WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601, AND FOR APPOINTMENT AS A SENIOR MEMBER OF THE MILITARY STAFF COMMITTEE OF THE UNITED NATIONS UNDER TITLE 10, U.S.C, SECTION 711:

To be lieutenant general

LT. GEN. KENNETH F. MCKENZIE, JR.

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES MARINE CORPS TO THE GRADE OF LIEUTENANT GENERAL WHILE ASSIGNED TO A POSITION OF IMPORTANCE AND RESPONSIBILITY UNDER TITLE 10, U.S.C., SECTION 601:

To be lieutenant general

MAJ. GEN. WILLIAM D. BEYDLER

EXTENSIONS OF REMARKS

APPROVAL OF JOINT COMPREHENSIVE PLAN OF ACTION

SPEECH OF

HON. STACEY E. PLASKETT

OF THE VIRGIN ISLANDS

IN THE HOUSE OF REPRESENTATIVES

Thursday, September 10, 2015

Ms. PLASKETT. Mr. Speaker, I rise today in support of the Joint Comprehensive Plan of Action.

Over these summer months my colleagues and I have engaged in—what I believe has been—enormous thought, analysis, consultation, and heartfelt introspection in taking a position on a matter that may determine the safety of the Middle East, and the United States' continued leadership in the world. For several years our nation has spearheaded sanctions, which have brought Iran to the negotiating table, and our President has presented to our nation a path to peace. For the last 30 years, American-Iranian relations have been trapped in not only suspicion and mistrust, but intractability; denying us the ability to develop even an agreement as to how we will manage our and our allies' relationship and interests in Iran. As a nation of democracy, dignity and freedom, fought for and defended by ourselves and our allies, I believe that the Joint Comprehensive Plan of Action (JCPOA) is the best means to protect and advance the best interests of our nation and those of our allies. I choose to support measures designed to build bridges to a future that may one day lead to peace.

I fundamentally support the Joint Comprehensive Plan of Action and commend Secretary John Kerry and Secretary Ernest Moniz for their leadership in these negotiations. We are not the only party to this Agreement and we are well aware that all other nations in the negotiation are ready and willing to sign the JCPOA. They are also ready to resume commercial relations with Iran, which will effectively remove economic sanctions, the stick which initially brought them to the table. Our leadership role demands that we follow through with the terms of this Agreement and continue to be at the helm of monitoring Iran. We must never walk away from our commitment to peace in the region and our alliance with Israel. If we walk away now, however, we have no voice. We isolate not only our leaders, but also our nation.

No one believes this is a perfect outcome or that we have entered with complete faith in the other side. As a lawyer, I understand that no party is ever completely satisfied with agreements such as this. I am particularly concerned that the Agreement will require lifting the sanctions against Iran, which has been our main enforcement measure. Iran stands to recover approximately $100 billion once released from previously imposed sanctions. If we reject this deal, we waive any leverage to ensure the money is not used to advance a regime that would threaten our national and international security. I will work with my colleagues in Congress and the Administration as we ensure Iran abides by the terms of the Agreement and uses the money to promote economic stability globally and within the region.

I have met with my constituents including those from both the Muslim and Jewish communities and am thankful for their thoughts on this subject, and even more so for their commitment to uplift the people of the Virgin Islands, our country and the world.

Most important to this decision is my fear that military action would be the likely alternative to rejecting the Agreement, and my constituents—mostly underserved and unemployed minorities—will be the individuals to bear the brunt of the fight. As the Representative of a community that serves in our Nation's military in greater proportion than most communities on the mainland, and as a mother of three service-age sons, I cannot support this outcome.

On this anniversary of the attack of September 11, 2001, and our nation's subsequent decision to enter war, we see that we must exhaust every option before entering war and suffering the casualties of such conflicts, which rob us of the most precious resource of our nation; our people. The alternative to not supporting the Agreement is not a viable option for our nation. We as leaders must work diligently for peace in the Middle East, and to ensure we protect the interests of Israel, our must trusted ally in the region.

I believe that President Obama has secured enough votes in the Senate to advance the Agreement, and hope we in Washington will now focus on efforts towards addressing and improving our long-term infrastructure needs, maintaining our social safety net system, alleviating the continued inequities in this great country, and uplifting the lives of all Americans.

H.R. 3460

HON. BRAD SHERMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. SHERMAN. Mr. Speaker, I voted against H.R. 3460. I regret that this bill was brought to the floor without even a discussion, let alone a markup, in the House Foreign Affairs Committee. Had it been marked up in the House Foreign Affairs Committee, I would have offered an amendment to strike the date so that the President's authority to waive sanctions was either eliminated entirely or eliminated for three years or five years. Unfortunately the text of the bill implies that the next president will be more capable of making decisions regarding Iran than the current president. I have disagreed with President Obama on Iran policy, but I think it is absurd to assume that the next president will make better policy, especially when we have no idea who that individual will be.

TRIBUTE TO MR. RICHARD BERELLE ASH

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, Mr. Richard Berelle Ash is celebrating thirty (30) years of serving others in the Georgia Department of Community Health; and

Whereas, Mr. Ash retires this year, he has served as an Operations Manager, Property Officer, Fleet Manager and Records Manager for the state of Georgia and he has provided stellar leadership and service throughout the state; and

Whereas, this remarkable and tenacious man is an ambassador of goodwill; as a pastor and community advocate, he has given hope to the hopeless, fed the hungry and has been a beacon of light to those in need; and

Whereas, Mr. Ash is a man of compassion, a fearless leader and a servant to all, but most of all a visionary who has shared his time and talent to promote community development around the state of Georgia; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize Mr. Richard Berelle Ash as he celebrates thirty years of service and to salute him as he retires from the Georgia Department of Community Health; A true Man of Excellence; now therefore, I, HENRY C. "HANK" JOHNSON, Jr., do hereby proclaim July 30, 2015 as Mr. Richard Berelle Ash Day in the 4th Congressional District.

Proclaimed, this 30th day of July, 2015.

STATEMENT RECOGNIZING TRAIN HEROES

HON. AMI BERA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. BERA. Mr. Speaker, today I rise to commend the bravery of three young men with ties to Sacramento County. While on a train to Paris, childhood friends Alek Skarlatos, Anthony Sadler, and Spencer Stone sprang into action to stop a man storming through their cabin carrying an automatic weapon and a box cutter. Their quick action saved the people onboard that train and their bravery has inspired our country.

As we recognize their heroism, the incident is also a reminder that terrorist threats are everywhere. These three men took bold action to protect others from harm and I commend the sacrifice they were willing to make to protect those around them.

The three met while attending Freedom Christian School in Fair Oaks. Sadler and Stone attended Del Campo High School and

were active in their community. Skarlatos moved to Oregon, but the trio stayed in touch. They were on a European vacation when the gunman burst into their cabin.

As an Oregon Army National Guardsman, Army Spc. Alek Skarlatos had recently returned from Afghanistan. He was first to sound the alarm, telling his friends, "let's go" as they moved to subdue the gunman.

Anthony Sadler, a senior at Sacramento State University, said his first instinct was to help and he rushed toward the man.

And Airman 1st Class Spencer Stone of the U.S. Air Force was the first to get to the gunman. He was slashed while trying to disarm the man. As a trained Emergency Medical Technician, his injury didn't stop him from administering care to some of the passengers who had been wounded. Stone has been nominated for the Airman's Medal, the Air Force's highest non-combat award.

These men were faced with a dangerous threat and in that moment chose to act. It is a testament to their bravery and their service to their country. It is my pleasure to formally recognize the actions they took to save others.

The parade in their honor will be held on September 11, 2015 in Sacramento. It's a fitting date to welcome them home and honor their heroism. The story of these three men is a reminder that everyone can be a hero. Thank you Alek, Anthony, and Spencer: you have made your hometown proud and inspired our country.

TRIBUTE TO MR. HUGH FLOYD WILLIAMS

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, Mr. Hugh Floyd Williams is celebrating forty (40) years of serving others in the Peace Corps as a volunteer for two years (1974–1976) and with the State Department for thirty-eight years (1977–2015); and

Whereas, Mr. Williams retired this year with the rank of Minister-Counselor from the State Department wherein under his guidance as a Foreign Service Officer, he has provided stellar leadership on an international level, he has enhanced the lives of many in Sierra Leone, Europe, Asia, Hong Kong, Canada, Malaysia, India, Indonesia, Belgium, Jamaica and the Americas; and

Whereas, this remarkable and tenacious man is an ambassador of goodwill; he has given hope to the hopeless, fed the hungry and is a beacon of light to those in need; and

Whereas, Mr. Williams is a man of compassion, a fearless leader and a servant to all, but most of all a visionary who has shared his time and talent to promote diplomacy around the world representing our great nation; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize Mr. Hugh Floyd Williams as he celebrates forty years in service and to salute him as he retires from the State Department; A true Man of Excellence; now therefore, I, HENRY C. "HANK" JOHNSON, Jr., do hereby proclaim July 23, 2015 as Mr. Hugh Floyd Williams Day in the 4th Congressional District.

Proclaimed, this 23rd day of July, 2015.

HONORING THE PERMIAN BASIN HONOR FLIGHT

HON. K. MICHAEL CONAWAY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. CONAWAY. Mr. Speaker, I rise to recognize the 93 Veterans from West Texas who will be visiting our Washington D.C. this week, sponsored by the Permian Basin Honor Flight. On behalf of a grateful state and nation, we welcome these heroes to the nation's capital.

The Veterans on this Honor Flight are: Clint Adams, Alberto Alavartez Jr., Clark Bagley, Joe Banks, Michael Barker, Victor Barros, James Bedingfield, Carlton Blackwell, Herbert Blankingship, James Block, Grady Blocker, Wilbur Boone, Thomas Bostick Sr., Raymond Boswell, Harold Brenner, Wendell Brown, Billy Brown, Mike Brown, Dr. Joseph Bruner, Daniel Bullen, Robert Cole, Jennifer Conkin, Richard Cortez, Doyle Dewayne Dobbs, Ernest Elkins, Ronald Emmons, Robert Fields, Daniel Fischer, Richard Galloway, Wade Gamblin, Ralph Gillette, John Graves, Eldon Griffis, Michael Henderson, Gary Hokerk, Wayne Hokerk, Rex Holland, Timothy Humpherys, Billy Hunte, Joe Jackson, Roger Johnston, Herman Jones, Bobby Kizer, Charles Linebarger, Teresa Lopez, Delfin Lopez, Michael Lopez, Raymond Lusk, Darcy Maloney, Robert Middaugh, Scott Morris Sr., Scott Morris Jr., Ira Overton, Carolos Padilla, Salvatore Pagano, Preston Parrott, Newton Peterson, Julian Pressey, TJ Price, Donald Price, Emil Raschke, Edward Reel, Winifred Richmond, Sifredo Rodriguez, Frank Rodriguez, Pedro Ruiz, Richardo Saldana, Thomas Salgado, Erene Sanchez, Simon Sanchez, Jerry Sides, Georgia Simcik, Claude Smith, Melvin Smith, Tommy Smith, Steve Stone, Rachel Stout, William Sudduth, Bobby Jean Swinney, William Tapley, Leslie Tidwell, Charl Trantham, Veron Trent, Teddy Trogdon, Henry Tuck, Randy Vest, Orlando Villanueva, Donald Waldrop, Gary Watkins, Mark Webb, David Whitten, Grady Wilkerson, Robert Williamson, William Wrenn.

Mr. Speaker, I am humbled to have the opportunity to meet these brave men and women who exemplify the best of our country. Their sacrifice and commitment to the duty to our nation can never be fully repaid, and I hope that when they visit our nation's monuments in Washington D.C., the gratitude and respect we have for them will truly be reflected.

Colleagues, please join me in thanking these veterans and their families for their exemplary dedication and service to this great nation. I would also like to extend a special thank you to the local communities, all of the volunteers, and Mr. Jeremy West and Mr. John West for their extensive work in organizing this Honor Flight. This trip would not have been possible without all the financial and emotional support of the people who have put in so much hard work and personal time to make sure this trip could be possible.

TRIBUTE TO THE WEBB-HUDSON FAMILY

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, the Webb-Hudson family lineage has blessed us with descendants that have helped to shape our nation; and

Whereas, the Webb-Hudson Family has produced many well respected citizens, and the patriarchs and matriarchs of the Webb-Hudson family are pillars of strength that have touched the lives of many; and

Whereas, in our beloved Fourth Congressional District of Georgia, we are honored to have members of the Webb-Hudson family such as Former Lithonia Mayor Marcia Hunter, Former Lithonia Police Chief Jerome Woods, former Lithonia Councilperson Barbara Lester, Rockdale County Sheriff Deputy A.G. Giles, DeKalb County Court Clerk Drucilla Woods and Mrs. LaVerne Woods Baker for they are some of our most honorable citizens in our District; and

Whereas, family is one of the most honored and cherished institutions in the world and we take pride in knowing that families such as the Webb-Hudson family have set aside this time to fellowship with each other, honor one another and to pass along history to each other through their family reunion in DeKalb County, Georgia; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize the Webb-Hudson family; now therefore, I, HENRY C. "HANK" JOHNSON, Jr., do hereby proclaim July 11, 2015 as Webb-Hudson Family Reunion Day In the 4th Congressional District of Georgia.

Proclaimed, this 11th day of July, 2015.

TRIBUTE TO RICHARD CAMPBELL

HON. JOHN R. MOOLENAAR

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. MOOLENAAR. Mr. Speaker, I rise today to pay tribute to Owosso Argus-Press editor and chairman Richard Campbell in recognition of his lifetime of contributions to Owosso, Shiawassee County and our great state.

A 1946 Owosso High School Graduate, Richard attended the University of Michigan and was commissioned as an officer in the U.S. Marine Corps. Richard's 20 years in the Marines included serving as a platoon commander during the Korean War, leading a battalion of Marines to Vietnam in 1966, and touring as a senior press officer of the Military Assistance Command-Vietnam.

After retiring as a colonel in 1972, Campbell returned to the family business in Owosso and started work at the Argus-Press. At the paper, he worked in advertising and news, before being named editor in 1973. Richard was known for his great attention to detail, his enthusiasm for pursuing stories, and the way he cared about his staff. He dedicated over 40 years to the Argus-Press and, though he attempted several times to retire, he always

came back to the office and the work that he loved.

In addition to his work as editor of the Argus-Press, Richard served as president of the Michigan Press Association, the Michigan Associated Press Editorial Association, and the University Press Club of Michigan. He was also a dedicated member of the Society of Professional Journalists (Sigma Delta Chi) and the National Press Club in Washington, DC.

On behalf of the Fourth Congressional District of Michigan, I am honored today to recognize Richard Campbell for his lifetime of service to our country and community.

TRIBUTE TO THE SHEPHERD FAMILY

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, during the mid-1800's, the union of Mr. and Mrs. Marshall Shepherd in South Carolina began the Shepherd family lineage; since that time, the Shepherd family has blessed us with descendants across the country who have helped to shape and mold our nation; and

Whereas, today we honor all of the matriarchs and patriarchs of the Shepherd family, who are pillars of strength in our community. The Shepherd family helped to build and support Poplar Springs Baptist Church in Ellenwood, Georgia over one hundred forty-one years ago and continue to support this great institution today; and

Whereas, in our beloved Fourth Congressional District of Georgia, I am honored to have many members of the Shepherd family who are some of our most productive and community involved citizens; and

Whereas, family is one of the most honored and cherished institutions in the world, and I take pride in knowing that families such as the Shepherd family have set aside this time to fellowship with each other, honor one another and to pass along history to each other by meeting at this year's family reunion in Georgia's Fourth Congressional District; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize the Shepherd Family; now therefore, I, HENRY C. "HANK" JOHNSON, Jr., do hereby proclaim, September 13, 2015 as The Shepherd Family Reunion Day in the 4th Congressional District of Georgia.

Proclaimed, this 13th day of September, 2015.

IN RECOGNITION OF THE 375TH ANNIVERSARY OF THE TOWN OF MARSHFIELD

HON. WILLIAM R. KEATING

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. KEATING. Mr. Speaker, I rise today to recognize the 375th Anniversary of the town of Marshfield, Massachusetts, a beautiful coastal haven on the state's historic South Shore.

While the town was officially incorporated as a separate town from Plimoth Plantation in 1640, the area that is Marshfield today has been inhabited by Native American tribes, including the Wampanoag Tribe, for thousands of years. When early English settlers came to the area known as Missacautucket by the Wampanoag, they found roads already well-established by the tribe—some of which are still in use today.

Established as part of the 'New Colony of New Plimoth in New England' in 1620, this small colony grew from being predominantly cattle farmers to including commercial fishing, salt marsh haying and shipbuilding by the start of the 19th century.

Marshfield and its residents retain a storied place in our nation's history. Many of the town's colonists fought in several early American wars, including taking an early stance against the British on December 19, 1773—years before the official start of the Revolutionary War. At midnight, the Marshfield Patriots confiscated tea from the old Ordinary in the town as a protest against the Crown and a display of solidarity with those who took part in the Boston Tea Party, which took place only three days prior.

Perhaps Marshfield's most famous son is Daniel Webster, the former Senator and Secretary of State in the years leading up to the American Civil War. Though a national figure, this gifted orator and celebrated statesman was known in his time as ''the Farmer of Marshfield''.

Since its historic beginnings, Marshfield has grown into a vibrant and active community of over 25,000 residents. Today, the town attracts visitors from all over the country as a popular summer destination. This scenic town is also known for hosting an annual agricultural fair, attracting crowds from all over the region.

Mr. Speaker, the 375th Anniversary of Marshfield is an opportunity both to reflect on the significance of this prominent town and look ahead to its future as a pillar of the South Shore. Marshfield's past embodies the richness of American history and the indomitable spirit of the American people. May this historic Massachusetts town flourish for many years to come.

HONORING THE LIFE OF THE HONORABLE RAYMOND L. BRAMUCCI

HON. ROSA L. DeLAURO

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Ms. DELAURO. Mr. Speaker, it is with the deepest respect and the heaviest of hearts that I rise today to pay tribute to my good friend and outstanding political leader, Raymond L. Bramucci. His passing marks the end of an era and leaves a legacy of public service to which we should all strive.

Born in Ludlow, Massachusetts, Ray's story is one so many children of immigrants share. His success was built on hard work and community service. One of four children of an Italian butcher who lost everything during the Great Depression, Ray worked a variety of factory jobs as a boy to help his family survive. He dropped out of high school at age 17 and entered the United States Air Force where he served for four years with honor and distinction.

After finishing his service in the Air Force, Ray moved to New York City where he joined the International Ladies' Garment Workers' Union. Rising through the ranks, he became a senior director widely respected for championing fair play by both workers and employers. This commitment to balance earned Ray a distinguished reputation among all those he worked with.

Senator Bill Bradley chose Ray to lead his New Jersey office, a post he held for more than twenty years before he was tapped by then Governor Jim Florio to serve as Commissioner of New Jersey's Department of Labor. His political acumen and policy prowess once again earned him the respect and admiration of all those who worked with him. As Commissioner, Ray left an indelible mark on public policy with one of his signature achievements—the passage of the Workforce Development Partnership Act, which trained unemployed workers in high-tech, emerging trades.

Ray later served as the Executive Director of the Scion Hall University Institute on Work, a not-for-profit organization advocating workplace equity. He was also an arbitrator on the New Jersey Board of Mediation, a Special Advisor to the President of Montclair State University, and an adjunct professor of political science at Rutgers University. Ray ascended to the national stage in 1998 when then President Bill Clinton asked him to serve as Assistant Secretary of Labor at the United States Department of Labor. He oversaw the administration of national Youth Opportunity grants and became a driving force in employment and training nationwide. He also supervised job training across the country, including more than 100 Job Corps Centers.

Even after his service at the United States Department of Labor concluded, Ray remained active as a consultant on worker training, labor issues, conflict resolution and arbitration for public and private sector clients. Throughout his life, Ray demonstrated a unique commitment to public service. He fought hard for policies that strengthened the American workforce in immeasurable and innumerable ways.

On a more personal note, I will always be grateful to Ray for his friendship, support, and guidance. He was not only a good friend but, like for so many others, a mentor. I am honored to stand today to pay tribute to Raymond L. Bramucci for his many contributions to our nation and to extend my deepest sympathies to his wife, Sue; his sons, Michael and Dante; as well as his many family, friends, and colleagues. I consider myself fortunate to have called him my friend and he will be deeply missed by all of those fortunate enough to have known him.

COMMEMORATING THE KATYN FOREST MASSACRE

HON. ALBIO SIRES

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. SIRES. Mr. Speaker, as we commemorate the tragic events that took place on September 11th, 2001, we pause to remember all those that innocently lost their lives on that day.

We also come together to remember two other tragic events that devastated the Polish-American community. I stand with the Polish people today at the Katyn 1940 Monument as they commemorate the 75th anniversary of the Katyn Forest Massacre, and the 5th anniversary of the tragic airplane crash that killed 96 people, including the Polish President and other top Polish officials. The Monument, located in Jersey City, is a symbol of the important history of the Polish-American community in New Jersey and the sacrifices of their ancestors.

The Katyn Forest Massacre occurred during World War II in April and May of 1940 while Poland was fighting a war on two fronts. The Soviet secret police brutally killed over 20,000 Poles whose bodies were later recovered in a mass grave at Katyn. Tragically, five years ago as a delegation of Polish officials were traveling to Katyn to commemorate the massacre, their plane unexpectedly crashed in western Russia, killing all aboard.

The Polish people throughout the course of history have been unwavering in their resilience and patriotism in the face of adversity. Their courage is admirable and inspiring, and on this day we stand in solidarity as they commemorate these occasions of great loss.

TRIBUTE TO MRS. KARLA A. HUTCHINSON-SKEETE

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, in the Fourth Congressional District of Georgia, there are many individuals who are called to contribute to the needs of our community through leadership and service; and

Whereas, Mrs. Karla A. Hutchinson-Skeete has answered that call by giving of herself as an educator at Edward L. Bouie, Sr., Elementary Traditional Theme School, and as a beloved wife, daughter and friend; and

Whereas, Mrs. Skeete has been chosen as the 2015 Teacher of the Year, representing Edward L. Bouie, Sr., Elementary Traditional Theme School; and

Whereas, this phenomenal woman has shared her time and talents for the betterment of our community and our nation through her tireless works, motivational speeches, performance through dance and words of wisdom; and

Whereas, Mrs. Skeete is a virtuous woman, a courageous woman and a fearless leader who has shared her vision and passion to help ensure that our children receive an education that is relevant not only for today, but well into the future, as she truly understands that our children are the future; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize Mrs. Karla A. Hutchinson-Skeete for her leadership and service to our District and in recognition of this singular honor as 2015 Teacher of the Year at Edward L. Bouie, Sr., Traditional Theme Elementary School; now therefore, I, HENRY C. ''HANK'' JOHNSON, Jr., do hereby proclaim August 21, 2015 as Mrs. Karla A. Hutchinson-Skeete Day in the 4th Congressional District. Proclaimed, this 21st day of August, 2015.

IN RECOGNITION OF CANDIDO DE GUERRA CAMERO

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. CONYERS. Mr. Speaker, I rise to recognize the extraordinary achievements of the legendary percussionist and innovator of Afro-Cuban Jazz, Candido Camero. Popularly known as Candido, Mr. Camero has literally changed music on a world-wide scale. A jazz artist that has performed and recorded with a long list of distinguished figures across a dizzying array of genres, he holds the distinction of being the most recorded percussionist in the history of Jazz. ''Candido'' is truly the percussion colossus of Modern Jazz and popular music.

On September 17, 2015, National Endowment for the Arts Jazz Master Candido will be honored this year by the Congressional Black Caucus Foundation (CBCF) at the 30th Annual Jazz Forum and Concert, during the 45th Annual Legislative Conference (ALC). Dubbed ''The Man with A Thousand Fingers,'' Candido was the first musician to play two or more congas simultaneously, while tuning the drums to add melodic interest to rhythmic complexity. His innovations paved the way for future percussionists in Latin jazz, pop, rock, mambo, salsa and world music. For his many contributions to the development of music, Candido is truly deserving of the 2015 CBCF Jazz Legacy Award.

Candido de Guerra Camero was born on April 22nd, 1921 in Havana, Cuba. He started playing congas and bongos as a young child, and competed in neighborhood parades known as comparsas. His earliest gigs were with the CMQ Radio Orchestra for six years, and later with the famed Tropicana nightclub for eight years. In 1946 he appeared in a musical revue called Tidbits at the Plymouth Theater on Broadway, playing backup for the Cuban dance team, Carmen and Rolando. He made his first U.S. recording with the famed Afro-Cuban bandleader Machito in 1948 on the tune, El Rey Del Mambo, and worked with trumpeter Dizzy Gillespie to record three albums, Afro (1954), Gillespiana (1960) and The Melody Lingers On (1966). Candido also appeared on the Ed Sullivan and Jackie Gleason shows.

Gillespie introduced Candido to legendary pianist, bandleader, composer and educator, Dr. Billy Taylor. He played with Taylor from 1953 to 1954. They recorded The Billy Trio with Candido: A seminal, Latin jazz LP which spotlighted Camero's amazing and revolutionary conga and bongo playing. Dr. Taylor wrote that, ''he had not heard anyone who even approaches the wonderful balance between jazz and Cuban elements that Candido demonstrates.'' Candido also worked and recorded with Stan Kenton, Tito Puente, Grant Green, Elvin Jones, Wes Montgomery, Tony Bennett, Art Blakey and Randy Weston. In 1979, Candido wrote ''Jingo'' for the West African percussionist Olatunji and his Dancin' and Prancin' LP for the Salsoul Latin-disco label.

Candido recorded over fifteen recordings as a leader, including ''The Volcanic'' (1956), ''Conga Soul'' (1962), ''Thousand Finger Man'' (1969), ''Brujerias de Candido: Candido's Latin McGuffa's Dust'' (1971), ''The Conga Kings,'' with percussionists Giovanni Hidalgo and Patato Valdes (2000), and ''The Master'' (2014). He was named an NEA Jazz Master in 2008, and was featured in the 2009 PBS documentary, Latin Music USA.

Candido Camero is a living national jazz treasure, and I encourage my colleagues to honor his tremendous contributions to Jazz.

HONORING CAPTAIN KRISTEN GRIEST OF ORANGE, CONNECTICUT

HON. ROSA L. DeLAURO

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Ms. DELAURO. Mr. Speaker, it gives me great pleasure to rise today to pay tribute to an outstanding member of our military and recent U.S. Army Ranger School graduate, Captain Kristen Marie Griest. A native of Orange, Connecticut, Captain Griest recently became one of the first women to complete the 62-day combat leadership course—shattering a gender ceiling as she joins the ranks of our country's most elite Army members. Though she will not yet be able to serve in the 75th Ranger Regiment, her hometown community and her state could not be more proud of her accomplishment.

A graduate of Amity Regional High School in Woodbridge, Connecticut, Kristen Griest was known as a quiet leader and a tough competitor, always pushing herself to succeed. A track and softball star in high school, she entered the United States Military Academy at West Point in the fall of 2007. Following her graduation, Kristen went on to serve in the military police because, as her brother, Chief Warrant Officer 2 Michael Griest, an Army aviator himself, said ''it was the closest she could come at the time to serving in combat.'' She was deployed to Afghanistan in 2013 as a military police officer and upon her return took up the challenge of Ranger School.

With courses including phases at Fort Benning in Georgia, on the mountains of northern Georgia, and in the Florida Panhandle swamps in and around Eglin Air Force Base, The U.S. Army's Ranger School is considered one of the military's most difficult courses physically and mentally. Critics of allowing women into the military's most elite units had used the argument that no woman has demonstrated she can keep up with men by passing Ranger School. Along with fellow graduate, 1st Lieutenant Shaye Haver of Copperas Cove, Texas, Kristen has successfully challenged such notions, demonstrating that women should be allowed the same opportunities as their male counterparts to join our military's elite forces.

Kristen recently received her black and gold Ranger tab along with her fellow Rangers, but will return to her previous unit instead of joining her male colleagues in the 75th Ranger Regiment. Perhaps soon we will see that ceiling shattered as well. Today, I am proud to stand today to join her parents, Thomas and Laura; her brother, Michael; her many family and friends, as well as the community of Orange and the State of Connecticut in extending my sincere congratulations to Captain

Kristen Marie Griest on the outstanding accomplishment of successfully completing the rigorous training at the U.S. Army Ranger School. She exemplifies the very best of our military and our nation.

TRIBUTE TO MS. FELECIA B. PRINCE

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, twenty-seven years ago a virtuous woman of God accepted her calling to serve in the Internal Revenue Service in Atlanta, Georgia; and

Whereas, Ms. Felecia B. Prince began her career with the I.R.S. as a Taxpayer Telephone Operator in 1988 and today retires as a Revenue Officer; and

Whereas, this phenomenal woman has shared her time and talents, giving the citizens of our District a friend to help those in need, a fearless leader and a servant to all who wants to insure that the system works for everyone; and

Whereas, Ms. Felecia B. Prince is a cornerstone in our community that has enhanced the lives of thousands for the betterment of our District and Nation; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize Ms. Felecia B. Prince on her retirement from the Internal Revenue Service and to wish her well in her new endeavors; now therefore, I, HENRY C. "HANK" JOHNSON, Jr., do hereby proclaim July 31, 2015 as Ms. Felecia B. Prince Day in the 4th Congressional District. Proclaimed, this 31st day of July, 2015.

RECOGNIZING RITA SCARDACI

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. THOMPSON of California. Mr. Speaker, I rise today to recognize Rita Scardaci, who has had a distinguished career working in the public health profession in Northern California. She will be retiring from her position as the Director of Health Services in Sonoma County after a decade of service.

Ms. Scardaci is a lifelong resident of Northern California, where she has given back to the community as a leader and pioneer in health services. She is a Registered Nurse, and has a degree in Public Health and Nursing, certification as a Health Education Specialist, and a Masters of Public Health. She has used her degrees to better the health of the residents of Santa Cruz County, and most recently Sonoma County through her work with the Health Services Department. Ms. Scardaci is an instructor at both University of California Santa Cruz and San Jose State University. She is a founding member of the California State Rural Health Association and sits on the board of the California Endowment and Sonoma-Mendocino-Lake County United Way, as well as three different health boards in Sonoma County.

Ms. Scardaci's additional community involvement includes: member and past President of the County Health Executives Association of California; Commissioner Sonoma First Five, an organization charged with promoting, supporting and improving the early development of children from the prenatal stage through five years of age; member Santa Rosa Family Medicine Residency Consortium Board of Directors; Past President and Board Member at the California Telehealth Telemedicine Center, which works to achieve the fully optimized use of telehealth and other technology enabled health care services.

Mr. Speaker, Rita Scardaci is a beloved and vitally important member of the community and it is appropriate that we acknowledge her today.

TRIBUTE TO WILBERT V. PAYNES

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, Mr. Wilbert V. Paynes is celebrating forty-two (42) years of serving others in the United States Army Corps of Engineers. He currently serves as Director of the United States Army Corps of Engineers Deep Draft Navigation Planning Center of Expertise and as Chief for the Planning and Policy Division for the South Atlantic Division of the United States Army Corps of Engineers located in Atlanta, Georgia; and

Whereas, Mr. Paynes retires this year as a Director for the United States Corps of Engineers; wherein under his guidance as a Director, he has provided stellar leadership on an international level and has enhanced the lives of many in the Southeastern United States, Puerto Rico and the U.S. Virgin Islands; and

Whereas, this remarkable and tenacious man is an ambassador of goodwill; he has managed projects, educated colleagues, and directed several major water resource feasibility studies; and

Whereas, Mr. Paynes is a man of compassion, a fearless leader, a servant to all and a visionary who has shared his time and talent to promote the best in Civil Engineering on behalf of the United States Corps of Engineers; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize Mr. Wilbert V. Paynes as he celebrates forty-two years in service and to salute him as he retires from the United States Corps of Engineers; A true Man of Excellence; now therefore, I, HENRY C. "HANK" JOHNSON, Jr., do hereby proclaim October 2, 2015 as Mr. Wilbert V. Paynes Day in the 4th Congressional District.

Proclaimed, this 2nd day of October, 2015.

HONORING BERNARD SWEENEY, SBA DISTRICT DIRECTOR, ON THE OCCASION OF HIS RETIREMENT

HON. ROSA L. DeLAURO

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Ms. DELAURO. Mr. Speaker, it gives me great pleasure to rise today to extend my deepest thanks and appreciation to Bernard Sweeney who recently retired as the United States Small Business Administration's Connecticut District Director. In a career of federal service that spanned more than three decades, Bernie demonstrated a remarkable commitment to public service. Bernie's federal service included serving as Chief of Staff to the Under Secretary at the U.S. Department of Housing and Urban Development (HUD), Special Assistant to the Secretary at HUD, and Staff Assistant to the President of the United States at the White House. However, it was his work at the SBA that left an indelible mark on our state and region.

Bernie began his career with the SBA in the Connecticut District Office in 1987 as Acting Assistant District Director for Business Development. During his tenure with the SBA, he served as a Team Leader for Marketing and Outreach, a Loan Officer, and Business Development Specialist. Prior to being named the Connecticut District Director in 2005, Bernie was the Branch Manager in the Springfield, Massachusetts SBA Branch Office.

As District Director of the SBA's Connecticut District Office, Bernie oversaw the delivery of agency programs for the state of Connecticut, including financial assistance, management counseling, and business development. He was responsible for directing the activities of 10 permanent SBA employees, the administration of a business loan portfolio, oversight of the Connecticut Small Business Development Center (SBDC) network, including its 15 locations around the state, the coordination of 7 chapters of the Service Corps of Retired Executives (SCORE) and 3 Women's Business Centers (WBC) serving all of Connecticut. Bernie worked tirelessly to ensure that the district staff reached out to the underserved communities in Connecticut and that the SBA training programs reached these communities. He also helped to establish the three Hispanic Chambers of Commerce by offering both technical and financial assistance.

I would be remiss if I did not extend a special note of thanks to Bernie for all of the help and guidance he provided to myself and my staff over the last decade. From coordinating informational briefings to immediately responding to storm and fire damage in various communities, Bernie was always just a phone call away. He was always ready to assist in whatever ways the agency could provide. He was a remarkable resource for all of us.

For his many invaluable contributions to our small businesses, to our communities, and our state, I am honored to stand today to pay tribute to Bernard Sweeney. His is a legacy of public service to which we should all strive. I extend my very best wishes to Bernie, his wife, Sandy, and their son, Zack, for many more years of health and happiness as he enjoys his retirement.

TRIBUTE TO MRS. NETTIE J. ROBBINS

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, one hundred years ago a virtuous woman of God, Nettie J. Ford was born in Midway, Alabama on August 4, 1915 to Mr. Hanson and Mrs. Lottie Ford; and

Whereas, she was raised up in Midway, Alabama and married Rev. Aaron Robbins in 1932 and their union has blessed our district and nation with fourteen children and a host of grand, great and great-great grandchildren; and

Whereas, this phenomenal Proverbs 31 woman has shared her time and talents as a wife, mother and friend, becoming a Georgia citizen of great worth, a fearless leader and a servant to all by always advancing the lives of others; and

Whereas, Mrs. Robbins has been blessed with a long, happy life, devoted to God and credits it all to the Will of God; and

Whereas, Mrs. Robbins is celebrating a remarkable milestone, her 100th Birthday; her family and friends are pausing to acknowledge a woman who has been revered by many and a pillar of her community; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and extend well wishes to Mrs. Robbins on her birthday and recognize her for an exemplary life that has been an inspiration to all; now therefore, I, HENRY C. "HANK" JOHNSON, Jr., do hereby proclaim August 4, 2015 as Mrs. Nettie J. Robbins Day in the 4th Congressional District of Georgia.

Proclaimed, this 4th day of August, 2015.

IN RECOGNITION OF GARY BARTZ

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. CONYERS. Mr. Speaker, I rise to recognize the extraordinary achievements of legendary saxophonist and educator Gary Bartz. A highly-talented instrumentalist, vocalist, composer, and leader—Mr. Bartz's long career deserves our applause.

Mr. Bartz started playing at an early age with Art Blakey at his father's jazz club in his hometown of Baltimore, MD. Fifty-seven years later, he is an international sensation, earning a Grammy Award in 2005 for his and McCoy Tyner's "Illuminations." Over the course of his career, he has recorded over 40 solo albums and made guest appearances on over 200 more.

Gary Bartz first came to New York in 1958, at just 17 years old, to attend the Julliard Conservatory of Music. He remembers those days fondly, saying, "It was a very good time for the music in New York, at the end of what had been the be-bop era. Charlie Parker had passed away three years previously but Miles' group was in its heyday, Monk was down at the Five Spot, and Ornette Coleman was just coming to town. Things were fresh." He spent much of his time drinking Coca-Cola in the all-ages "peanut gallery" at Birdland, where he enjoyed a marathon bill of performers. Reflecting on his musical youth, he has said, "If I didn't have money to get in, I'd help somebody carry a drum to work my way in."

From 1962–64, Mr. Bartz participated in Charles Mingus' Workshop and began practicing regularly with fellow members of the horn section, including Eric Dolphy. By the mid '60s, the alto saxophonist, still in his early 20s, began performing throughout the city with the Max Roach/Abbey Lincoln Group, and quickly established himself as the most promising alto voice since Cannonball Adderley.

With the splash of his New York debut solidly behind him, Mr. Bartz joined Art Blakey's Jazz Messengers. The young saxophonist's parents owned a club in Baltimore called the North End Lounge. When his father hired Blakey for a gig, Mr. Bartz grabbed the opportunity to fill a sax player vacancy in the band. After his performance that night, he was officially hired to join the Jazz Messengers. In 1965, he would make his recording debut on Blakey's "Soulfinger" album.

In 1968, Mr. Bartz began an association with McCoy Tyner, which included participating in Tyner's classic "Expansions" and "Extentions" albums. Work with McCoy proved especially significant for Mr. Bartz because of the bandleader's strong connection to John Coltrane. During his first two years with Tyner, Mr. Bartz was also touring with Max Roach and taking some time out to record on Max's Atlantic Records release, "Members Don't Get Weary." "With Max, there was that bond with Charlie Parker," declares Bartz. "Charlie Parker is why I play the alto saxophone."

Mr. Bartz began working with Miles Davis in 1970, his first experience playing electric music. It also reaffirmed his yen for an even stronger connection to Coltrane. In addition to working with Miles in the early '70s—including playing the historic Isle of Wight Festival in August, 1970—Mr. Bartz was busy fronting his own NTU Troop ensemble. The group got its name from the Bantu language: NTU means unity in all things, time and space, living and dead, seen and unseen.

Outside the Troop, Mr. Bartz had been recording as a group leader since 1968, and continued to do so throughout the '70s, during which time he released such acclaimed albums as, "Another Earth," "Home," "Music Is My Sanctuary" and "Love Affair." By the late '70s, he was doing studio work in Los Angeles with Norman Connors and Phyllis Hyman. In 1988, after a nine-year break between solo releases, Mr. Bartz began recording what music columnist Gene Kalbacher described as "Vital ear-opening sides," on such albums as "Monsoon," "West 42nd Street," "There Goes The Neighborhood," and "Shadows."

Mr. Bartz followed those impressive works in 1995 with the release of his debut Atlantic album "The Red and Orange Poems," a self-described musical mystery novel and just one of his brilliantly conceived concept albums. Back when he masterminded the much-touted "I've Known Rivers" album, based on the poetry of Langston Hughes, his concepts would be twenty years ahead of those held by some of today's jazz/hip hop and acid jazz combos. So it continues with "The Blues Chronicles: Tales of Life," a testimonial to a steadfast belief in the power of music to soothe, challenge, spark a crowd to complete ecstasy, or move one person to think. It adds up to a shoe box full of musical snapshots from a life lived and played with passion and stirred—with both joy and sadness—by the blues.

Mr. Bartz's release "Live at the Jazz Standard Volume 1—Soulstice" is the first of a series of recordings documenting his legendary, non-stop style, live performances. This initial release on his own OYO label bares testimony to Bartz's continuing growth as a composer, group leader, and a master of both the alto and soprano saxophones. A quartet session recorded in 1998, was followed by "Live at the Jazz Standard, Volume 2" released in 2000, which features Mr. Bartz's exciting Sextet. His follow-up release "Soprano Stories" features Mr. Bartz exclusively performing on the soprano saxophone in a studio quartet setting.

His follow-up album to the highly acclaimed "Volume 1 of the Coltrane Files, Toa of a Music Warrior," will be released in 2015, along with his album honoring Woody Shaw entitled "Two MF's'."

When he is not on the road or preparing new music, Mr. Bartz serves as a professor in the Jazz Studies Department of the Oberlin Conservatory of Music.

Mr. Bartz performs at the Congressional Black Caucus Foundation's Annual Legislative Conference Jazz Concert on September 17, 2015. On that occasion, I will be presenting him with the Foundation's Jazz Legacy Award. Next month, he will be honored with the BNY Mellon Jazz 2015 Living Legacy Award in a special ceremony at the John F. Kennedy Center for the Performing Arts on Friday, October 16, 2015.

Gary Bartz is an extraordinary musician that has made a remarkable contribution to Jazz music and world culture. For these reasons, I urge you to join me in congratulating him for these awards and his lifetime of outstanding accomplishments.

TRIBUTE TO MRS. IVORY C. SHEPHERD

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, reaching the age of 88 years is a remarkable milestone; and

Whereas, Mrs. Ivory C. Shepherd was born on November 26, 1927 and today she is celebrating that milestone; and

Whereas, Mrs. Shepherd has been blessed with a long, happy life, devoted to God and credits it all to the Will of God; she is the First Lady Emeritus of Greater Travelers Rest Baptist Church and is a Spiritual and Prayer Matriarch that has spread the gospel since the days of her youth; and

Whereas, Mrs. Shepherd is celebrating her 88th Birthday with her family members, church members and friends here in Georgia, she celebrates a life of blessings; as a Mother, Wife, Grandmother, Great Grandmother, friend, community servant and leader; and

Whereas, the Lord has been her Shepherd throughout her life and she prays daily as she leads a blessed life by example: an advocate, faithful matriarch and a community leader; and

Whereas, we are honored that she is celebrating the milestone of her 88th birthday in Georgia; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize Mrs. Ivory C. Shepherd for an exemplary life that has been and continues to be an inspiration to all; now therefore, I, HENRY C. ''HANK'' Johnson, Jr., do hereby proclaim November 26, 2015 as Mrs. Ivory C. Shepherd Day in the 4th Congressional District of Georgia.

Proclaimed, this 26th day of November, 2015.

LOOKING BACK: YOUNG WOMAN'S LETTER TO HER MOTHER LOST ON SEPTEMBER 11, 2001

HON. JOHN B. LARSON

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. LARSON of Connecticut. Mr. Speaker, as we remember those we lost 14 years ago, I submit one of the most poignant expressions I've seen since that grave day. Written by Anjunelly Jean-Pierre as a letter to her mother, whose life was lost on 9/11, this moving tribute both shows how inspiring her mom was to her and how her memory will be everlasting.

LETTERS TO THE LOST

(Collected by Sheila Weller)

On a clear day 10 years ago, nearly 3,000 people died. They were the sisters, brothers, boyfriends and mothers of young women who mourn them still—and who write intimate messages to them here.

Dear Mommy, last night I made a whole chicken with vegetables for dinner. You would have been proud.

My children, Brianna, seven, and Elijah, eight—the children you never met—loved it.

When I cook, I remember the meals you made. I was the only kid who had manicotti for lunch on the first-grade school trip. Everyone else had a turkey or peanut-butter-and-jelly sandwich, but you were then the housekeeper for an Italian family, so you learned to make things they liked. Eventually your cooking talent landed you—an immigrant from the Dominican Republic with an elementary school education who had to learn English from scratch—a chef's job at Cantor Fitzgerald, on the 105th floor of the World Trade Center.

In the summer of 2001, I was planning to join the military. And then September 11 happened. It took me years to come to terms with the fact that you were gone. I actually kept your phone number in my cell phone until 2009! I had to keep you ''alive'' so that I myself could survive.

But after you died, I tapped into the passion for cooking you'd instilled in me. I went to culinary school, then was a sous-chef on Emeril Lagasse's show Emeril Green. Now I have my own catering business. The meal my clients like best is the Dominican rice-and-peas dish you made me as comfort food. I guess the love and heritage comes through.

I wish you could see your grandchildren. Brianna looks so much like I did at her age. As for Elijah, he has your perfectionism. I remember you said, ''Children should have names that are strong and great in meaning.'' I gave Brianna her middle name, Maxima, in honor of you. And to keep your spirit alive, every Friday night we have tea and a relaxing talk about life, just like you and I did, to mark the end of a long week of work and school.

Being a single mom running a one-person business hasn't always been easy. I sometimes find myself driving boxes of cheesecakes and pound cakes to a customer and then dashing off to pick up the kids at school. But you, too, were a single mom, one who'd conquered so many challenges. You've remained my guiding force. And you always will be.

Anjunelly Jean-Pierre, 29, of Dumfries, Virginia, lost her mother, Maxima. Today she is a mom and owner of Max & Jax Café.

TRIBUTE TO THE STEWART-RONEY FAMILY

HON. HENRY C. "HANK" JOHNSON, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 15, 2015

Mr. JOHNSON of Georgia. Mr. Speaker, I submit the following Proclamation.

Whereas, the Stewart-Roney family lineage has blessed us with descendants that have helped to shape our nation; and

Whereas, the Stewart-Roney Family has produced many well respected citizens, and the patriarchs and matriarchs of the Stewart-Roney family are pillars of strength that have touched the lives of many; and

Whereas, in our beloved Fourth Congressional District of Georgia, we are honored to have members of the Stewart-Roney family for they are some of our most honorable citizens in our District; and

Whereas, family is one of the most honored and cherished institutions in the world and we take pride in knowing that families such as the Stewart-Roney family have set aside this time to fellowship with each other, honor one another and to pass along history to each other through their family reunion in DeKalb County, Georgia; and

Whereas, the U.S. Representative of the Fourth District of Georgia has set aside this day to honor and recognize the Stewart-Roney family; now therefore, I, HENRY C. ''HANK'' JOHNSON, Jr., do hereby proclaim July 17, 2015 as Stewart-Roney Family Reunion Day in the 4th Congressional District of Georgia.

Proclaimed, this 17th day of July, 2015.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S6615–S6660

Measures Introduced: Eight bills and five resolutions were introduced, as follows: S. 2029–2036, and S. Res. 252–256. **Page S6651**

Measures Reported:

S. 1090, to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to provide eligibility for broadcasting facilities to receive certain disaster assistance. (S. Rept. No. 114–142)

S. 1580, to allow additional appointing authorities to select individuals from competitive service certificates. (S. Rept. No. 114–143)

S. Res. 252, expressing the sense of the Committee on Small Business and Entrepreneurship of the Senate relating to easing the burden of Federal tax compliance on small businesses, with a preamble.

S. 1400, to amend the Small Business Act to direct the task force of the Office of Veterans Business Development to provide access to and manage the distribution of excess or surplus property to veteran-owned small businesses, with an amendment in the nature of a substitute.

S. 1756, to help small businesses take advantage of energy efficiency.

S. 1857, to amend the Small Business Act to provide for expanded participation in the microloan program.

S. 1866, to establish the veterans' business outreach center program, to improve the programs for veterans of the Small Business Administration, with an amendment in the nature of a substitute.

Page S6651

Measures Passed:

Equity in Government Compensation Act: Senate passed S. 2036, to suspend the current compensation packages for the chief executive officers of Fannie Mae and Freddie Mac. **Page S6659**

National Direct Support Professionals Recognition Week: Committee on the Judiciary was discharged from further consideration of S. Res. 245, designating the week beginning September 13, 2015, as "National Direct Support Professionals Recognition Week", and the resolution was then agreed to. **Page S6659**

Hispanic Heritage Month: Senate agreed to S. Res. 254, recognizing Hispanic Heritage Month and celebrating the heritage and culture of Latinos in the United States and the immense contributions of Latinos to the United States. **Page S6657**

National Hispanic-Serving Institutions Week: Senate agreed to S. Res. 255, designating the week beginning September 14, 2015, as National Hispanic-Serving Institutions Week. **Pages S6657–58**

School Bus Safety Month: Senate agreed to S. Res. 256, designating September 2015 as "School Bus Safety Month". **Page S6658**

Measures Considered:

Hire More Heroes Act—Agreement: Senate resumed consideration of H.J. Res. 61, amending the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act, taking action on the following amendments and motions proposed thereto: **Pages S6617–44**

Rejected:

McConnell motion to commit the joint resolution to the Committee on Foreign Relations, with instructions, McConnell Amendment No. 2645, to change the enactment date. (Senate tabled the motion.) **Page S6617**

McConnell Amendment No. 2643 (to the language proposed to be stricken by Amendment No. 2640), to change the enactment date. (Senate tabled the amendment.) **Pages S6617, S6643**

McConnell Amendment No. 2641 (to Amendment No. 2640), to change the enactment date. (Senate tabled the amendment.) **Pages S6617, S6643**

Pending:

McConnell Amendment No. 2640, of a perfecting nature. **Page S6617**

McConnell Amendment No. 2656 (to Amendment No. 2640), to prohibit the President from waiving, suspending, reducing, providing relief from,

or otherwise limiting the application of sanctions pursuant to an agreement related to the nuclear program of Iran. **Page S6643**

McConnell Amendment No. 2657 (to Amendment No. 2656), to change the enactment date. **Page S6643**

McConnell Amendment No. 2658 (to the language proposed to be stricken by Amendment No. 2640), to change the enactment date. **Page S6643**

McConnell Amendment No. 2659 (to Amendment No. 2658), of a perfecting nature. **Pages S6643–44**

McConnell motion to commit the joint resolution to the Committee on Foreign Relations, with instructions, McConnell Amendment No. 2660, to prohibit the President from waiving, suspending, reducing, providing relief from, or otherwise limiting the application of sanctions pursuant to an agreement related to the nuclear program of Iran. **Page S6644**

McConnell Amendment No. 2661 (to (the instructions) Amendment No. 2660), of a perfecting nature. **Page S6644**

McConnell Amendment No. 2662 (to Amendment No. 2661), of a perfecting nature. **Page S6644**

A motion was entered to close further debate on McConnell Amendment No. 2656 (to Amendment No. 2640), and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur on Thursday, September 17, 2015. **Page S6644**

A motion was entered to close further debate on McConnell Amendment No. 2640, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of McConnell Amendment No. 2656 (to Amendment No. 2640). **Page S6644**

A motion was entered to close further debate on the joint resolution, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of McConnell Amendment No. 2640. **Page S6644**

During consideration of this measure today, Senate also took the following action:

By 56 yeas to 42 nays (Vote No. 265), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to close further debate on McConnell Amendment No. 2640. **Page S6643**

A unanimous-consent agreement was reached providing that the motion to invoke cloture on the joint resolution, be withdrawn. **Page S6644**

McConnell Amendment No. 2646 (to (the instructions) Amendment No. 2645), of a perfecting nature, fell when McConnell motion to commit the joint resolution to the Committee on Foreign Relations, with instructions, McConnell Amendment No. 2645 (listed above) was tabled. **Page S6617**

McConnell Amendment No. 2647 (to Amendment No. 2646), of a perfecting nature, fell when McConnell Amendment No. 2646 (to (the instructions) Amendment No. 2645) (listed above) fell. **Page S6617**

McConnell Amendment No. 2644 (to Amendment No. 2643), of a perfecting nature, fell when McConnell Amendment No. 2643 (to the language proposed to be stricken by Amendment No. 2640) (listed above) was tabled. **Page S6617**

McConnell Amendment No. 2642 (to Amendment No. 2641), of a perfecting nature, fell when McConnell Amendment No. 2641 (to Amendment No. 2640) (listed above) was tabled. **Page S6617**

A unanimous-consent agreement was reached providing for further consideration of the joint resolution at approximately 11 a.m., on Wednesday, September 16, 2015, with the time until 12:30 p.m. equally divided between the two Leaders, or their designees; and that the filing deadline for all first-degree amendments be at 2:30 p.m., on Wednesday, September 16, 2015. **Page S6660**

Nominations Received: Senate received the following nominations:

Rebecca Goodgame Ebinger, of Iowa, to be United States District Judge for the Southern District of Iowa.

2 Marine Corps nominations in the rank of general.

4 Navy nominations in the rank of admiral. **Page S6660**

Messages from the House: **Page S6649**

Measures Placed on the Calendar: **Page S6649**

Enrolled Bills Presented: **Page S6649**

Executive Communications: **Pages S6649–51**

Additional Cosponsors: **Pages S6652–53**

Statements on Introduced Bills/Resolutions: **Pages S6653–58**

Additional Statements: **Pages S6648–49**

Amendments Submitted: **Pages S6658–59**

Authorities for Committees to Meet: **Page S6659**

Record Votes: One record vote was taken today. (Total—265) **Page S6643**

Adjournment: Senate convened at 1 p.m. and adjourned at 7:43 p.m., until 10 a.m. on Wednesday, September 16, 2015. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S6660.)

Committee Meetings

(Committees not listed did not meet)

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 7 public bills, H.R. 3504–3510; and 1 resolution, H. Res. 419 were introduced. Page H5980

Additional Cosponsors: Pages H5980–81

Reports Filed: There were no reports filed today.

Speaker: Read a letter from the Speaker wherein he appointed Representative Rooney (FL) to act as Speaker pro tempore for today. Page H5977

Quorum Calls—Votes: There were no Yea and Nay votes, and there were no Recorded votes. There were no quorum calls.

Adjournment: The House met at 3 p.m. and adjourned at 3:02 p.m.

Committee Meetings

REVIEW OF USDA ORGANIZATION AND PROGRAM ADMINISTRATION, PART I

Committee on Agriculture: Full Committee held a hearing to review USDA organization and program administration, part I. Testimony was heard from the following Department of Agriculture officials: Alexis Taylor, Deputy Under Secretary, Farm and Foreign Agricultural Services; Robert Bonnie, Under Secretary, Natural Resources and Environment; and Catherine Woteki, Under Secretary, Research Education, and Economics.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, SEPTEMBER 16, 2015

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies, to hold hearings to examine the Food and Drug Administration's efforts to ensure the safety of the food supply and protect American consumers, 2 p.m., SD–192.

Committee on Armed Services: to hold hearings to examine United States military operations to counter the Islamic State in Iraq and the Levant; with the possibility of a closed session in SVC–217, following the open session, 10 a.m., SD–106.

Committee on Environment and Public Works: to hold an oversight hearing to examine the cause, response, and impacts of EPA's Gold King Mine spill, 10 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine the United States role and strategy in the Middle East, focusing on Syria, Iraq, and the fight against ISIS, 2:30 p.m., SD–419.

Committee on Health, Education, Labor, and Pensions: to hold hearings to examine achieving the promise of health information technology, focusing on improving care through patient access to their records, 10 a.m., SD–430.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine regulatory reform proposals, 10 a.m., SD–342.

Committee on Indian Affairs: to hold an oversight hearing to examine EPA's Gold King Mine disaster, focusing on the harmful impacts to Indian country, 2:15 p.m., SD–628.

Committee on the Judiciary: to hold hearings to examine reforming the Electronic Communications Privacy Act, 10:15 a.m., SD–226.

Committee on Veterans' Affairs: to hold hearings to examine S. 290, to amend title 38, United States Code, to improve the accountability of employees of the Department of Veterans Affairs, S. 563, to amend title 38, United States Code, to establish the Physician Ambassadors Helping Veterans program to seek to employ physicians

at the Department of Veterans Affairs on a without compensation basis in practice areas and specialties with staffing shortages and long appointment waiting times, S. 564, to amend title 38, United States Code, to include licensed hearing aid specialists as eligible for appointment in the Veterans Health Administration of the Department of Veterans Affairs, S. 1450, to amend title 38, United States Code, to allow the Secretary of Veterans Affairs to modify the hours of employment of physicians and physician assistants employed on a full-time basis by the Department of Veterans Affairs, S. 1451, to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to adjudicate and pay survivor's benefits without requiring the filing of a formal claim, S. 1460, to amend title 38, United States Code, to extend the Yellow Ribbon G.I. Education Enhancement Program to cover recipients of the Marine Gunnery Sergeant John David Fry scholarship, S. 1693, to amend title 38, United States Code, to expand eligibility for reimbursement for emergency medical treatment to certain veterans that were unable to receive care from the Department of Veterans Affairs in the 24-month period preceding the furnishing of such emergency treatment, S. 1856, to amend title 38, United States Code, to provide for suspension and removal of employees of the Department of Veterans Affairs for performance or misconduct that is a threat to public health or safety and to improve accountability of employees of the Department, S. 1938, to amend title 38, United States Code, to improve the approval of certain programs of education for purposes of educational assistance provided by the Department of Veterans Affairs, and other pending calendar business, 2:30 p.m., SR–418.

House

Committee on Agriculture, Full Committee, hearing to review USDA organization and program administration, Part II, 10 a.m., 1300 Longworth.

Committee on Energy and Commerce, Subcommittee on Environment and the Economy, hearing entitled ''Oversight of Federal Facility Cleanup under CERCLA'' (continued), 4 p.m., 2322 Rayburn.

Full Committee, markup on the ''North American Energy Security and Infrastructure Act of 2015''; and H.R. 702, to adapt to changing crude oil market conditions, 5 p.m., 2123 Rayburn.

Committee on Rules, Full Committee, hearing on H.R. 348, the ''RAPID Act''; H.R. 758, the ''Lawsuit Abuse Reduction Act of 2015''; H.R. 3134, the ''Defund Planned Parenthood Act of 2015''; and H.R. 3504, the ''Born-Alive Abortion Survivors Protection Act'', 7 p.m., H–313 Capitol.

CONGRESSIONAL PROGRAM AHEAD

Week of September 16 through September 18, 2015

Senate Chamber

On *Wednesday*, at approximately 11 a.m., Senate will continue consideration of H.J. Res. 61, Hire More Heroes Act.

During the balance of the week, Senate may consider any cleared legislative and executive business.

Senate Committees

(Committee meetings are open unless otherwise indicated)

Committee on Agriculture, Nutrition, and Forestry: September 17, business meeting to consider H.R. 2051, to amend the Agricultural Marketing Act of 1946 to extend the livestock mandatory price reporting requirements, 10 a.m., SR–328A.

Committee on Appropriations: September 16, Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies, to hold hearings to examine the Food and Drug Administration's efforts to ensure the safety of the food supply and protect American consumers, 2 p.m., SD–192.

Committee on Armed Services: September 16, to hold hearings to examine United States military operations to counter the Islamic State in Iraq and the Levant; with the possibility of a closed session in SVC–217, following the open session, 10 a.m., SD–106.

September 17, Full Committee, to hold hearings to examine maritime security strategy in the Asia-Pacific region, 10 a.m., SH–216.

Committee on Banking, Housing, and Urban Affairs: September 17, to hold hearings to examine the nomination of Adam J. Szubin, of the District of Columbia, to be Under Secretary for Terrorism and Financial Crimes, Department of the Treasury, 10 a.m., SD–538.

Committee on Commerce, Science, and Transportation: September 17, to hold hearings to examine the nomination of Sarah Elizabeth Feinberg, of West Virginia, to be Administrator of the Federal Railroad Administration, Department of Transportation, 9:45 a.m., SR–253.

Committee on Energy and Natural Resources: September 17, to hold hearings to examine reauthorization of and potential reforms to the Federal Land Recreation Enhancement Act, 10 a.m., SD–366.

Committee on Environment and Public Works: September 16, to hold an oversight hearing to examine the cause, response, and impacts of EPA's Gold King Mine spill, 10 a.m., SD–406.

Committee on Foreign Relations: September 16, to hold hearings to examine the United States role and strategy in the Middle East, focusing on Syria, Iraq, and the fight against ISIS, 2:30 p.m., SD–419.

September 17, Full Committee, to receive a closed briefing on State Department processes in establishing tier rankings for the 2015 trafficking in persons report, 11:30 a.m., S–116, Capitol.

Committee on Health, Education, Labor, and Pensions: September 16, to hold hearings to examine achieving the

promise of health information technology, focusing on improving care through patient access to their records, 10 a.m., SD–430.

September 17, Subcommittee on Primary Health and Retirement Security, to hold hearings to examine biosimilar implementation, focusing on a progress report from FDA, 10 a.m., SD–430.

Committee on Homeland Security and Governmental Affairs: September 16, to hold hearings to examine regulatory reform proposals, 10 a.m., SD–342.

Committee on Indian Affairs: September 16, to hold an oversight hearing to examine EPA's Gold King Mine disaster, focusing on the harmful impacts to Indian country, 2:15 p.m., SD–628.

Committee on the Judiciary: September 16, to hold hearings to examine reforming the Electronic Communications Privacy Act, 10:15 a.m., SD–226.

September 17, Full Committee, business meeting to consider S. 1814, to withhold certain Federal funding from sanctuary cities, S. 32, to provide the Department of Justice with additional tools to target extraterritorial drug trafficking activity, and the nominations of John Michael Vazquez, to be United States District Judge for the District of New Jersey, Wilhelmina Marie Wright, to be United States District Judge for the District of Minnesota, and Paula Xinis, to be United States District Judge for the District of Maryland, 10:15 a.m., SD–226.

Committee on Veterans' Affairs: September 16, to hold hearings to examine S. 290, to amend title 38, United States Code, to improve the accountability of employees of the Department of Veterans Affairs, S. 563, to amend title 38, United States Code, to establish the Physician Ambassadors Helping Veterans program to seek to employ physicians at the Department of Veterans Affairs on a without compensation basis in practice areas and specialties with staffing shortages and long appointment waiting times, S. 564, to amend title 38, United States Code, to include licensed hearing aid specialists as eligible for appointment in the Veterans Health Administration of the Department of Veterans Affairs, S. 1450, to amend title 38, United States Code, to allow the Secretary of Veterans Affairs to modify the hours of employment of physicians and physician assistants employed on a full-time basis by the Department of Veterans Affairs, S. 1451, to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to adjudicate and pay survivor's benefits without requiring the filing of a formal claim, S. 1460, to amend title 38, United States Code, to extend the Yellow Ribbon G.I. Education Enhancement Program to cover recipients of the Marine Gunnery Sergeant John David Fry scholarship, S. 1693, to amend title 38, United States Code, to expand eligibility for reimbursement for emergency medical treatment to certain veterans that were unable to receive care from the Department of Veterans Affairs in the 24-month period preceding the furnishing of such emergency treatment, S. 1856, to amend title 38, United States Code, to provide for suspension and removal of employees of the Department of Veterans Affairs for performance or misconduct that is a threat to public health or safety and to improve accountability of employees of the Department, S. 1938, to amend title 38, United States Code, to improve the approval of certain programs of education for purposes of educational assistance provided by the Department of Veterans Affairs, and other pending calendar business, 2:30 p.m., SR–418.

Select Committee on Intelligence: September 17, to hold closed hearings to examine certain intelligence matters, 2:30 p.m., SH–219.

House Committees

Committee on Energy and Commerce, September 17, Full Committee, markup on the "North American Energy Security and Infrastructure Act of 2015"; and H.R. 702, to adapt to changing crude oil market conditions (continued), 10 a.m., 2123 Rayburn.

September 17, Subcommittee on Health, hearing entitled "Protecting Infants: Ending Taxpayer Funding for Abortion Providers Who Violate the Law", 3 p.m., 2123 Rayburn.

September 18, Subcommittee on Health, hearing entitled "Improving the Medicaid Program for Beneficiaries", 9 a.m., 2123 Rayburn.

Committee on Financial Services, September 17, Full Committee, hearing entitled "The Dodd-Frank Act Five Years Later: Are We More Free?", 10 a.m., 2128 Rayburn.

September 17, Subcommittee on Monetary Policy and Trade, hearing entitled "Strengthening U.S. Leadership in a Turbulent Global Economy", 2 p.m., 2128 Rayburn.

Committee on Foreign Affairs, September 17, Subcommittee on the Middle East and North Africa, markup on H. Res. 277, honoring the Tunisian People for their democratic transition; and H. Res. 293, expressing concern over anti-Israel and anti-Semitic incitement within the Palestinian Authority; and hearing entitled "Major Beneficiaries of the Iran Deal: IRGC and Hezbollah", 1:45 p.m., 2172 Rayburn.

September 17, Subcommittee on the Western Hemisphere, hearing entitled "Challenges to Religious Freedom in the Americas", 2 p.m., 2200 Rayburn.

Committee on Homeland Security, September 17, Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies, markup on H.R. 3490, the "Strengthening State and Local Cyber Crime Fighting Act"; H.R. 3493, the "Securing the Cities Act of 2015"; the "Department of Homeland Security Cybersecurity Strategy Act of 2015"; and Committee Print of the "DHS Science and Technology Reform and Improvements Act of 2015", 10 a.m., 311 Cannon.

September 17, Subcommittee on Counterterrorism and Intelligence, markup on H.R. 3350, the "Know the CBRN Terrorism Threats to Transportation Act"; H.R. 3361, the "Department of Homeland Security Insider Threat and Mitigation Act of 2015"; H.R. 3503, the "Department of Homeland Security Support to Fusion Centers Act of 2015"; a bill to amend the Homeland Security Act of 2002 to improve the management and administration of the security clearance processes throughout the Department of Homeland Security, and for other purposes; and Committee Print of the "Fusion Center Enhancement Act of 2015", 1 p.m., 311 Cannon.

September 17, Subcommittee on Transportation Security; and Subcommittee on Counterterrorism and Intelligence, joint hearing entitled ''Safeguarding our Nation's Surface Transportation Systems Against Evolving Terrorist Threats'', 2 p.m., 311 Cannon.

September 18, Subcommittee on Oversight and Management Efficiency, hearing entitled ''Making DHS More Efficient: Industry Recommendations to Improve Homeland Security'', 10 a.m., 311 Cannon.

Committee on the Judiciary, September 17, Full Committee, markup on H.R. 1428, the ''Judicial Redress Act of 2015''; H.R. 1755, to amend title 36, United States Code, to make certain improvements in the congressional charter of the Disabled American Veterans; and H.R. 3449, to amend the Immigration and Nationality Act to extend honorary citizenship to otherwise qualified noncitizens who enlisted in the Philippines and died while serving on active duty with the United States Armed Forces during certain periods of hostilities, and for other purposes, 10:30 a.m., 2141 Rayburn.

Committee on Oversight and Government Reform, September 17, Full Committee; and the House Committee on Natural Resources, joint hearing entitled, ''EPA's Animas Spill'', 10 a.m., 2167 Rayburn.

September 17, Full Committee, hearing entitled ''Federal Air Marshal Service: Oversight'', 2 p.m., 2154 Rayburn.

Committee on Science, Space, and Technology, September 18, Subcommittee on Research and Technology; and Subcommittee on Oversight, joint hearing entitled ''NEON Warning Signs: Examining the Management of the National Ecological Observatory Network'', 9 a.m., 2318 Rayburn.

Committee on Small Business, September 17, Subcommittee on Economic Growth, Tax and Capital Access, hearing entitled ''Financing Main Street: How Dodd-Frank is Crippling Small Lenders and Access to Capital'', 1 p.m., 2360 Rayburn.

Committee on Veterans' Affairs, September 17, Full Committee, markup on H.R. 3106, the ''Construction Reform Act of 2015''; H.R. 3016, the ''VA Provider Equity Act''; H.R. 677, the ''American Heroes COLA Act of 2015''; H.R. 1338, the ''Dignified Interment of Our Veterans Act of 2015''; H.R. 1384, the ''Honor America's Guard-Reserve Retirees Act''; H.R. 2360, the ''Career-Ready Student Veterans Act''; and H.R. 2915, the ''Female Veteran Suicide Prevention Act'', 10:30 a.m., 334 Cannon.

Committee on Ways and Means, September 17, Full Committee, markup on H.R. 2061, the ''EACH Act''; H.R. 1270, the ''Restoring Access to Medication Act of 2015''; H.R. 2940, the ''Educator Tax Relief Act of 2015''; H.R. 765, the ''Restaurant and Retail Jobs and Growth Act''; H.R. 2510, to amend the Internal Revenue Code of 1986 to modify and make permanent bonus depreciation; H.R. 961, to amend the Internal Revenue Code of 1986 to permanently extend the subpart F exemption for active financing income; and H.R. 1430, the ''Permanent CFC Look-Through Act of 2015'', 10:30 a.m., 1100 Longworth.

Permanent Select Committee on Intelligence, September 18, Subcommittee on Department of Defense Intelligence and Overhead Architecture, hearing on the Defense Intelligence Agency and the Defense Clandestine Service, 9 a.m., HVC–304.

Next Meeting of the **SENATE**

10 a.m., Wednesday, September 16

Senate Chamber

Program for Wednesday: After the transaction of any morning business (not to extend beyond one hour), Senate will continue consideration of H.J. Res. 61, Hire More Heroes Act. The filing deadline for all first-degree amendments is 2:30 p.m.

(Senate will recess from 12:30 p.m. until 2:15 p.m. for their respective party conferences.)

Next Meeting of the **HOUSE OF REPRESENTATIVES**

12 p.m., Wednesday, September 16

House Chamber

Program for Wednesday: Consideration of the following measures under suspension of the rules: 1) Concur in the Senate Amendment to H.R. 23—''National Windstorm Impact Reduction Act Reauthorization; 2) Concur in the Senate Amendment to H.R. 720—''Gerardo Hernandez Airport Security Act of 2015; 3) H.R. 487—''To allow the Miami Tribe of Oklahoma to lease or transfer certain lands; 4) H.R. 959—''Medgar Evers House Study Act, as amended; 5) H.R. 1214—''National Forest Small Tracts Act Amendments Act, as amended; 6) H.R. 1289—''John Muir National Historic Site Expansion Act; 7) H.R. 1554—''Elkhorn Ranch and White River National Forest Conveyance Act of 2015; 8) H.R. 1949—''National Liberty Memorial Clarification Act of 2015, as amended; 9) H.R. 2223—''Crags, Colorado Land Exchange Act of 2015; 10) H.R. 2791—''Western Oregon Tribal Fairness Act; 11) S. 501—''New Mexico Navajo Water Settlement Technical Corrections Act; and 12) S. 230—''To provide for the conveyance of certain property to the Yukon Kuskokwim Health Corporation located in Bethel, Alaska.

Extensions of Remarks, as inserted in this issue.

HOUSE

Bera, Ami, Calif., E1277
Conaway, K. Michael, Tex., E1278
Conyers, John, Jr., Mich., E1280, E1282
DeLauro, Rosa L., Conn., E1279, E1280, E1281
Johnson, Henry C. ''Hank'', Jr., Ga., E1277, E1278, E1278, E1279, E1280, E1281, E1281, E1282, E1282, E1283
Keating, William R., Mass., E1279
Larson, John B., Conn., E1283
Moolenaar, John R., Mich., E1278
Plaskett, Stacey E., Virgin Islands, E1277
Sherman, Brad, Calif., E1277
Sires, Albio, N.J., E1279
Thompson, Mike, Calif., E1281

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